



Telecommunications (Interception and Access) Act 1979

No. 114, 1979

Compilation No. 133

Compilation date: 4 June 2026

Includes amendments: Act No. 75, 2025

This compilation is in 2 volumes

Volume 1: sections 1-186J
Volume 2: sections 187-300
Schedule 1
Endnotes

Each volume has its own contents

Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Telecommunications (Interception and Access) Act 1979* that shows the text of the law as amended and in force on 4 June 2026 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au).

Application, saving and transitional provisions

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Presentational changes

The *Legislation Act 2003* provides for First Parliamentary Counsel to make presentational changes to a compilation. Presentational changes are applied to give a more consistent look and feel to legislation published on the Register, and enable the user to more easily navigate those documents.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. Any modifications affecting the law are accessible on the Register.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Chapter 5—Co-operation with agencies	1
Part 5-1—Definitions	1
187 Definitions	1
Part 5-1A—Data retention	2
Division 1—Obligation to keep information and documents	2
187A Service providers must keep certain information and documents	2
187AA Information to be kept.....	5
187B Certain service providers not covered by this Part	8
187BA Ensuring the confidentiality of information.....	9
187C Period for keeping information and documents.....	9
Division 2—Data retention implementation plans	11
187D Effect of data retention implementation plans	11
187E Applying for approval of data retention implementation plans	11
187F Approval of data retention implementation plans.....	12
187G Consultation with agencies and the ACMA	13
187H When data retention implementation plans are in force	15
187J Amending data retention implementation plans	15
Division 3—Exemptions	17
187K Communications Access Coordinator may grant exemptions or variations	17
187KA Review of exemption or variation decisions.....	19
Division 4—Miscellaneous	21
187KB Commonwealth may make a grant of financial assistance to service providers	21
187L Confidentiality of applications.....	21
187LA Application of the <i>Privacy Act 1988</i>	22
187M Pecuniary penalties and infringement notices	22
187N Review of operation of this Part	22
187P Annual reports.....	23
Part 5-2—Delivery points	25
188 Delivery points.....	25

Part 5-3—Interception capability	28
Division 1—Obligations	28
189 Minister may make determinations.....	28
190 Obligations of persons covered by a determination.....	29
191 Obligations of persons not covered by a determination in relation to a kind of telecommunications service	29
Division 2—Exemptions	31
192 Communications Access Coordinator may grant exemptions.....	31
193 ACMA may grant exemptions for trial services.....	32
Part 5-4—Interception capability plans	33
195 Nature of an interception capability plan.....	33
196 Time for giving IC plans by carriers.....	34
197 Time for giving IC plans by nominated carriage service providers	34
198 Consideration of IC plans	35
199 Commencement of IC plans	38
200 Compliance with IC plans.....	38
201 Consequences of changed business plans.....	38
202 Confidential treatment of IC plans.....	39
Part 5-4A—Requirement arising from proposed changes	40
202A Purpose of Part.....	40
202B Carrier or provider to notify of proposed change	40
202C Communications Access Coordinator may notify agencies	42
Part 5-5—Delivery capability	43
203 Communications Access Coordinator may make determinations.....	43
204 Obligations of persons covered by a determination.....	44
205 Obligations of persons not covered by a determination in relation to a kind of telecommunications service	44
Part 5-6—Allocation of costs	45
Division 1—Outline of Part	45
206 Outline of Part.....	45
Division 2—Interception capability	46
207 Costs to be borne by the carriers.....	46

Division 3—Delivery capability	47
208 Costs to be borne by the interception agencies.....	47
209 Working out costs of delivery capabilities	47
210 Examination of lower cost options	49
211 ACMA may require independent audit of costs	49
Chapter 6—Miscellaneous	51
Part 6-1—Miscellaneous	51
298 Protection of persons—control order declared to be void	51
299 Dealing with information obtained under a warrant—control order declared to be void	51
299A Schedule 1	52
300 Regulations	53
Schedule 1—International production orders	54
Part 1—Introduction	54
1 Simplified outline of this Schedule.....	54
2 Definitions	55
3 Designated international agreement.....	66
3A Disallowance of regulations relating to designated international agreements	70
3B Statutory requirements certificate—designated international agreements	71
3C Australia’s treaty-making process	73
4 Message application service	74
5 Voice call application service	74
6 Video call application service.....	75
7 Storage/back-up service.....	75
8 General electronic content service.....	76
9 When material is posted on a general electronic content service	76
10 Uploaded material.....	77
10A When a prescribed communications provider is based in, or operates in, a foreign country	77
11 Intended recipient of a communication	78
12 Use of a thing.....	78
13 Identification of a particular person.....	78
14 Eligible judge.....	79
15 Nominated ART member.....	80

16	Issuing authority	80
17	Nominated ART Intelligence and Security member.....	81
17A	Urgent circumstances.....	83
18	Meaning of expressions in other provisions of this Act	84
19	Extra-territorial application.....	84
20	Constitutional basis of this Schedule	84
Part 2—International production orders relating to the enforcement of the criminal law		85
Division 1—Introduction		85
21	Simplified outline of this Part.....	85
Division 2—International production orders relating to interception: enforcement of the criminal law		87
Subdivision A—Applications		87
22	Application for international production order—enforcement of the criminal law	87
23	Form of application.....	89
24	Contents of application	89
25	Affidavits to accompany written application.....	90
26	Information to be given on telephone application	91
27	Giving further information to eligible Judge or nominated ART member	91
28	Application by interception agency of Victoria.....	92
29	Application by interception agency of Queensland.....	93
Subdivision B—International production orders relating to interception		94
30	Issue of international production order—enforcement of the criminal law	94
31	Content of international production order	101
32	Issue of further international production order.....	103
Division 3—International production orders relating to stored communications: enforcement of the criminal law		105
Subdivision A—Applications		105
33	Application for international production order—enforcement of the criminal law	105
34	Form of application.....	106
35	Contents of written application.....	106
36	Affidavits to accompany written application.....	106

37	Information to be given on telephone application	107
38	Giving further information to issuing authority.....	107
Subdivision B—International production orders relating to stored communications		107
39	Issue of international production order—enforcement of the criminal law	107
40	Content of international production order	112
41	Issue of further international production order.....	113
Division 4—International production orders relating to telecommunications data: enforcement of the criminal law		114
Subdivision A—Applications		114
42	Application for international production order—enforcement of the criminal law	114
43	Form of application.....	114
44	Contents of written application.....	115
45	Affidavits to accompany written application.....	115
46	Information to be given on telephone application	115
47	Giving further information to issuing authority.....	116
Subdivision B—International production orders relating to telecommunications data		116
48	Issue of international production order—enforcement of the criminal law	116
49	Content of international production order	119
50	Issue of further international production order.....	121
Part 3—International production orders relating to Part 5.3 supervisory orders		122
Division 1—Introduction		122
51	Simplified outline of this Part.....	122
Division 2—International production orders relating to interception: Part 5.3 supervisory orders		124
Subdivision A—Applications		124
52	Application for international production order—Part 5.3 supervisory order	124
53	Form of application.....	125
54	Contents of application	125
55	Affidavits to accompany written application.....	125

56	Information to be given on telephone application	127
57	Giving further information to eligible Judge or nominated ART member	127
58	Application by Part 5.3 IPO agency of Victoria.....	127
59	Application by Part 5.3 IPO agency of Queensland	128
Subdivision B—International production orders relating to interception		130
60	Issue of international production order—Part 5.3 supervisory order	130
61	Content of international production order	139
62	Issue of further international production order	142
Division 3—International production orders relating to stored communications: Part 5.3 supervisory orders		143
Subdivision A—Applications		143
63	Application for international production order—Part 5.3 supervisory order	143
64	Form of application.....	144
65	Contents of written application.....	144
66	Affidavits to accompany written application.....	144
67	Information to be given on telephone application	145
68	Giving further information to issuing authority.....	145
Subdivision B—International production orders relating to stored communications		145
69	Issue of international production order—Part 5.3 supervisory order	145
70	Content of international production order	150
71	Issue of further international production order.....	151
Division 4—International production orders relating to telecommunications data: Part 5.3 supervisory orders		153
Subdivision A—Applications		153
72	Application for international production order—Part 5.3 supervisory order	153
73	Form of application.....	153
74	Contents of written application.....	154
75	Affidavits to accompany written application.....	154
76	Information to be given on telephone application	154
77	Giving further information to issuing authority.....	155

Subdivision B—International production orders relating to telecommunications data	155
78 Issue of international production order—Part 5.3 supervisory order	155
79 Content of international production order	159
80 Issue of further international production order	160
Division 5—Notification to Ombudsman or the Inspector-General of Intelligence and Security by Part 5.3 IPO agencies in relation to international production orders	161
81 Notification to Ombudsman or the Inspector-General of Intelligence and Security by Part 5.3 IPO agencies in relation to international production orders.....	161
Part 4—International production orders relating to national security	162
Division 1—Introduction	162
82 Simplified outline of this Part.....	162
Division 2—International production orders relating to interception: national security	163
Subdivision A—Applications	163
83 Application for international production order—national security.....	163
84 Form of application.....	166
85 Contents of application	166
86 Affidavits to accompany written application.....	167
87 Information to be given on telephone application	168
88 Giving further information to nominated ART Intelligence and Security member	168
Subdivision B—International production orders relating to interception	169
89 Issue of international production order—national security	169
90 Content of international production order	175
91 Issue of further international production order	177

Division 3—International production orders relating to stored communications: national security	179
Subdivision A—Applications	179
92 Application for international production order—national security.....	179
93 Form of application.....	181
94 Contents of written application.....	181
95 Affidavits to accompany written application.....	182
96 Information to be given on telephone application	182
97 Giving further information to nominated ART Intelligence and Security member	182
Subdivision B—International production orders relating to stored communications	183
98 Issue of international production order—national security	183
99 Content of international production order	187
100 Issue of further international production order.....	188
Division 4—International production orders relating to telecommunications data: national security	189
Subdivision A—Applications	189
101 Application for international production order—national security.....	189
102 Form of application.....	189
103 Contents of written application.....	190
104 Affidavits to accompany written application.....	190
105 Information to be given on telephone application	190
106 Giving further information to nominated ART Intelligence and Security member	191
Subdivision B—International production orders relating to telecommunications data	191
107 Issue of international production order—national security	191
108 Content of international production order	194
109 Issue of further international production order.....	195
Part 5—Giving of international production orders	197
110 Simplified outline of this Part.....	197
111 Giving of international production orders—relevant agency	197
112 Giving of international production orders—the Organisation	199

Part 6—Revocation of international production orders	202
113 Simplified outline of this Part.....	202
114 Revocation of international production orders—relevant agency	202
115 Giving of instrument of revocation—relevant agency	203
116 Revocation of international production orders—the Organisation.....	204
117 Giving of instrument of revocation—the Organisation	204
118 Delegation by the chief officer of a relevant agency	205
119 Delegation by the Director-General of Security	206
Part 7—Objections to, and cancellation of, international production orders	207
120 Simplified outline of this Part.....	207
121 Prescribed communications provider may object to international production order	207
122 Cancellation of international production orders	208
Part 8—Compliance with international production orders	210
123 Simplified outline of this Part.....	210
124 Compliance with international production orders	210
125 When a prescribed communications provider meets the enforcement threshold.....	210
126 Civil penalty provision—enforcement.....	212
Part 9—Reporting and record-keeping requirements	213
Division 1—Introduction	213
127 Simplified outline of this Part.....	213
Division 2—Reporting requirements	214
128 Annual reports by relevant agencies.....	214
129 Reports to be made to the Attorney-General by the Director-General of Security	215
130 Annual reports by the Australian Designated Authority	216
131 Annual reports by the Minister	218
132 Deferral of inclusion of information in Ministerial report.....	218
Division 3—Record-keeping requirements	223
133 Keeping documents associated with international production orders—relevant agencies.....	223
134 Other records to be kept—relevant agencies	224

135	Keeping documents associated with international production orders—the Organisation	226
136	Other records to be kept—the Organisation	227
137	Keeping documents associated with international production orders—Australian Designated Authority	230
138	Other records to be kept—Australian Designated Authority.....	230
Division 4—Register of international production orders		234
139	Register of international production orders	234
Division 5—Destruction of records		236
140	Destruction of records.....	236
Part 10—Oversight by the Commonwealth Ombudsman		239
141	Simplified outline of this Part.....	239
142	Inspection of records—relevant agency	239
143	Inspection of records—Australian Designated Authority	240
144	Power to obtain relevant information	241
145	Ombudsman to be given information and access despite other laws.....	243
146	Application of Ombudsman Act	244
147	Exchange of information between Ombudsman or Inspector-General of Intelligence and Security, and State/Territory inspecting authorities.....	245
148	Delegation by Ombudsman	246
149	Ombudsman not to be sued.....	247
150	Reports	247
Part 11—Disclosure of protected information		249
151	Simplified outline of this Part.....	249
152	Prohibition on use, recording or disclosure of protected information or its admission in evidence	249
153	Exceptions—general.....	249
154	Exception—disclosure to the Minister	253
155	Exception—disclosure to the Attorney-General.....	254
156	Exception—statistical information	254
157	Exceptions—international production orders relating to interception	254
158	Exceptions—international production orders relating to stored communications	264
159	Exceptions—telecommunications data.....	265

Part 12—Evidentiary certificates	267
160 Simplified outline of this Part.....	267
161 Evidentiary certificates—compliance with international production orders by prescribed communications providers.....	268
162 Evidentiary certificates—voluntary provision of associated information by prescribed communications providers	269
163 Evidentiary certificates—interception	276
164 Evidentiary certificates—stored communications	278
165 Evidentiary certificates—telecommunications data	279
166 Evidentiary certificates—Australian Designated Authority	280
Part 13—Incoming orders and requests	282
167 Simplified outline of this Part.....	282
168 Incoming orders and requests—exemptions from various prohibitions	282
169 Interaction with the <i>Privacy Act 1988</i>	283
Part 14—Miscellaneous	285
170 Simplified outline of this Part.....	285
171 Electronic service of documents	285
172 International production order issued in response to a telephone application—action required.....	286
173 Duty of nominated ART Intelligence and Security member	288
174 Certified copy of international production order— interception agency	288
175 Certified copy of international production order—criminal law-enforcement agency	289
176 Certified copy of international production order— enforcement agency	289
177 Certified copy of international production order—Part 5.3 IPO agency.....	289
178 Certified copy of international production order—the Organisation.....	291
179 Delegation by the Australian Designated Authority	292
180 Minor defects in connection with international production order	292
181 Protection of persons—control order declared to be void	293
182 Specification of international agreements.....	293
183 Operation of the <i>Mutual Assistance in Criminal Matters Act</i> <i>1987</i> not limited	294
184 Other functions or powers not limited	294

Endnotes	295
Endnote 1—About the endnotes	295
Endnote 2—Abbreviation key	297
Endnote 3—Legislation history	298
Endnote 4—Amendment history	320

Chapter 5—Co-operation with agencies

Part 5-1—Definitions

187 Definitions

- (1) This section sets out the meaning of the following 2 important concepts used in this Chapter:
 - (a) interception capability (relating to obligations under Part 5-3);
 - (b) delivery capability (relating to obligations under Part 5-5).These concepts do not overlap.

Interception capability

- (2) In this Chapter, ***interception capability***, in relation to a particular kind of telecommunications service that involves, or will involve, the use of a telecommunications system, means the capability of that kind of service or of that system to enable:
 - (a) a communication passing over the system to be intercepted; and
 - (b) lawfully intercepted information to be transmitted to the delivery points applicable in respect of that kind of service.

Delivery capability

- (3) In this Chapter, ***delivery capability***, in relation to a particular kind of telecommunications service that involves, or will involve, the use of a telecommunications system, means the capability of that kind of service or of that system to enable lawfully intercepted information to be delivered to interception agencies from the delivery points applicable in respect of that kind of service.

Part 5-1A—Data retention

Division 1—Obligation to keep information and documents

187A Service providers must keep certain information and documents

- (1) A person (a *service provider*) who operates a service to which this Part applies (a *relevant service*) must keep, or cause to be kept, in accordance with section 187BA and for the period specified in section 187C:

- (a) information of a kind specified in or under section 187AA; or
- (b) documents containing information of that kind;

relating to any communication carried by means of the service.

Note 1: Subsection (3) sets out the services to which this Part applies.

Note 2: Section 187B removes some service providers from the scope of this obligation, either completely or in relation to some services they operate.

Note 3: Division 3 provides for exemptions from a service provider's obligations under this Part.

- (3) This Part applies to a service if:

- (a) it is a service for carrying communications, or enabling communications to be carried, by means of guided or unguided electromagnetic energy or both; and
- (b) it is a service:
 - (i) operated by a carrier; or
 - (ii) operated by an internet service provider (within the meaning of the *Online Safety Act 2021*; or
 - (iii) of a kind for which a declaration under subsection (3A) is in force; and
- (c) the person operating the service owns or operates, in Australia, infrastructure that enables the provision of any of its relevant services;

Section 187A

but does not apply to a broadcasting service (within the meaning of the *Broadcasting Services Act 1992*).

- (3A) The Minister may, by legislative instrument, declare a service to be a service to which this Part applies.
- (3B) A declaration under subsection (3A):
- (a) comes into force when it is made, or on such later day as is specified in the declaration; and
 - (b) ceases to be in force at the end of the period of 40 sitting days of a House of the Parliament after the declaration comes into force.
- (3C) If a Bill is introduced into either House of the Parliament that includes an amendment of subsection (3), the Minister:
- (a) must refer the amendment to the Parliamentary Joint Committee on Intelligence and Security for review; and
 - (b) must not in that referral specify, as the period within which the Committee is to report on its review, a period that will end earlier than 15 sitting days of a House of the Parliament after the introduction of the Bill.
- (4) This section does not require a service provider to keep, or cause to be kept:
- (a) information that is the contents or substance of a communication; or
- Note: This paragraph puts beyond doubt that service providers are not required to keep information about telecommunications content.
- (b) information that:
- (i) states an address to which a communication was sent on the internet, from a telecommunications device, using an internet access service provided by the service provider; and
 - (ii) was obtained by the service provider only as a result of providing the service; or
- Note: This paragraph puts beyond doubt that service providers are not required to keep information about subscribers' web browsing history.

Section 187A

- (c) information to the extent that it relates to a communication that is being carried by means of another service:
 - (i) that is of a kind referred to in paragraph (3)(a); and
 - (ii) that is operated by another person using the relevant service operated by the service provider;or a document to the extent that the document contains such information; or

Note: This paragraph puts beyond doubt that service providers are not required to keep information or documents about communications that pass “over the top” of the underlying service they provide, and that are being carried by means of other services operated by other service providers.

- (d) information that the service provider is required to delete because of a determination made under section 99 of the *Telecommunications Act 1997*, or a document to the extent that the document contains such information; or
 - (e) information about the location of a telecommunications device that is not information used by the service provider in relation to the relevant service to which the device is connected.
- (5) Without limiting subsection (1), for the purposes of this section:
- (a) an attempt to send a communication by means of a relevant service is taken to be the sending of a communication by means of the service, if the attempt results in:
 - (i) a connection between the telecommunications device used in the attempt and another telecommunications device; or
 - (ii) an attempted connection between the telecommunications device used in the attempt and another telecommunications device; or
 - (iii) a conclusion being drawn, through the operation of the service, that a connection cannot be made between the telecommunications device used in the attempt and another telecommunications device; and
 - (b) an untariffed communication by means of a relevant service is taken to be a communication by means of the service.

Section 187AA

- (6) To avoid doubt, if information that subsection (1) requires a service provider to keep in relation to a communication is not created by the operation of a relevant service, subsection (1) requires the service provider to use other means to create the information, or a document containing the information.

187AA Information to be kept

- (1) The following table sets out the kinds of information that a service provider must keep, or cause to be kept, under subsection 187A(1):

Kinds of information to be kept		
Item	Topic Column 1	Description of information Column 2
1	The subscriber of, and accounts, services, telecommunications devices and other relevant services relating to, the relevant service	The following: (a) any information that is one or both of the following: (i) any name or address information; (ii) any other information for identification purposes; relating to the relevant service, being information used by the service provider for the purposes of identifying the subscriber of the relevant service; (b) any information relating to any contract, agreement or arrangement relating to the relevant service, or to any related account, service or device; (c) any information that is one or both of the following: (i) billing or payment information; (ii) contact information; relating to the relevant service, being information used by the service provider in relation to the relevant service; (d) any identifiers relating to the relevant service or any related account, service or device, being information used by the service provider in

Chapter 5 Co-operation with agencies

Part 5-1A Data retention

Division 1 Obligation to keep information and documents

Section 187AA

Kinds of information to be kept		
Item	Topic Column 1	Description of information Column 2
		relation to the relevant service or any related account, service or device; (e) the status of the relevant service, or any related account, service or device.
2	The source of a communication	Identifiers of a related account, service or device from which the communication has been sent by means of the relevant service.
3	The destination of a communication	Identifiers of the account, telecommunications device or relevant service to which the communication: (a) has been sent; or (b) has been forwarded, routed or transferred, or attempted to be forwarded, routed or transferred.
4	The date, time and duration of a communication, or of its connection to a relevant service	The date and time (including the time zone) of the following relating to the communication (with sufficient accuracy to identify the communication): (a) the start of the communication; (b) the end of the communication; (c) the connection to the relevant service; (d) the disconnection from the relevant service.
5	The type of a communication or of a relevant service used in connection with a communication	The following: (a) the type of communication; Examples: Voice, SMS, email, chat, forum, social media. (b) the type of the relevant service; Examples: ADSL, Wi-Fi, VoIP, cable, GPRS, VoLTE, LTE. (c) the features of the relevant service that were, or would have been, used by or enabled for the communication. Examples: Call waiting, call forwarding, data volume usage.

Section 187AA

Kinds of information to be kept

Item	Topic Column 1	Description of information Column 2
		Note: This item will only apply to the service provider operating the relevant service: see paragraph 187A(4)(c).
6	The location of equipment, or a line, used in connection with a communication	The following in relation to the equipment or line used to send or receive the communication: (a) the location of the equipment or line at the start of the communication; (b) the location of the equipment or line at the end of the communication. Examples: Cell towers, Wi-Fi hotspots.

- (2) The Minister may, by legislative instrument, make a declaration modifying (including by adding, omitting or substituting) the table in subsection (1), or that table as previously modified under this subsection.
- (3) A declaration under subsection (2):
- (a) comes into force when it is made, or on such later day as is specified in the declaration; and
 - (b) ceases to be in force at the end of the period of 40 sitting days of a House of the Parliament after the declaration comes into force.
- (4) If a Bill is introduced into either House of the Parliament that includes an amendment of subsection 187A(4) or subsection (1) or (5) of this section, the Minister:
- (a) must refer the amendment to the Parliamentary Joint Committee on Intelligence and Security for review; and
 - (b) must not in that referral specify, as the period within which the Committee is to report on its review, a period that will end earlier than 15 sitting days of a House of the Parliament after the introduction of the Bill.

Section 187B

- (5) For the purposes of items 2, 3, 4 and 6 of the table in subsection (1) and any modifications of those items under subsection (2), 2 or more communications that together constitute a single communications session are taken to be a single communication.

187B Certain service providers not covered by this Part

- (1) Subsection 187A(1) does not apply to a service provider (other than a carrier that is not a carriage service provider) in relation to a relevant service that it operates if:
- (a) the service:
 - (i) is provided only to a person's immediate circle (within the meaning of section 23 of the *Telecommunications Act 1997*); or
 - (ii) is provided only to places that, under section 36 of that Act, are all in the same area; and
 - (b) the service is not subject to a declaration under subsection (2) of this section.
- (2) A Communications Access Coordinator may declare that subsection 187A(1) applies in relation to a relevant service that a service provider operates.
- (2A) Before a declaration is made, a Communications Access Coordinator may consult the Privacy Commissioner.
- (3) In considering whether to make a declaration, a Communications Access Coordinator must have regard to:
- (a) the interests of law enforcement and national security; and
 - (b) the objects of the *Telecommunications Act 1997*; and
 - (ba) the objects of the *Privacy Act 1988*; and
 - (bb) any submissions made by the Privacy Commissioner because of the consultation under subsection (2A); and
 - (c) any other matter that the Coordinator considers relevant.
- (4) The declaration must be in writing.

Section 187BA

- (5) A declaration made under subsection (2) is not a legislative instrument.
- (6) As soon as practicable after a declaration is made under subsection (2), a Communications Access Coordinator must give written notice of the declaration to the Minister.
- (7) As soon as practicable after receiving the notice under subsection (6), the Minister must give written notice of the declaration to the Parliamentary Joint Committee on Intelligence and Security.

187BA Ensuring the confidentiality of information

A service provider must protect the confidentiality of information that, or information in a document that, the service provider must keep, or cause to be kept, under section 187A by:

- (a) encrypting the information; and
- (b) protecting the information from unauthorised interference or unauthorised access.

187C Period for keeping information and documents

- (1) The period for which a service provider must keep, or cause to be kept, information or a document under section 187A is:
 - (a) if the information is about, or the document contains information about, a matter of a kind described in paragraph (a) or (b) in column 2 of item 1 of the table in subsection 187AA(1)—the period:
 - (i) starting when the information or document came into existence; and
 - (ii) ending 2 years after the closure of the account to which the information or document relates; or
 - (b) otherwise—the period:
 - (i) starting when the information or document came into existence; and
 - (ii) ending 2 years after it came into existence.

Section 187C

- (2) However, the regulations may prescribe that, in relation to a specified matter of a kind described in paragraph (a) or (b) in column 2 of item 1 of the table in subsection 187AA(1), the period under subsection (1) of this section is the period referred to in paragraph (1)(b) of this section.
- (3) This section does not prevent a service provider from keeping information or a document for a period that is longer than the period provided under this section.

Note: Division 3 provides for reductions in periods specified under this section.

Division 2—Data retention implementation plans

187D Effect of data retention implementation plans

While there is in force a data retention implementation plan for a relevant service operated by a service provider:

- (a) the service provider must comply with the plan in relation to communications carried by means of that service; but
- (b) the service provider is not required to comply with subsection 187A(1) (or section 187BA or 187C) in relation to those communications.

187E Applying for approval of data retention implementation plans

- (1) A service provider may apply to a Communications Access Coordinator for approval of a data retention implementation plan for one or more relevant services operated by the service provider.
- (2) The plan must specify, in relation to each such service:
 - (a) an explanation of the current practices for keeping, and ensuring the confidentiality of, information and documents that section 187A would require to be kept, if the plan were not in force; and
 - (b) details of the interim arrangements that the service provider proposes to be implemented, while the plan is in force, for keeping, and ensuring the confidentiality of, such information and documents (to the extent that the information and documents will not be kept in compliance with section 187A (and sections 187BA and 187C)); and
 - (c) the day by which the service provider will comply with section 187A (and sections 187BA and 187C) in relation to all such information and documents, except to the extent that any decisions under Division 3 apply.
- (3) The day specified under paragraph (2)(c) must not be later than the day on which the plan would, if approved, cease to be in force under section 187H in relation to the service.

Section 187F

- (4) The plan must also specify:
 - (a) any relevant services, operated by the service provider, that the plan does not cover; and
 - (b) the contact details of the officers or employees of the service provider in relation to the plan.

187F Approval of data retention implementation plans

- (1) If, under section 187E, a service provider applies for approval of a data retention implementation plan, a Communications Access Coordinator must:
 - (a) approve the plan and notify the service provider of the approval; or
 - (b) give the plan back to the service provider with a written request for the service provider to amend the plan to take account of specified matters.
- (2) Before making a decision under subsection (1), the Coordinator must take into account:
 - (a) the desirability of achieving substantial compliance with section 187A (and sections 187BA and 187C) as soon as practicable; and
 - (b) the extent to which the plan would reduce the regulatory burden imposed on the service provider by this Part; and
 - (c) if, at the time the application is received, the service provider is contravening section 187A (or section 187BA or 187C) in relation to one or more services covered by the application—the reasons for the contravention; and
 - (d) the interests of law enforcement and national security; and
 - (e) the objects of the *Telecommunications Act 1997*; and
 - (f) any other matter that the Coordinator considers relevant.
- (3) If a Communications Access Coordinator does not, within 60 days after the day a Communications Access Coordinator receives the application:
 - (a) make a decision on the application, and
 - (b) communicate to the applicant the decision on the application;

a Communications Access Coordinator is taken, at the end of that period of 60 days, to have made the decision that the service provider applied for, and to have notified the service provider accordingly.

- (4) A decision that is taken under subsection (3) to have been made in relation to a service provider that applied for the decision has effect only until a Communications Access Coordinator makes, and communicates to the service provider, a decision on the application.

187G Consultation with agencies and the ACMA

- (1) As soon as practicable after receiving an application under section 187E to approve a data retention implementation plan (the **original plan**), a Communications Access Coordinator must:
- (a) give a copy of the plan to the enforcement agencies and security authorities that, in the opinion of a Communications Access Coordinator, are likely to be interested in the plan; and
 - (b) invite each such enforcement agency or security authority to provide comments on the plan to a Communications Access Coordinator.

A Communications Access Coordinator may give a copy of the plan to the ACMA.

Request for amendment of original plan

- (2) If:
- (a) a Communications Access Coordinator receives a comment from an enforcement agency or security authority requesting an amendment of the original plan; and
 - (b) a Communications Access Coordinator considers the request to be a reasonable one;
- a Communications Access Coordinator:
- (c) must request that the service provider make the amendment within 30 days (the **response period**) after receiving the comment or summary; and

Section 187G

- (d) may give the service provider a copy of the comment or a summary of the comment.

Response to request for amendment of original plan

- (3) The service provider must respond to a request for an amendment of the original plan either:
 - (a) by indicating its acceptance of the request, by amending the original plan appropriately and by giving the amended plan to a Communications Access Coordinator within the response period; or
 - (b) by indicating that it does not accept the request and providing its reasons for that non-acceptance.

The ACMA's role

- (4) If the service provider indicates that it does not accept a request for an amendment of the original plan, a Communications Access Coordinator must:
 - (a) refer the request and the service provider's response to the ACMA; and
 - (b) request the ACMA to determine whether any amendment of the original plan is required.
- (5) The ACMA must then:
 - (a) determine in writing that no amendment of the original plan is required in response to the request for the amendment; or
 - (b) if, in the opinion of the ACMA:
 - (i) the request for the amendment is a reasonable one; and
 - (ii) the service provider's response to the request for the amendment is not reasonable;determine in writing that the original plan should be amended in a specified manner and give a copy of the determination to the service provider.

Coordinator to approve amended plan or to refuse approval

- (6) A Communications Access Coordinator must:
-

Section 187H

- (a) if, on receipt of a determination under paragraph (5)(b), the service provider amends the original plan to take account of that determination and gives the amended plan to a Communications Access Coordinator—approve the plan as amended, and notify the service provider of the approval; or
- (b) otherwise—refuse to approve the plan, and notify the service provider of the refusal.

ACMA determination not a legislative instrument

- (7) A determination made under subsection (5) is not a legislative instrument.

187H When data retention implementation plans are in force

- (1) A data retention implementation plan for a relevant service operated by a service provider:
 - (a) comes into force when a Communications Access Coordinator notifies the service provider of the approval of the plan; and
 - (b) ceases to be in force in relation to that service:
 - (i) if the service provider was operating the service at the commencement of this Part—at the end of the implementation phase for this Part; or
 - (ii) if the service provider was not operating the service at the commencement of this Part—at the end of the period of 18 months starting on the day the service provider started to operate the service after that commencement.
- (2) The *implementation phase* for this Part is the period of 18 months starting on the commencement of this Part.

187J Amending data retention implementation plans

- (1) If a service provider's data retention implementation plan is in force, it may be amended only if:

Section 187J

- (a) the service provider applies to a Communications Access Coordinator for approval of the amendment, and a Communications Access Coordinator approves the amendment; or
 - (b) a Communications Access Coordinator makes a request to the service provider for the amendment to be made, and the service provider agrees to the amendment.
- (2) Section 187F applies in relation to approval of the amendment under paragraph (1)(a) as if the application for approval of the amendment were an application under section 187E for approval of a data retention implementation plan.
- (3) An amendment of a data retention implementation plan:
 - (a) comes into force when:
 - (i) if paragraph (1)(a) applies—a Communications Access Coordinator notifies the service provider of the approval of the amendment; or
 - (ii) if paragraph (1)(b) applies—the service provider notifies a Communications Access Coordinator of the service provider’s agreement to the amendment; but
 - (b) does not effect when the plan ceases to be in force under paragraph 187H(1)(b).

Division 3—Exemptions

187K Communications Access Coordinator may grant exemptions or variations

Decision to exempt or vary

- (1) A Communications Access Coordinator may:
 - (a) exempt a specified service provider from the obligations imposed on the service provider under this Part, either generally or in so far as they relate to a specified kind of relevant service; or
 - (b) vary the obligations imposed on a specified service provider under this Part, either generally or in so far as they relate to a specified kind of relevant service; or
 - (c) vary, in relation to a specified service provider, a period specified in section 187C, either generally or in relation to information or documents that relate to a specified kind of relevant service.

A variation must not impose obligations that would exceed the obligations to which a service provider would otherwise be subject under sections 187A and 187C.

- (2) The decision must be in writing.
- (3) The decision may be:
 - (a) unconditional; or
 - (b) subject to such conditions as are specified in the decision.
- (4) A decision made under subsection (1) is not a legislative instrument.

Effect of applying for exemption or variation

- (5) If a service provider applies in writing to a Communications Access Coordinator for a particular decision under subsection (1) relating to the service provider:

Section 187K

- (a) a Communications Access Coordinator:
 - (i) must give a copy of the application to the enforcement agencies and security authorities that, in the opinion of a Communications Access Coordinator, are likely to be interested in the application; and
 - (ii) may give a copy of the application to the ACMA; and
- (b) if a Communications Access Coordinator does not, within 60 days after the day a Communications Access Coordinator receives the application:
 - (i) make a decision on the application, and
 - (ii) communicate to the applicant the decision on the application;

a Communications Access Coordinator is taken, at the end of that period of 60 days, to have made the decision that the service provider applied for.
- (6) A decision that is taken under paragraph (5)(b) to have been made in relation to a service provider that applied for the decision has effect only until a Communications Access Coordinator makes, and communicates to the service provider, a decision on the application.

Matters to be taken into account

- (7) Before a Communications Access Coordinator makes a decision under subsection (1) in relation to a service provider, the Coordinator must take into account:
 - (a) the interests of law enforcement and national security; and
 - (b) the objects of the *Telecommunications Act 1997*; and
 - (c) the service provider's history of compliance with this Part; and
 - (d) the service provider's costs, or anticipated costs, of complying with this Part; and
 - (e) any alternative data retention or information security arrangements that the service provider has identified.

Section 187KA

- (8) The Coordinator may take into account any other matter he or she considers relevant.

187KA Review of exemption or variation decisions

- (1) A service provider may apply in writing to the ACMA for review of a decision under subsection 187K(1) relating to the service provider.
- (2) The ACMA must:
- (a) confirm the decision; or
 - (b) substitute for that decision another decision that could have been made under subsection 187K(1).

A substituted decision under paragraph (b) has effect (other than for the purposes of this section) as if it were a decision of a Communications Access Coordinator under subsection 187K(1).

- (3) Before considering its review of the decision under subsection 187K(1), the ACMA must give a copy of the application to:
- (a) a Communications Access Coordinator; and
 - (b) any enforcement agencies and security authorities that were given, under subparagraph 187K(5)(a)(i), a copy of the application for the decision under review; and
 - (c) any other enforcement agencies and security authorities that, in the opinion of the ACMA, are likely to be interested in the application.

Matters to be taken into account

- (4) Before making a decision under subsection (2) in relation to a service provider, the ACMA must take into account:
- (a) the interests of law enforcement and national security; and
 - (b) the objects of the *Telecommunications Act 1997*; and
 - (c) the service provider's history of compliance with this Part; and

Section 187KA

- (d) the service provider's costs, or anticipated costs, of complying with this Part; and
 - (e) any alternative data retention or information security arrangements that the service provider has identified.
- (5) The ACMA may take into account any other matter it considers relevant.

Division 4—Miscellaneous**187KB Commonwealth may make a grant of financial assistance to service providers**

- (1) The Commonwealth may make a grant of financial assistance to a service provider for the purpose of assisting the service provider to comply with the service provider's obligations under this Part.
- (2) The terms and conditions on which that financial assistance is granted are to be set out in a written agreement between the Commonwealth and the service provider.
- (3) An agreement under subsection (2) may be entered into on behalf of the Commonwealth by the Minister.

187L Confidentiality of applications

- (1) If a Communications Access Coordinator receives a service provider's application under section 187E for approval of a data retention implementation plan, or application for a decision under subsection 187K(1), the Coordinator must:
 - (a) treat the application as confidential; and
 - (b) ensure that it is not disclosed to any other person or body (other than another Communications Access Coordinator, the ACMA, an enforcement agency or a security authority) without the written permission of the service provider.
- (1A) If the ACMA receives a service provider's application under section 187KA for review of a decision under subsection 187K(1), the ACMA must:
 - (a) treat the application as confidential; and
 - (b) ensure that it is not disclosed to any other person or body (other than a Communications Access Coordinator, an enforcement agency or a security authority) without the written permission of the service provider.

Section 187LA

- (2) The ACMA, a Communications Access Coordinator, an enforcement agency or a security authority must, if it receives under subsection 187G(1), paragraph 187K(5)(a) or subsection 187KA(3) a copy of a service provider's application:
 - (a) treat the copy as confidential; and
 - (b) ensure that it is not disclosed to any other person or body (other than a Communications Access Coordinator) without the written permission of the service provider.

187LA Application of the *Privacy Act 1988*

- (1) The *Privacy Act 1988* applies in relation to a service provider, as if the service provider were an organisation within the meaning of that Act, to the extent that the activities of the service provider relate to retained data.
- (2) Information that is kept under this Part, or information that is in a document kept under this Part is taken, for the purposes of the *Privacy Act 1988*, to be personal information about an individual if the information relates to:
 - (a) the individual; or
 - (b) a communication to which the individual is a party.

187M Pecuniary penalties and infringement notices

Subsection 187A(1) and paragraph 187D(a) are civil penalty provisions for the purposes of the *Telecommunications Act 1997*.

Note: Parts 31 and 31B of the *Telecommunications Act 1997* provide for pecuniary penalties and infringement notices for contraventions of civil penalty provisions.

187N Review of operation of this Part

- (1) The Parliamentary Joint Committee on Intelligence and Security must review the operation of this Part.
- (1A) The review:

Section 187P

- (a) must start on or before the second anniversary of the end of the implementation phase; and
 - (b) must be concluded on or before the third anniversary of the end of the implementation phase.
- (2) The Committee must give the Minister a written report of the review.
- (3) Until the review is completed, the head (however described) of an enforcement agency must keep:
 - (a) all of the documents that he or she is required to retain under section 185; and
 - (b) all of the information that he or she is required, by paragraphs 186(1)(e) to (k), to include in a report under subsection 186(1);relating to the period starting on the commencement of this Part and ending when the review is completed.
- (4) Until the review is completed, the Director-General of Security must keep:
 - (a) all of the authorisations made under Division 3 of Part 4-1; and
 - (b) all of the information that he or she is required, by paragraphs 94(2A)(c) to (j) of the *Australian Security Intelligence Organisation Act 1979*, to include in a report referred to in subsection 94(1) of that Act;relating to the period starting on the commencement of this Part and ending when the review is completed.
- (5) Subsections (3) and (4) do not limit any other obligation to keep information under this Act or another law.

187P Annual reports

- (1) The Minister must, as soon as practicable after each 30 June, cause to be prepared a written report on the operation of this Part during the year ending on that 30 June.

Section 187P

- (1A) Without limiting the matters that may be included in a report under subsection (1), it must include information about:
 - (a) the costs to service providers of complying with this Part;
and
 - (b) the use of data retention implementation plans approved under Division 2 of this Part.
- (2) A report under subsection (1) must be included in the report prepared under subsection 186(2) relating to the year ending on that 30 June.
- (3) A report under subsection (1) must not be made in a manner that is likely to enable the identification of a person.

Part 5-2—Delivery points

188 Delivery points

- (1) Each carrier must:
- (a) nominate, in respect of a particular kind of telecommunications service of that carrier and in respect of each interception agency, at least one place in Australia as the location of a point from which lawfully intercepted information can most conveniently be transmitted in relation to that interception agency; and
 - (b) inform a Communications Access Coordinator of the place or places nominated for each interception agency.

Note 1: The nominated location becomes a delivery point: see the definition of *delivery point* in subsection 5(1).

Note 2: The definition of *carrier* in subsection 5(1) includes carriage service providers.

Note 3: Delivery points are significant for the interception capability obligations in Part 5-3 and for the delivery capability obligations in Part 5-5.

Disagreement over delivery points

- (2) A Communications Access Coordinator may, at any time, notify a carrier that an interception agency does not agree to the location of a point nominated under subsection (1) by that carrier in respect of a particular kind of telecommunications service and of that interception agency.
- (3) Upon being so notified, the carrier must nominate another location of a point in respect of that kind of telecommunications service and of that interception agency and inform a Communications Access Coordinator.

Note: The nominated location becomes a delivery point: see the definition of *delivery point* in subsection 5(1).

Section 188

- (4) If the location of a point nominated under subsection (3) is still unsatisfactory to the interception agency, a Communications Access Coordinator must:
- (a) inform the carrier to that effect; and
 - (b) refer the disagreement to the ACMA for a determination under subsection (5).
- (5) The ACMA, after hearing the views of the carrier and the views of the interception agency concerning the best location of a point in relation to that kind of telecommunications service and that interception agency, must determine the location of a point for the purposes of this section.

Note: The determined location becomes a delivery point: see the definition of *delivery point* in subsection 5(1).

Factors to be considered in determining delivery points

- (6) In determining the location of a delivery point, the carrier and the interception agency or, failing agreement, the ACMA, must have regard to:
- (a) the configuration of the kind of telecommunications service in respect of which the delivery point is required to be decided; and
 - (b) the relative costs to the carrier and the interception agency of any particular point that is chosen as that delivery point; and
 - (c) the reasonable needs of the interception agency; and
 - (d) the reasonable commercial requirements of the carrier; and
 - (e) the location of any delivery points already existing in relation to that interception agency or other interception agencies.
- (7) It is not a requirement that a place where an interception takes place is the place nominated as the location of a delivery point if, in accordance with the criteria set out in subsection (6), another more suitable location exists.

Changing delivery points

- (8) If:
-

Section 188

- (a) the location of a delivery point has been determined by the ACMA in respect of a particular kind of telecommunications service and of an interception agency; and
- (b) as a result of a material change in the circumstances of the carrier concerned, the location of that point becomes unsuitable;

the carrier:

- (c) may nominate another place as the location of that delivery point in respect of that kind of telecommunications service and of that interception agency; and
- (d) must inform a Communications Access Coordinator of the place so nominated.

Note: The nominated location becomes a delivery point: see the definition of *delivery point* in subsection 5(1).

(9) If:

- (a) the location of a delivery point has been determined by the ACMA in respect of a particular kind of telecommunications service and of an interception agency; and
- (b) as a result of a material change in the circumstances of the interception agency, the location of that point becomes unsuitable; and
- (c) the interception agency, either directly or through a Communications Access Coordinator, requests the carrier to nominate another place as the location of that delivery point;

the carrier must:

- (d) nominate another place as the location of that delivery point in respect of that kind of telecommunications service and of that interception agency; and
- (e) inform a Communications Access Coordinator of the place nominated.

Note: The nominated location becomes a delivery point: see the definition of *delivery point* in subsection 5(1).

- (10) Subsections (2) to (7) apply in relation to a nomination under subsection (8) or (9) as if it were a nomination under subsection (1).

Part 5-3—Interception capability

Division 1—Obligations

189 Minister may make determinations

- (1) The Minister may, by legislative instrument, make determinations in relation to interception capabilities applicable to a specified kind of telecommunications service that involves, or will involve, the use of a telecommunications system.
- (2) A determination:
 - (a) must specify an international standard or guidelines (the *international standard*), or the relevant part of the international standard, on which the determination is based; and
 - (b) must provide for interception capability by adopting, applying or incorporating the whole or a part of the international standard, with only such modifications as are necessary to facilitate the application of the standard or the relevant part of the standard in Australia (including any transitional arrangement in relation to an existing kind of telecommunications service that might be required); and
 - (c) must be accompanied by a copy of the international standard or of the relevant part of the international standard.
- (3) For the purposes of subsection (2), the international standard specified in a determination:
 - (a) must deal primarily with the requirements of interception agencies in relation to the interception of communications passing over a telecommunications network and related matters; and
 - (b) may be a part of an international agreement or arrangement or a proposed international agreement or arrangement.

Section 190

Matters to be taken into account

- (4) Before making a determination under subsection (1), the Minister must take into account:
 - (a) the interests of law enforcement and national security; and
 - (b) the objects of the *Telecommunications Act 1997*; and
 - (c) the privacy of the users of telecommunications systems.
- (5) The Minister may take into account any other matter the Minister considers relevant.

190 Obligations of persons covered by a determination

- (1) If a determination under section 189 applies to a particular kind of telecommunications service that involves, or will involve, the use of a telecommunications system, each carrier supplying that kind of service must comply with the determination.

Note: The definition of *carrier* in subsection 5(1) includes carriage service providers.

- (2) Without limiting subsection (1), if a carrier is required to have interception capability in relation to a particular kind of telecommunications service under the determination, the carrier is required to ensure that the capability is developed, installed and maintained.

Note 1: A person may be exempted from the requirements of this section under a provision of Division 2.

Note 2: The cost of this capability is to be borne by the carriers: see Division 2 of Part 5-6.

191 Obligations of persons not covered by a determination in relation to a kind of telecommunications service

- (1) Each carrier supplying a particular kind of telecommunications service that is not covered by any determination under section 189 but that involves, or will involve, the use of a telecommunications system must ensure that the kind of service or the system has the capability to:

Section 191

- (a) enable a communication passing over the system to be intercepted in accordance with an interception warrant; and
- (b) transmit lawfully intercepted information to the delivery points applicable in respect of that kind of service.

Note: The definition of *carrier* in subsection 5(1) includes carriage service providers.

- (2) Without limiting subsection (1), the obligation under that subsection includes the obligation to ensure that the capability is developed, installed and maintained.

Note 1: A person may be exempted from the requirements of this section under a provision of Division 2.

Note 2: The cost of this capability is to be borne by the carriers: see Division 2 of Part 5-6.

Division 2—Exemptions

192 Communications Access Coordinator may grant exemptions

- (1) A Communications Access Coordinator may exempt a specified person from all or any of the obligations imposed on the person under Division 1 in so far as those obligations relate to a specified kind of telecommunications service.
- (2) The exemption must be in writing.
- (3) The exemption may be:
 - (a) unconditional; or
 - (b) subject to such conditions as are specified in the exemption.
- (4) An exemption given under subsection (1) is not a legislative instrument.
- (5) If:
 - (a) a person applies in writing to a Communications Access Coordinator for an exemption under subsection (1) from all the obligations, or from particular obligations, imposed on the person under Division 1 in so far as those obligations relate to a specified kind of telecommunications service; and
 - (b) a Communications Access Coordinator does not make, and communicate to the applicant, a decision granting, or refusing to grant, the exemption within 60 days after the day on which a Communications Access Coordinator receives the application;a Communications Access Coordinator is taken, at the end of that period of 60 days, to have granted an exemption to the applicant from the obligations to which the application relates in so far as those obligations relate to that kind of telecommunications service.
- (6) An exemption that is taken under subsection (5) to have been granted to a person who applied for an exemption under subsection (1) has effect only until a Communications Access

Section 193

Coordinator makes, and communicates to the person, a decision on the application.

Matters to be taken into account

- (7) Before a Communications Access Coordinator gives an exemption under subsection (1), the Coordinator must take into account:
 - (a) the interests of law enforcement and national security; and
 - (b) the objects of the *Telecommunications Act 1997*.
- (8) The Coordinator may take into account any other matter he or she considers relevant.

193 ACMA may grant exemptions for trial services

- (1) The ACMA may exempt a specified person from all or any of the obligations imposed on the person under Division 1 in so far as those obligations relate to a kind of telecommunications service that is a trial service.
- (2) The ACMA must not grant an exemption unless the ACMA, after consulting any interception agencies that the ACMA considers appropriate, is satisfied that the exemption is unlikely to create a risk to national security or law enforcement.
- (3) The exemption must be in writing.
- (4) The exemption may be:
 - (a) unconditional; or
 - (b) subject to such conditions as are specified in the exemption.
- (5) An exemption given under subsection (1) is not a legislative instrument.

Part 5-4—Interception capability plans

195 Nature of an interception capability plan

- (1) An interception capability plan (***IC plan***) of a carrier or nominated carriage service provider is a written instrument that complies with subsections (2) and (3).

Matters to be included in the instrument

- (2) The instrument must set out:
- (a) a statement of the policies of the carrier or provider in relation to interception generally and of its strategies for compliance with its legal obligation to provide interception capabilities in relation to a particular kind of telecommunications service that involves, or will involve, the use of a telecommunications system; and
 - (b) a statement of the compliance by the carrier or provider with that legal obligation; and
 - (c) a statement of any relevant developments in the business of the carrier or provider that are proposed within the period of 5 years from the start of the plan and that, if implemented, are likely to affect those interception capabilities; and
 - (d) a statement of the locations at which communications passing over a telecommunications system are intercepted or proposed to be intercepted by the carrier or provider; and
 - (e) a list of employees of the carrier or provider with responsibility for interception and other related matters; and
 - (f) the matters determined by the Minister under subsection (4).

Approval of instrument

- (3) The instrument must be approved by the chief executive officer (however described) of the carrier or provider or by a person authorised in writing by that officer for the purposes of this subsection to approve the instrument.

Section 196

Ministerial determination

- (4) The Minister may, by legislative instrument, determine matters for the purposes of paragraph (2)(f).
- (5) The Minister must consult the ACMA before making a determination under subsection (4).

IC plans are not legislative instruments

- (6) An instrument made under subsection (1) is not a legislative instrument.

196 Time for giving IC plans by carriers

- (1) A carrier must give an IC plan to a Communications Access Coordinator by:
 - (a) each 1 July; or
 - (b) if a Communications Access Coordinator agrees to a later day instead of a particular 1 July—that later day.

Note: If the business plans of the carrier change, the carrier may be required to give a Communications Access Coordinator another IC plan under section 201.

- (2) A Communications Access Coordinator must inform the ACMA of any agreement under paragraph (1)(b).

Further rule for future carriers

- (3) If the carrier became a carrier on a day (the **start day**) after the commencement of this section, the carrier must also give an IC plan to a Communications Access Coordinator within 90 days after the start day.

197 Time for giving IC plans by nominated carriage service providers

- (1) A nominated carriage service provider must give an IC plan to a Communications Access Coordinator by:

Section 198

- (a) each 1 July; or
- (b) if a Communications Access Coordinator agrees to a later day instead of a particular 1 July—that later day.

Note: If the business plans of the nominated carriage service provider change, the provider may be required to give a Communications Access Coordinator another IC plan under section 201.

- (2) A Communications Access Coordinator must inform the ACMA of any agreement under paragraph (1)(b).

Further rule for future nominated carriage service providers

- (3) If the carriage service provider became a nominated carriage service provider on a day (the **start day**) after the commencement of this section, the provider must also give an IC plan to a Communications Access Coordinator within 90 days after the start day.

Ministerial declaration

- (4) For the purposes of this Part and Part 5-4A, the Minister may, by writing, declare a carriage service provider to be a nominated carriage service provider.
- (5) A declaration made under subsection (4) is not a legislative instrument.

198 Consideration of IC plans

- (1) If a carrier or a nominated carriage service provider gives a Communications Access Coordinator an IC plan under section 196, 197 or 201, or an amended IC plan under this section, a Communications Access Coordinator must, within 60 days of the plan being received:
 - (a) approve the plan and notify the carrier or provider of the approval; or
 - (b) give the plan back to the carrier or provider with a written request for the carrier or provider to give a Communications

Section 198

Access Coordinator an amended IC plan to take account of specified matters.

Consultation with interception agencies and the ACMA

- (2) As soon as practicable after receiving an IC plan (the **original plan**) under section 196, 197 or 201, a Communications Access Coordinator must:
- (a) give a copy of the plan to:
 - (i) the interception agencies that, in the opinion of a Communications Access Coordinator, are likely to be interested in the plan; and
 - (ii) the ACMA; and
 - (b) invite each such interception agency to provide comments on the plan to a Communications Access Coordinator.

Request for amendment of original plan

- (3) If:
- (a) a Communications Access Coordinator receives a comment from an interception agency requesting an amendment of the original plan; and
 - (b) a Communications Access Coordinator considers the request to be a reasonable one;
- a Communications Access Coordinator must:
- (c) give the carrier or provider a copy of the comment or a summary of the comment; and
 - (d) request that the carrier or provider respond to the comment or summary within the period (the **response period**) of 30 days of receiving the comment or summary.

Response to request for amendment of original plan

- (4) The carrier or provider must respond to a request for an amendment of the original plan either:
- (a) by indicating its acceptance of the request, by amending the original plan appropriately and by giving the amended plan

Section 198

- to a Communications Access Coordinator within the response period; or
- (b) by indicating that it does not accept the request and providing its reasons for that non-acceptance.

The ACMA's role

- (5) If the carrier or provider indicates that it does not accept a request for an amendment of the original plan, a Communications Access Coordinator must:
 - (a) refer the request and the carrier's or provider's response to the ACMA; and
 - (b) request the ACMA to determine whether any amendment of the original plan is required.
- (6) The ACMA must then:
 - (a) determine in writing that no amendment of the original plan is required in response to the request for the amendment; or
 - (b) if, in the opinion of the ACMA:
 - (i) the request for the amendment is a reasonable one; and
 - (ii) the carrier's or provider's response to the request for the amendment is not reasonable;determine in writing that the original plan should be amended in a specified manner and give a copy of the determination to the carrier or provider.

Amendment of original plan

- (7) On receipt of a determination under paragraph (6)(b), the carrier or provider must:
 - (a) amend the original plan to take account of that determination; and
 - (b) give the amended plan to a Communications Access Coordinator.

Section 199

ACMA determination not a legislative instrument

- (8) A determination made under subsection (6) is not a legislative instrument.

199 Commencement of IC plans

An IC plan of a carrier or nominated carriage service provider:

- (a) comes into force on the day the carrier or provider is notified by a Communications Access Coordinator that the plan has been approved; and
- (b) continues in force until the day the carrier or provider is notified by a Communications Access Coordinator that another IC plan of the carrier or provider has been approved.

200 Compliance with IC plans

During the period that an IC plan of a carrier or nominated carriage service provider is in force, the carrier or provider must ensure that its business activities are consistent with the plan.

201 Consequences of changed business plans

- (1) If, because of changes to the business plans of a carrier or nominated carriage service provider, an IC plan given by that carrier or provider ceases, during the period before another such IC plan is due to be given, to constitute an adequate IC plan of that carrier or provider, the carrier or provider must:
 - (a) prepare a new IC plan having regard to those changed business plans; and
 - (b) give the new IC plan to a Communications Access Coordinator as soon as practicable.

Note: The new IC plan is subject to consideration in accordance with section 198.

- (2) Subsection (1) applies only if the change in business plans has, or is likely to have, a material adverse effect on the ability of the carrier or provider to comply with its obligations under Part 5-3.

202 Confidential treatment of IC plans

Once a Communications Access Coordinator, the ACMA or an interception agency receives an IC plan of a carrier or nominated carriage service provider, the Coordinator, the ACMA or the interception agency:

- (a) must treat the plan as confidential; and
- (b) must ensure that it is not disclosed to any person or body not referred to in this section without the written permission of the carrier or provider.

Section 202A

Part 5-4A—Requirement arising from proposed changes

202A Purpose of Part

The purpose of this Part is:

- (a) to require carriers and nominated carriage service providers to give notice of the particulars of any change that is proposed in relation to a telecommunications service or a telecommunications system, whose implementation may affect the capacity of the carrier or provider to comply with its obligations under:
 - (i) this Act; or
 - (ii) section 313 of the *Telecommunications Act 1997*; and
- (b) to allow a Communications Access Coordinator to notify agencies of such proposed changes.

202B Carrier or provider to notify of proposed change

- (1) This section applies if, at any time, a carrier or a nominated carriage service provider becomes aware that the implementation by the carrier or provider of a change that is proposed to a telecommunications service or a telecommunications system is likely to have a material adverse effect on the capacity of the carrier or provider to comply with its obligations under:
 - (a) this Act; or
 - (b) section 313 of the *Telecommunications Act 1997*.
- (2) A change to a telecommunications service or a telecommunications system includes (but is not limited to) the following:
 - (a) the carrier or carriage service provider providing one or more new telecommunication services;
 - (b) the carrier or carriage service provider changing the location of notifiable equipment (including moving equipment outside Australia);

Section 202B

- (c) the carrier or carriage service provider procuring notifiable equipment (including procuring equipment that is located outside Australia);
 - (d) the carrier or carriage service provider entering into outsourcing arrangements:
 - (i) to have all or part of the telecommunication services provided for the carrier or provider; or
 - (ii) to have all or part of the provision of telecommunication services managed for the carrier or provider; or
 - (iii) to have all or some information to which section 276 of the *Telecommunications Act 1997* applies in relation to the carrier or provider, managed for the carrier or provider;
 - (e) the carrier or carriage service provider entering into arrangements to have all or some information to which section 276 of the *Telecommunications Act 1997* applies in relation to the carrier or provider accessed by persons outside Australia.
- (3) The carrier or provider must notify a Communications Access Coordinator, in writing, of its intention to implement the proposed change.
- (4) A notification provided under subsection (3) must include a description of the proposed change.
- (5) After notifying a Communications Access Coordinator of a proposed change, the carrier or provider may implement the change if the carrier or provider has not been notified in writing by a Communications Access Coordinator within 30 days after the day the carrier or provider notifies a Communications Access Coordinator of the proposed change.
- (6) If:
- (a) a Communications Access Coordinator notifies the carrier or provider in writing within 30 days after the day the carrier or provider notifies a Communications Access Coordinator of the proposed change; and

Section 202C

- (b) within 30 days after a Communications Access Coordinator so notifies the carrier or provider, a Communications Access Coordinator makes a determination under section 203 that applies to the carrier or provider;
the carrier or provider must not implement the proposed change until the carrier or provider has complied with the determination.
- (7) To avoid doubt, subsection (6) does not prevent a Communications Access Coordinator from making a determination under section 203, that applies to the carrier or provider, more than 30 days after a Communications Access Coordinator first notifies the carrier or provider in writing as mentioned in paragraph (6)(a).

202C Communications Access Coordinator may notify agencies

- (1) After a Communications Access Coordinator has been notified by a carrier or nominated carriage service provider of an intention to implement a proposed change, a Communications Access Coordinator may notify agencies that are likely to be interested of the proposed change.
- (2) On receiving notification from a carrier or provider of an intention to implement a proposed change, a Communications Access Coordinator, and each agency that receives notification of the proposed change, must treat the proposed change as confidential.

Part 5-5—Delivery capability

203 Communications Access Coordinator may make determinations

- (1) A Communications Access Coordinator may, by writing, make determinations in relation to delivery capabilities applicable in relation to:
- (a) a specified kind of telecommunications service that involves, or will involve, the use of a telecommunications system and that is supplied by one or more specified carriers; and
 - (b) one or more specified interception agencies.
- Note 1: The definition of *carrier* in subsection 5(1) includes carriage service providers.
- Note 2: For specification by class, see subsection 33(3AB) of the *Acts Interpretation Act 1901*.
- Note 3: A determination may make different provision with respect to different matters or different classes of matters (see subsection 33(3A) of the *Acts Interpretation Act 1901*).
- (2) A determination under subsection (1) must relate to all or any of the following:
- (a) the format in which lawfully intercepted information is to be delivered to an interception agency from the delivery point in respect of a kind of telecommunications service and of that interception agency;
 - (b) the place to which, and manner in which, that information is to be delivered;
 - (c) any ancillary information that should accompany that information.
- (3) A Communications Access Coordinator must consult the ACMA before a determination is made under subsection (1).
- (4) A determination made under subsection (1) is not a legislative instrument.

Section 204

204 Obligations of persons covered by a determination

- (1) If a determination under section 203 applies:
- (a) to a particular kind of telecommunications service that involves, or will involve, the use of a telecommunications system; and
 - (b) to a carrier;
- the carrier must comply with the determination.

Note: The definition of *carrier* in subsection 5(1) includes carriage service providers.

- (2) Without limiting subsection (1), if a carrier is required to have delivery capability in relation to a particular kind of telecommunications service under the determination, the carrier is required to ensure that the capability is developed, installed and maintained.

Note: The cost of this capability is to be borne by the interception agencies: see Division 3 of Part 5-6.

205 Obligations of persons not covered by a determination in relation to a kind of telecommunications service

- (1) Each carrier supplying a particular kind of telecommunications service that is not covered by any determination under section 203 but that involves, or will involve, the use of a telecommunications system must ensure that the kind of service or the system has a delivery capability.

Note: The definition of *carrier* in subsection 5(1) includes carriage service providers.

- (2) Without limiting subsection (1), the obligation under that subsection includes the obligation to ensure that the capability is developed, installed and maintained.

Note: The cost of this capability is to be borne by the interception agencies: see Division 3 of Part 5-6.

Part 5-6—Allocation of costs

Division 1—Outline of Part

206 Outline of Part

- (1) Division 2 provides that the cost of developing, installing and maintaining an interception capability imposed on a carrier under Part 5-3 is to be borne by the carrier.
- (2) Division 3 provides that the cost of developing, installing and maintaining a delivery capability imposed on a carrier under Part 5-5 is to be borne by the interception agencies.

Note: This Part does not deal with the allocation of costs in relation to carriers complying with authorisations under Division 3 or 4 of Part 4-1. Section 314 of the *Telecommunications Act 1997* deals with this matter.

Division 2—Interception capability

207 Costs to be borne by the carriers

The capital and ongoing costs of developing, installing and maintaining a capability imposed on a carrier under section 190 or 191 in respect of a particular kind of telecommunications service are to be borne by the carrier.

Note: The definition of *carrier* in subsection 5(1) includes carriage service providers.

Division 3—Delivery capability

208 Costs to be borne by the interception agencies

The capital and ongoing costs, worked out in accordance with section 209, of developing, installing and maintaining a delivery capability imposed on a carrier under Part 5-5 in respect of a particular kind of telecommunications service are to be borne by the interception agency concerned.

Note: The definition of *carrier* in subsection 5(1) includes carriage service providers.

209 Working out costs of delivery capabilities

- (1) Each carrier who is obliged to ensure the development, installation and maintenance of a delivery capability must ensure that the capability is developed, installed and maintained on such terms and conditions:
 - (a) as are agreed in writing between the carrier and the interception agency concerned; or
 - (b) in the absence of such an agreement—as are determined in writing by the ACMA.
- (2) The terms and conditions on which a carrier is to provide a delivery capability must be consistent with the following principles:
 - (a) the principle that the most cost effective means of ensuring the development, installation and maintenance of that capability is employed;
 - (b) the principle that the carrier is to incur the costs (whether of a capital nature or otherwise) relating to the development, installation and maintenance of that capability;
 - (c) the principle that the carrier may, over time, recover from an interception agency such of those costs as are required, under section 208, to be borne by that interception agency.

Section 209

- (3) Nothing in subsection (2) prevents a carrier from entering into an agreement with more than one interception agency.
- (4) The agreement should also provide that if the working out of the costs to a particular interception agency of developing, installing and maintaining a delivery capability is the subject of a disagreement between the carrier and that interception agency:
 - (a) the interception agency may request the ACMA to arbitrate the matter; and
 - (b) if it does so, those costs are to be as determined by the ACMA.
- (5) The regulations may make provision in relation to the conduct of an arbitration by the ACMA under this section.
- (6) The existence of a cost dispute in relation to a delivery capability does not affect the obligations of the carrier in respect of that capability while that dispute is being resolved.
- (7) If, as a result of the arbitration of a cost dispute between the carrier and an interception agency, the ACMA concludes that a lesser rate of charge would have been available, the carrier:
 - (a) must allow the interception agency credit for any costs already charged to the extent that they were worked out at a rate that exceeds that lesser rate; and
 - (b) must adjust its means of working out future costs; to take account of that conclusion.
- (8) For the purposes of this section, any reference in this section to terms and conditions agreed between a carrier and an interception agency includes a reference to terms and conditions agreed between the carrier and:
 - (a) in the case of an interception agency of a State—the State, on behalf of the interception agency; and
 - (b) in the case of an interception agency of the Commonwealth—the Commonwealth, on behalf of the interception agency.

Section 210

- (9) A determination made under paragraph (1)(b) is not a legislative instrument.

210 Examination of lower cost options

- (1) In undertaking an arbitration under section 209, the ACMA may on its own initiative or at the request of an interception agency, by notice in writing given to a carrier, require the carrier:
- (a) to examine, at the expense of the carrier, the possibility of a lower cost option than the one designated by the carrier for providing a delivery capability; and
 - (b) to report to the ACMA, within a period specified in the notice, on the results of that examination.
- (2) If a carrier receives a notice under subsection (1), the carrier must, within the period specified in the notice:
- (a) carry out the examination concerned; and
 - (b) report in writing to the ACMA on the results of the examination.
- (3) A notice given under subsection (1) is not a legislative instrument.

211 ACMA may require independent audit of costs

- (1) In undertaking an arbitration under section 209, the ACMA may, by notice in writing, require a carrier to arrange for an audit of the costs claimed to have been incurred by the carrier in relation to the provision to an interception agency of a delivery capability.
- (2) Subject to subsection (3), the audit is to be carried out by an auditor selected by the carrier and approved by the ACMA.
- (3) If the auditor selected by a carrier is not approved by the ACMA, the ACMA may require that the audit be carried out by an auditor selected by the ACMA or by the ACMA itself.
- (4) Unless the audit is carried out by the ACMA itself, the ACMA may, in the notice requiring the audit, specify the period within which the auditor is to report to the ACMA.

Section 211

- (5) If a carrier receives a notice under this section, the carrier:
 - (a) must co-operate in full with the person or body carrying out the audit; and
 - (b) must bear the costs of the audit.
- (6) A notice given under this section is not a legislative instrument.

Chapter 6—Miscellaneous

Part 6-1—Miscellaneous

298 Protection of persons—control order declared to be void

- (1) If:
- (a) a warrant was issued on the basis that an interim control order was in force; and
 - (b) a court subsequently declares the interim control order to be void;
- a criminal proceeding does not lie against a person in respect of anything done, or omitted to be done, in good faith by the person:
- (c) in the purported execution of the warrant; or
 - (d) in the purported exercise of a power, or the purported performance of a function or duty, in a case where the purported exercise of the power, or the purported performance of the function or duty, is consequential on the warrant.
- (2) Subsection (1) does not apply to a thing done, or omitted to be done, at a particular time if, at that time, the person knew, or ought reasonably to have known, of the declaration.

299 Dealing with information obtained under a warrant—control order declared to be void

Scope

- (1) This section applies if:
- (a) a warrant was issued on the basis that an interim control order was in force; and
 - (b) a court subsequently declares the interim control order to be void; and

Section 299A

- (c) before the declaration was made, information was obtained as a result of:
 - (i) the purported execution of the warrant; or
 - (ii) the purported exercise of a power, or the purported performance of a function or duty, in a case where the purported exercise of the power, or the purported performance of the function or duty, is consequential on the warrant.

Dealing

- (2) A person may:
 - (a) communicate the information to another person; or
 - (b) make use of the information; or
 - (c) make a record of the information; or
 - (d) give the information in evidence in a proceeding;if:
 - (e) the person reasonably believes that doing so is necessary to assist in preventing, or reducing the risk, of:
 - (i) the commission of a terrorist act; or
 - (ii) serious harm to a person; or
 - (iii) serious damage to property; or
 - (f) the person does so for one or more purposes connected with a preventative detention order law.

Definition

- (3) In this section:

serious harm has the same meaning as in the *Criminal Code*.

299A Schedule 1

Schedule 1 has effect.

Section 300

300 Regulations

The Governor-General may make regulations, not inconsistent with this Act, prescribing matters:

- (a) required or permitted by this Act to be prescribed; or
- (b) necessary or convenient to be prescribed for carrying out or giving effect to this Act.

Clause 1

Schedule 1—International production orders

Note: See section 299A.

Part 1—Introduction

1 Simplified outline of this Schedule

- This Schedule provides for a scheme to facilitate cooperation in law enforcement matters between Australia and each foreign country that is a party to a designated international agreement.
- The scheme deals with electronic information held by, or under the control of, prescribed communications providers.
- The scheme has the following components:
 - (a) the issue under this Schedule of international production orders that are directed to prescribed communications providers;
 - (b) in a case where a corresponding order is issued by a competent authority of a foreign country in accordance with a designated international agreement—the exemption of acts or things done in compliance with such an order from Commonwealth laws restricting interception or disclosure.
- The scheme extends to matters outside Australia.
- An international production order may be issued for purposes in connection with:
 - (a) the investigation of an offence of a serious nature; or
 - (b) the monitoring of a person subject to a Part 5.3 supervisory order, so as to achieve a Part 5.3 object; or
 - (c) the carrying out by the Organisation of its functions.

Clause 2

- There are 3 types of international production orders:
 - (a) international production orders relating to interception; and
 - (b) international production orders relating to stored communications; and
 - (c) international production orders relating to telecommunications data.

2 Definitions

In this Schedule:

access, when used in relation to material, includes:

- (a) access that is subject to a pre-condition (for example, the use of a password); and
- (b) access by way of push technology; and
- (c) access by way of a standing request.

account includes:

- (a) a free account; and
- (b) a pre-paid account; and
- (c) anything that may reasonably be regarded as the equivalent of an account.

ASIO official means:

- (a) the Director-General of Security; or
- (b) a Deputy Director-General of Security; or
- (c) an ASIO employee; or
- (d) an ASIO affiliate.

Attorney-General's Department means the Department administered by the Attorney-General.

Australian Designated Authority means the Secretary of the Attorney-General's Department.

based in a foreign country has the meaning given by clause 10A.

Clause 2

certified copy:

- (a) in relation to an international production order issued under clause 30—has the meaning given by clause 174; or
- (b) in relation to an international production order issued under clause 39—has the meaning given by clause 175; or
- (c) in relation to an international production order issued under clause 48—has the meaning given by clause 176; or
- (d) in relation to an international production order issued under clause 60—has the meaning given by subclause 177(2); or
- (e) in relation to an international production order issued under clause 69—has the meaning given by subclause 177(4); or
- (f) in relation to an international production order issued under clause 78—has the meaning given by subclause 177(6); or
- (g) in relation to an international production order issued under clause 89—has the meaning given by subclause 178(2); or
- (h) in relation to an international production order issued under clause 98—has the meaning given by subclause 178(4); or
- (i) in relation to an international production order issued under clause 107—has the meaning given by subclause 178(6).

designated international agreement has the meaning given by clause 3.

eligible Judge has the meaning given by clause 14.

eligible position-holder means an ASIO employee, or an ASIO affiliate, who holds, or is acting in, a position in the Organisation that is equivalent to or higher than a position occupied by an Executive Level 2 APS employee.

general electronic content service has the meaning given by clause 8.

general electronic content service provider means a person who provides a general electronic content service to the public or a section of the public.

Clause 2

individual message/call application service means a message/call application service to the extent to which the service is provided using a particular telecommunications identifier.

individual transmission service means a transmission service to the extent to which the service is supplied using a particular telecommunications identifier.

intended recipient of a communication has the meaning given by clause 11.

intercept means:

- (a) record; or
- (b) live stream to a single destination.

international production order means an international production order issued under this Schedule.

issuing authority means a person:

- (a) in respect of whom an appointment is in force under clause 16; and
- (b) in relation to an international production order applied for by the National Anti-Corruption Commission—who is a superior Court Judge.

manager of a prescribed communications provider means:

- (a) the chief executive officer (however described) of the provider; or
- (b) any other individual who is involved in the management of the provider.

material means material:

- (a) whether in the form of text; or
- (b) whether in the form of data; or
- (c) whether in the form of speech, music or other sounds; or
- (d) whether in the form of visual images (moving or otherwise); or
- (e) whether in the form of signals; or

Clause 2

- (f) whether in any other form; or
- (g) whether in any combination of forms.

meets the enforcement threshold has the meaning given by clause 125.

member of staff of the Attorney-General's Department means:

- (a) the Secretary of the Attorney-General's Department; or
- (b) an APS employee in that Department.

message means a message:

- (a) whether in the form of text; or
- (b) whether in the form of data; or
- (c) whether in the form of speech, music or other sounds; or
- (d) whether in the form of visual images (animated or otherwise); or
- (e) whether in the form of signals; or
- (f) whether in any other form; or
- (g) whether in any combination of forms.

message application service has the meaning given by clause 4.

message/call application service means:

- (a) a message application service; or
- (b) a voice call application service; or
- (c) a video call application service.

message/call application service provider means a person who provides a message/call application service to the public or a section of the public.

network entity means a person who owns or operates a telecommunications network that is used to supply a transmission service to the public or a section of the public.

nominated ART Intelligence and Security member means a member of the Administrative Review Tribunal in respect of whom

Clause 2

a nomination is in force under clause 17 to issue international production orders under Part 4 of this Schedule.

nominated ART member means a member of the Administrative Review Tribunal in respect of whom a nomination is in force under clause 15 to issue international production orders under Division 2 of Part 2, and Division 2 of Part 3, of this Schedule.

operates in a foreign country has the meaning given by clause 10A.

Part 5.3 IPO agency means a Part 5.3 warrant agency to the extent that the agency applies for warrants issued in relation to Part 5.3 supervisory orders in force in relation to persons.

posted on a general electronic content service has the meaning given by clause 9.

prescribed communications provider means:

- (a) a network entity; or
- (b) a transmission service provider; or
- (c) a message/call application service provider; or
- (d) a storage/back-up service provider; or
- (e) a general electronic content service provider.

protected information means:

- (a) information obtained in accordance with an international production order; or
- (b) information about any of the following:
 - (i) an application for an international production order;
 - (ii) the issue of an international production order;
 - (iii) the existence or non-existence of an international production order;
 - (iv) compliance or non-compliance with an international production order;
 - (v) the revocation of an international production order;
 - (vi) the cancellation of an international production order.

Clause 2

relevant agency means:

- (a) an interception agency; or
- (b) a criminal law-enforcement agency; or
- (c) an enforcement agency; or
- (d) a Part 5.3 IPO agency.

relevant statistics, in relation to applications of a particular kind, means the following statistics:

- (a) how many applications of that kind were made;
- (b) how many applications of that kind were withdrawn;
- (c) how many applications of that kind were refused;
- (d) how many international production orders were issued in response to applications of that kind.

senior position-holder has the same meaning as in the *Australian Security Intelligence Organisation Act 1979*.

serious category 1 offence means:

- (a) an offence that is punishable by a maximum term of imprisonment of 3 years or more; or
- (b) an offence that is punishable by imprisonment for life.

Note: For the definition of **offence**, see section 5.

serious category 2 offence means:

- (a) a serious offence (see section 5D); or
- (b) an offence that is punishable by a maximum term of imprisonment of 7 years or more; or
- (c) an offence that is punishable by imprisonment for life.

Note: For the definition of **offence**, see section 5.

service includes a website. This definition does not apply to the definition of **transmission service**.

statutory requirements certificate means a certificate under subclause 3B(2).

storage/back-up service has the meaning given by clause 7.

Clause 2

storage/back-up service provider means a person who provides a storage/back-up service to the public or a section of the public.

stored communication means:

- (a) a communication that:
 - (i) has been carried by a transmission service; and
 - (ii) is not being carried by a transmission service; and
 - (iii) is held on equipment that is operated by, and is in the possession of, the transmission service provider who supplied the transmission service; or
- (b) a communication that:
 - (i) has been carried by a transmission service; and
 - (ii) is not being carried by a transmission service; and
 - (iii) is held on equipment that is operated by, and is in the possession of, the network entity who owns or operates a telecommunications network used to supply the transmission service; or
- (c) a message that:
 - (i) has been sent or received using a message/call application service provided by a message/call application service provider; and
 - (ii) is held on equipment that is operated by, and is in the possession of, the message/call application service provider; or
- (d) a recording of a voice call that:
 - (i) has been made or received using a message/call application service provided by a message/call application service provider; and
 - (ii) is held on equipment that is operated by, and is in the possession of, the message/call application service provider; or
- (e) a recording of a video call that:
 - (i) has been made or received using a message/call application service provided by a message/call application service provider; and

Clause 2

- (ii) is held on equipment that is operated by, and is in the possession of, the message/call application service provider; or
- (f) material that:
 - (i) has been uploaded by an end-user for storage or back-up by a storage/back-up service provided by a storage/back-up service provider; and
 - (ii) is held on equipment that is operated by, and is in the possession of, the storage/back-up service provider; or
- (g) material that:
 - (i) is accessible to, or deliverable to, one or more of the end-users using a general electronic content service provided by a general electronic content service provider; and
 - (ii) is held on equipment that is operated by, and is in the possession of, the general electronic content service provider.

telecommunications data:

- (a) when used in relation to a communication carried by an individual transmission service—means information about the communication (other than information that is the contents or substance of the communication); or
- (b) when used in relation to an individual transmission service—means information about the individual transmission service; or
- (c) when used in relation to a message sent or received using an individual message/call application service—means information about the message (other than information that is the contents or substance of the message); or
- (d) when used in relation to a voice call made or received using an individual message/call application service—means information about the voice call (other than information that is the contents or substance of the voice call); or
- (e) when used in relation to a video call made or received using an individual message/call application service—means

Clause 2

information about the video call (other than information that is the contents or substance of the video call); or

- (f) when used in relation to an individual message/call application service—means information about the individual message/call application service; or
- (g) when used in relation to material that has been uploaded by an end-user for storage or back-up by a storage/back-up service—means information about the material (other than information that is the content or substance of the material); or
- (h) when used in relation to an account that a person has with a storage/back-up service—means information relating to the account; or
- (i) when used in relation to material that has been posted on a general electronic content service—means information about the material (other than information that is the content or substance of the material); or
- (j) when used in relation to an account that a person has with a general electronic content service—means information relating to the account; or
- (k) when used otherwise than in relation to a matter or thing mentioned in any of the preceding paragraphs—means:
 - (i) information about a communication carried by an individual transmission service (other than information that is the contents or substance of the communication); or
 - (ii) information about an individual transmission service; or
 - (iii) information about a message sent or received using an individual message/call application service (other than information that is the contents or substance of the message); or
 - (iv) information about a voice call made or received using an individual message/call application service (other than information that is the contents or substance of the voice call); or

Clause 2

- (v) information about a video call made or received using an individual message/call application service (other than information that is the contents or substance of the video call); or
- (vi) information about an individual message/call application service; or
- (vii) information about material that has been uploaded by an end-user for storage or back-up by a storage/back-up service (other than information that is the content or substance of the material); or
- (viii) information relating to an account that a person has with a storage/back-up service; or
- (ix) information about material that has been posted on a general electronic content service (other than information that is the content or substance of the material); or
- (x) information relating to an account that a person has with a general electronic content service.

telecommunications identifier means:

- (a) the address or identifier used by a network entity or a transmission service provider for the purposes of:
 - (i) directing a communication to its intended destination; or
 - (ii) identifying the origin of a communication; or
- (b) the address or identifier used by a message/call application service provider for the purposes of:
 - (i) directing a message to its intended destination; or
 - (ii) identifying the origin of a message; or
- (c) the address or identifier used by a message/call application service provider for the purposes of:
 - (i) directing a voice call to its intended destination; or
 - (ii) identifying the origin of a voice call; or
- (d) the address or identifier used by a message/call application service provider for the purposes of:
 - (i) directing a video call to its intended destination; or
 - (ii) identifying the origin of a video call;

Clause 2

and includes (for example):

- (e) a telephone number; and
- (f) a unique identifier for a device (for example, an electronic serial number or a Media Access Control address); and
- (g) a user account identifier; and
- (h) an internet protocol address; and
- (i) an email address.

telecommunications network means a system, or series of systems, that carries, or is capable of carrying, communications by means of guided and/or unguided electromagnetic energy.

telephone application means an application made by telephone for an international production order.

telephone number includes a mobile telephone number.

transmission service means a service for carrying communications by means of guided and/or unguided electromagnetic energy.

transmission service provider means a person who supplies a transmission service to the public or a section of the public.

uploaded has a meaning affected by clause 10.

urgent circumstances has a meaning affected by clause 17A.

use has a meaning affected by clause 12.

video call includes a video call that has an audio component.

video call application service has the meaning given by clause 6.

voice call includes a call that involves a recorded or synthetic voice.

voice call application service has the meaning given by clause 5.

Clause 3

3 Designated international agreement

Bilateral agreement

- (1) For the purposes of this Schedule, if:
- (a) there is an agreement between Australia and a foreign country; and
 - (b) a copy of the English text of the agreement is set out in the regulations; and
 - (c) the agreement has entered into force for Australia and the foreign country;
- then:
- (d) if the agreement is affected by an amendment, where:
 - (i) a copy of the English text of the amendment is set out in the regulations; and
 - (ii) the amendment has entered into force for Australia and the foreign country;the agreement, as affected by such an amendment, is a ***designated international agreement***; or
 - (e) if paragraph (d) does not apply—the agreement is a ***designated international agreement***.

Note: An agreement mentioned in paragraph (a) is a treaty to which Australia is a party. Proposed treaty actions, such as amendments of treaties and extensions of the duration of treaties, are subject to Australia's treaty-making process. In 2021, the parliamentary scrutiny process for proposed treaty actions included tabling in both Houses of the Parliament and consideration by the Joint Standing Committee on Treaties.

- (1A) If:
- (a) there is an agreement between Australia and a foreign country; and
 - (b) the agreement deals with (among other things) the issue of orders (however described) by a competent authority (however described) of the foreign country;
- a copy of the English text of the agreement must not be set out in regulations made for the purposes of paragraph (1)(b) unless a

Clause 3

statutory requirements certificate is in force under clause 3B in relation to the foreign country and the agreement.

(2) If:

- (a) there is an agreement between Australia and a foreign country; and
- (b) the agreement deals with (among other things) the issue of orders (however described) by a competent authority (however described) of the foreign country; and
- (c) one or more offences against the law of the foreign country are death penalty offences;

a copy of the English text of the agreement must not be set out in regulations made for the purposes of paragraph (1)(b) unless the Minister has received a written assurance from the government of the foreign country, relating to the use or non-use of Australian-sourced information obtained by virtue of the agreement, in connection with any proceeding by way of a prosecution for a death penalty offence in the foreign country. For the purposes of this subclause, information is obtained by virtue of the agreement if it is obtained in accordance with such an order.

Note 1: For *Australian-sourced information*, see subclause (8).

Note 2: For *death penalty offence*, see subclause (7A).

Multilateral agreement

(3) For the purposes of this Schedule, if:

- (a) there is an agreement between Australia and 2 or more foreign countries; and
- (b) a copy of the English text of the agreement is set out in the regulations; and
- (c) the agreement has entered into force for Australia;

then:

- (d) if the agreement is affected by an amendment, where:
 - (i) a copy of the English text of the amendment is set out in the regulations; and
 - (ii) the amendment has entered into force for Australia;

Clause 3

the agreement, as affected by such an amendment, is a ***designated international agreement***; or

- (e) if paragraph (d) does not apply—the agreement is a ***designated international agreement***.

Note: An agreement mentioned in paragraph (a) is a treaty to which Australia is a party. Proposed treaty actions, such as amendments of treaties and extensions of the duration of treaties, are subject to Australia's treaty-making process. In 2021, the parliamentary scrutiny process for proposed treaty actions included tabling in both Houses of the Parliament and consideration by the Joint Standing Committee on Treaties.

- (4) If there is an agreement between Australia and 2 or more foreign countries, the regulations may declare that one or more of those foreign countries are ***recognised parties*** to the agreement for the purposes of this Schedule.

(4A) If:

- (a) there is an agreement between Australia and 2 or more foreign countries; and
- (b) the agreement deals with (among other things) the issue of orders (however described) by a competent authority (however described) of each of the foreign countries;

a foreign country that is a party to the agreement must not be declared under subclause (4) unless a statutory requirements certificate is in force under clause 3B in relation to the foreign country and the agreement.

(5) If:

- (a) there is an agreement between Australia and 2 or more foreign countries; and
- (b) the agreement deals with (among other things) the issue of orders (however described) by a competent authority (however described) of each of the foreign countries; and
- (c) one or more offences against the law of one or more of those foreign countries are death penalty offences;

a foreign country covered by paragraph (c) must not be declared under subclause (4) unless the Minister has received a written

Clause 3

assurance from the government of the foreign country, relating to the use or non-use of Australian-sourced information obtained by virtue of the agreement, in connection with any proceeding by way of a prosecution for a death penalty offence in the foreign country. For the purposes of this subclause, information is obtained by virtue of the agreement if it is obtained in accordance with such an order.

Note 1: For *Australian-sourced information*, see subclause (8).

Note 2: For *death penalty offence*, see subclause (7A).

(6) If:

(a) apart from this subclause, there is a designated international agreement between Australia and one or more foreign countries; and

(b) one or more of those foreign countries are not recognised parties to the agreement;

this Schedule (other than subclauses (3) and (4)) has effect as if those foreign countries were not parties to the agreement.

Note: For *recognised parties*, see subclause (4).

Announcement by Minister

(7) The Minister must announce, by notifiable instrument, the day an agreement mentioned in subclause (1) or (3) enters into force for Australia.

Death penalty offence

(7A) For the purposes of this clause, *death penalty offence* means an offence against a law of a foreign country that is punishable by death.

Australian-sourced information

(8) For the purposes of the application of subclause (2) or (5) to an order, information obtained in accordance with the order is *Australian-sourced information* if the order:

(a) requires an act or thing to be done in Australia; or

Clause 3A

- (b) is directed to an individual who is physically present in Australia; or
- (c) is directed to a body corporate that is incorporated in Australia; or
- (d) is directed to a body established by or under a law of the Commonwealth, a State or a Territory.

3A Disallowance of regulations relating to designated international agreements

Scope

- (1) This clause applies to regulations made for the purposes of clause 3.

Disallowance

- (2) Either House of the Parliament may, following a motion upon notice, pass a resolution disallowing the regulations. For the resolution to be effective:
 - (a) the notice must be given in that House within 15 sitting days of that House after the copy of the regulations was tabled in that House under section 38 of the *Legislation Act 2003*; and
 - (b) the resolution must be passed, in pursuance of the motion, within 15 sitting days of that House after the giving of that notice.
- (3) If neither House passes such a resolution, the regulations takes effect on the day immediately after the last day upon which such a resolution could have been passed if it were assumed that notice of a motion to disallow the regulations was given in each House on the last day of the 15 sitting day period of that House mentioned in paragraph (2)(a).
- (4) If:
 - (a) notice of a motion to disallow the regulations is given in a House of the Parliament within 15 sitting days of that House

Clause 3B

after the copy of the regulations was tabled in that House under section 38 of the *Legislation Act 2003*; and

- (b) at the end of 15 sitting days of that House after the giving of that notice of motion:
- (i) the notice has not been withdrawn and the motion has not been called on; or
 - (ii) the motion has been called on, moved and (where relevant) seconded and has not been withdrawn or otherwise disposed of;

the regulations is then taken to have been disallowed, and subclause (3) does not apply to the regulations.

- (5) Section 42 (disallowance) of the *Legislation Act 2003* does not apply to the regulations.

Note 1: The 15 sitting day notice period mentioned in paragraph (2)(a) of this clause is the same as the 15 sitting day notice period mentioned in paragraph 42(1)(a) of the *Legislation Act 2003*.

Note 2: The 15 sitting day disallowance period mentioned in paragraph (2)(b) of this clause is the same as the 15 sitting day disallowance period mentioned in paragraph 42(1)(b) of the *Legislation Act 2003*.

3B Statutory requirements certificate—designated international agreements

Scope

- (1) This section applies if:
- (a) there is an agreement between Australia and one or more foreign countries; and
 - (b) the agreement deals with (among other things) the issue of orders (however described) by a competent authority (however described) of the foreign country, or each of the foreign countries, concerned.

Clause 3B

Certificate

- (2) The Attorney-General may, after consulting the Minister and the Minister for Foreign Affairs, issue a certificate (a ***statutory requirements certificate***) in relation to:
 - (a) a foreign country that is a party to the agreement; and
 - (b) the agreement.
- (3) A statutory requirements certificate is a notifiable instrument.
- (4) The Attorney-General must not issue a statutory requirements certificate in relation to:
 - (a) a foreign country that is a party to the agreement; and
 - (b) the agreement;unless the Attorney-General is satisfied that:
 - (c) the agreement is appropriate in the circumstances, having regard only to:
 - (i) the foreign country's respect for the rule of law; and
 - (ii) the foreign country's respect for its obligations under international law relating to human rights; and
 - (d) the following requirements are met in relation to orders (however described) issued by a competent authority (however described) of the foreign country:
 - (i) the agreement provides that orders are to be issued in compliance with the law of the foreign country;
 - (ii) the agreement provides that orders may only be issued for the purposes of obtaining information relevant to the prevention, detection, investigation or prosecution of serious crime (as defined in the agreement);
 - (iii) the agreement provides that orders may not be issued for the purposes of investigating, prosecuting or punishing a person on account of the person's political opinions;
 - (iv) the agreement, so far as it relates to orders, is appropriate in the circumstances, having regard only to the matters set out in subclause (5);

Clause 3C

- (v) the agreement does not permit orders to be issued for the purposes of obtaining information about the communications of a person who is an Australian citizen or a permanent resident of Australia;
 - (vi) the agreement provides for limitations and safeguards relating to the use, handling and disclosure of information obtained in accordance with orders;
 - (vii) the agreement does not permit orders to be issued on behalf of another country;
 - (viii) the agreement does not impose obligations on the foreign country to share information it has obtained in accordance with orders with another country; and
 - (e) if one or more offences against the law of the foreign country are death penalty offences (within the meaning of clause 3)—the Minister has received a written assurance from the government of the foreign country in accordance with subclause 3(2) or (5).
- (5) For the purposes of subparagraph (4)(d)(iv), the matters are:
- (a) criteria for the issuing of orders; and
 - (b) limitations on the scope and objects of orders; and
 - (c) limits on the periods for which orders are in force;
- set out in the agreement or the law of the foreign country.

Copy of certificate to be given to the Chair of the Joint Standing Committee on Treaties

- (6) If the Attorney-General issues a statutory requirements certificate, the Attorney-General must:
- (a) give a copy of the certificate to the Chair of the Joint Standing Committee on Treaties; and
 - (b) do so as soon as practicable after the certificate is issued.

3C Australia's treaty-making process

Nothing in this Schedule is intended to modify or limit the application of Australia's treaty-making process relating to a

Clause 4

designated international agreement, including the following proposed treaty actions:

- (a) an amendment of a designated international agreement;
- (b) an extension of the duration of a designated international agreement.

4 Message application service

- (1) For the purposes of this Schedule, ***message application service*** means a service that enables end-users to send or receive messages to or from other end-users using a transmission service.

- (2) For the purposes of subclause (1), it is immaterial whether the service also enables end-users to send or receive messages to or from persons (other than end-users) using a transmission service.

Example: A webmail service that enables end-users to send emails to, or receive emails from, any email address.

- (3) For the purposes of this Schedule, a person does not provide a message application service merely because the person supplies a transmission service that enables messages to be sent or received.

- (4) For the purposes of this Schedule, a person does not provide a message application service merely because the person provides a billing service, or a fee collection service, in relation to a message application service.

5 Voice call application service

- (1) For the purposes of this Schedule, ***voice call application service*** means a service that enables end-users to make or receive voice calls to or from other end-users using a transmission service.

- (2) For the purposes of subclause (1), it is immaterial whether the service also enables end-users to make or receive voice calls to or from persons (other than end-users) using a transmission service.

Example: A VOIP service that enables end-users to make voice calls to, or receive voice calls from, any telephone number.

Clause 6

- (3) For the purposes of this Schedule, a person does not provide a voice call application service merely because the person supplies a transmission service that enables voice calls to be made or received.
- (4) For the purposes of this Schedule, a person does not provide a voice call application service merely because the person provides a billing service, or a fee collection service, in relation to a voice call application service.

6 Video call application service

- (1) For the purposes of this Schedule, ***video call application service*** means a service that enables end-users to make or receive video calls to or from other end-users using a transmission service.
- (2) For the purposes of subclause (1), it is immaterial whether the service also enables end-users to make or receive video calls to or from persons (other than end-users) using a transmission service.
- (3) For the purposes of this Schedule, a person does not provide a video call application service merely because the person supplies a transmission service that enables video calls to be made or received.
- (4) For the purposes of this Schedule, a person does not provide a video call application service merely because the person provides a billing service, or a fee collection service, in relation to a video call application service.

7 Storage/back-up service

- (1) For the purposes of this Schedule, ***storage/back-up service*** means a service that enables end-users to store or back-up material, where the uploading of the material for storage or back-up is by means of a transmission service.
- (2) For the purposes of this Schedule, a person does not provide a storage/back-up service merely because the person supplies a

Clause 8

transmission service that enables material to be uploaded for storage or back-up.

- (3) For the purposes of this Schedule, a person does not provide a storage/back-up service merely because the person provides a billing service, or a fee collection service, in relation to a storage/back-up service.

8 General electronic content service

- (1) For the purposes of this Schedule, *general electronic content service* means:
- (a) a service that allows end-users to access material using a transmission service; or
 - (b) a service that delivers material to persons having equipment appropriate for receiving that material, where the delivery of the service is by means of a transmission service;
- but does not include:
- (c) a message/call application service; or
 - (d) a storage/back-up service; or
 - (e) a service prescribed by the regulations.
- (2) For the purposes of this Schedule, a person does not provide a general electronic content service merely because the person supplies a transmission service that enables material to be accessed or delivered.
- (3) For the purposes of this Schedule, a person does not provide a general electronic content service merely because the person provides a billing service, or a fee collection service, in relation to a general electronic content service.

9 When material is posted on a general electronic content service

For the purposes of this Schedule, material is *posted* on a general electronic content service by a person if:

- (a) the person is an end-user of the service; and

- (b) the person causes the material to be accessible to, or delivered to, one or more other end-users using the service.

10 Uploaded material

For the purposes of this Schedule, if:

- (a) a person uses a device; and
 - (b) the device has software that automatically uploads material for storage or back-up by a storage/back-up service; and
 - (c) as a result, material is automatically uploaded for storage or back-up by the storage/back-up service;
- the person is taken have to uploaded the material for storage or back-up by the storage/back-up service.

10A When a prescribed communications provider is based in, or operates in, a foreign country

Based in a foreign country—individual

- (1) For the purposes of the application of this Schedule to a prescribed communications provider who is an individual, the provider is **based in** a foreign country if, and only if, the provider is ordinarily resident in the foreign country.

Based in a foreign country—body corporate

- (2) For the purposes of the application of this Schedule to a prescribed communications provider that is a body corporate, the provider is **based in** a foreign country if, and only if:
 - (a) the provider is incorporated in the foreign country; or
 - (b) the provider has its principal place of business in the foreign country.

Operates in a foreign country

- (3) For the purposes of this Schedule, a prescribed communications provider **operates in** a foreign country if, and only if:

Clause 11

- (a) the provider handles communications in the foreign country;
or
- (b) the provider holds stored communications in the foreign
country; or
- (c) the provider holds telecommunications data in the foreign
country.

11 Intended recipient of a communication

For the purposes of this Schedule, the *intended recipient* of a communication is:

- (a) if the communication is addressed to an individual (either in the individual's own capacity or in the capacity of an employee or agent of another person)—the individual; or
- (b) if the communication is addressed to a person who is not an individual—the person; or
- (c) if the communication is not addressed to a person—the person who has, or whose employee or agent has, control over the individual transmission service that was used to receive the communication.

12 Use of a thing

A reference in this Schedule to the *use* of a thing is a reference to the use of the thing either:

- (a) in isolation; or
- (b) in conjunction with one or more other things.

Note: See also section 18A of the *Acts Interpretation Act 1901*.

13 Identification of a particular person

For the purposes of this Schedule, a particular person may be identified:

- (a) by the person's full name; or
- (b) by a name by which the person is commonly known; or

Clause 14

- (c) as the person to whom a particular individual transmission service is supplied; or
- (d) as the person to whom a particular individual message/call application service is provided; or
- (e) as the person who has a particular account with a prescribed communications provider; or
- (f) as the person who has a particular telephone number; or
- (g) as the person who has a particular email address; or
- (h) as the person who has a particular internet protocol address; or
- (i) as the person who has a device that has a particular unique identifier (for example, an electronic serial number or a Media Access Control address); or
- (j) by any other unique identifying factor that is applicable to the person.

14 Eligible judge

- (1) For the purposes of this Schedule, **eligible Judge** means a person:
 - (a) in relation to whom a consent under subclause (2) and a declaration under subclause (3) are in force; and
 - (b) in relation to an international production order applied for by the National Anti-Corruption Commission—who is a superior Court Judge.
- (2) A Judge may, by writing, consent to be nominated by the Attorney-General under subclause (3).
- (3) The Attorney-General may, by writing, declare Judges in relation to whom consents are in force under subclause (2) to be eligible Judges for the purposes of this Schedule.
- (4) An eligible Judge has, in relation to the performance or exercise of a function or power conferred on an eligible Judge by this Schedule, the same protection and immunity as a Justice of the High Court has in relation to proceedings in the High Court.

Clause 15

15 Nominated ART member

- (1) The Attorney-General may, by writing, nominate a person who holds one of the following appointments to the Administrative Review Tribunal to issue international production orders (except to the National Anti-Corruption Commission) under Division 2 of Part 2, and Division 2 of Part 3, of this Schedule:
 - (a) Deputy President;
 - (b) senior member;
 - (c) general member.
- (2) Despite subclause (1), the Attorney-General must not nominate a person who holds an appointment as a senior member appointed on a sessional basis or a general member of the Tribunal unless the person:
 - (a) is enrolled as a legal practitioner of the High Court, of another federal court or of the Supreme Court of a State or of the Australian Capital Territory; and
 - (b) has been so enrolled for not less than 5 years.
- (3) A nomination ceases to have effect if the nominated ART member ceases to hold an appointment of a kind set out in subclause (1).
- (4) A nominated ART member has, in relation to the performance or exercise of a function or power conferred on a nominated ART member by this Schedule, the same protection and immunity as a Justice of the High Court has in relation to proceedings in the High Court.

16 Issuing authority

- (1) The Attorney-General may, by writing, appoint as an issuing authority:
 - (a) a person who is:
 - (i) a judge of a court created by the Parliament; or
 - (ii) a magistrate;and in relation to whom a consent under subclause (2) is in force; or

- (b) a person who:
 - (i) holds an appointment to the Administrative Review Tribunal as Deputy President, senior member or general member; and
 - (ii) is enrolled as a legal practitioner of a federal court or of the Supreme Court of a State or a Territory; and
 - (iii) has been so enrolled for at least 5 years.
- (2) A person who is:
 - (a) a judge of a court created by the Parliament; or
 - (b) a magistrate;may, by writing, consent to be appointed by the Attorney-General under subclause (1).
- (3) A person's appointment ceases to have effect if the person ceases to be a person whom the Attorney-General could appoint under this clause.
- (4) An appointment under subclause (1) has no effect for the purposes of a provision of this Act (other than this Schedule).
- (5) An issuing authority has, in relation to the performance or exercise of a function or power conferred on an issuing authority by this Schedule, the same protection and immunity as a Justice of the High Court has in relation to proceedings in the High Court.

17 Nominated ART Intelligence and Security member

- (1) The Attorney-General may, by writing, nominate a person who:
 - (a) holds one of the following appointments to the Administrative Review Tribunal:
 - (ii) senior member;
 - (iii) general member; and
 - (b) is a member of the Intelligence and Security jurisdictional area of the Administrative Review Tribunal;to issue international production orders under Part 4 of this Schedule.

Clause 17

- (2) Despite subclause (1), the Attorney-General must not nominate a person who holds an appointment as a senior member on a sessional basis of the Administrative Review Tribunal unless the person:
 - (a) is enrolled as a legal practitioner of the High Court, of another federal court or of the Supreme Court of a State or of the Australian Capital Territory; and
 - (b) has been so enrolled for not less than 5 years.
- (3) A nomination of a person under subclause (1) ceases to have effect if:
 - (a) the person ceases to hold an appointment of a kind set out in subclause (1); or
 - (b) the person ceases to be a member of the Intelligence and Security jurisdictional area of the Administrative Review Tribunal.
- (3A) The Attorney-General may, by writing, nominate a person who is a Deputy President of the Administrative Review Tribunal to issue international production orders under Part 4 of this Schedule.
- (3B) A nomination of a person under subclause (3A) ceases to have effect if the person ceases to be a Deputy President of the Administrative Review Tribunal.
- (4) A nominated ART Intelligence and Security member has, in relation to the performance or exercise of a function or power conferred on a nominated ART Intelligence and Security member by this Schedule, the same protection and immunity as a Justice of the High Court has in relation to proceedings in the High Court.
- (5) For the purposes of this clause, a person is a ***member of the Intelligence and Security jurisdictional area of the Administrative Review Tribunal*** if the person:
 - (a) is assigned to be a leader of the Intelligence and Security jurisdictional area of the Administrative Review Tribunal under section 197 of the *Administrative Review Tribunal Act 2024*; or

Clause 17A

- (b) is assigned to the Intelligence and Security jurisdictional area of the Administrative Review Tribunal under section 199 of the *Administrative Review Tribunal Act 2024*.

17A Urgent circumstances

- (1) For the purposes of this Schedule, it is necessary, because of urgent circumstances, to make an application under Part 2 or 3 of this Schedule for an international production order by telephone if, and only if:
 - (a) an imminent risk of serious harm to a person or substantial damage to property exists; and
 - (b) the order is necessary for the purpose of dealing with that risk; and
 - (c) it is not practicable in the circumstances to make the application in writing.
- (2) For the purposes of this Schedule, it is necessary, because of urgent circumstances, to make an application under Part 4 of this Schedule for an international production order by telephone if, and only if:
 - (a) the delay caused by making a written application may be prejudicial to security; and
 - (b) it is not practicable in the circumstances to make the application in writing.
- (3) For the purposes of this Schedule, it is necessary, because of urgent circumstances, for the Attorney-General to consent orally to the making of an application under Part 4 of this Schedule for an international production order if, and only if:
 - (a) the delay caused by consenting in writing may be prejudicial to security; and
 - (b) it is not practicable in the circumstances to consent in writing.

Clause 18

18 Meaning of expressions in other provisions of this Act

In determining the meaning of an expression (other than “international production order”) used in a provision of this Act (other than this Schedule), an expression used in this Schedule is to be disregarded.

19 Extra-territorial application

This Schedule extends to acts, omissions, matters and things outside Australia.

20 Constitutional basis of this Schedule

This Schedule relies on the Commonwealth’s legislative powers under paragraph 51(v) (communications) of the Constitution.

Part 2—International production orders relating to the enforcement of the criminal law

Division 1—Introduction

21 Simplified outline of this Part

- An international production order may be issued for purposes in connection with the investigation of an offence of a serious nature.
- There are 3 types of international production orders:
 - (a) international production orders relating to interception; and
 - (b) international production orders relating to stored communications; and
 - (c) international production orders relating to telecommunications data.
- An international production order is directed to a prescribed communications provider.
- An international production order may be issued in response to an application made by:
 - (a) in the case of an order relating to interception—an interception agency; or
 - (b) in the case of an order relating to stored communications—a criminal-law enforcement agency; or
 - (c) in the case of an order relating to telecommunications data—an enforcement agency.
- An application for an international production order must nominate a designated international agreement.

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 1 Introduction

Clause 21

Note: An international production order comes into force when it is given to a prescribed communications provider under clause 111.

Division 2—International production orders relating to interception: enforcement of the criminal law

Subdivision A—Applications

22 Application for international production order—enforcement of the criminal law

- (1) An interception agency may apply for an international production order under clause 30 that:
 - (a) is in respect of:
 - (i) one or more individual transmission services; or
 - (ii) one or more individual message/call application services; and
 - (b) is directed to a prescribed communications provider.
- (1A) The interception agency may apply for the order to:
 - (a) for an application made by the National Anti-Corruption Commission—an eligible Judge; or
 - (b) otherwise—an eligible Judge or nominated ART member.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the interception agency's behalf by:
 - (a) in the case of the Australian Federal Police—a member of the Australian Federal Police; or
 - (b) in the case of the National Anti-Corruption Commission:
 - (i) the National Anti-Corruption Commissioner; or
 - (ii) a National Anti-Corruption Deputy Commissioner; or
 - (iii) a staff member of the NACC who is authorised in writing by the National Anti-Corruption Commissioner for the purposes of this paragraph; or
 - (c) in the case of the ACC:

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 22

- (i) the Chief Executive Officer of the ACC or an examiner;
or
- (ii) a member of a police force who is a member of the staff
of the ACC; or
- (d) in the case of the Police Force of a State—an officer of that
Police Force; or
- (e) in the case of the Crime Commission (NSW):
 - (i) a member of the Crime Commission (NSW); or
 - (ii) a member of the staff of the Crime Commission (NSW);
or
- (f) in the case of the Independent Commission Against
Corruption (NSW)—an officer of the Independent
Commission Against Corruption (NSW); or
- (g) in the case of the IBAC (Vic.)—an IBAC (Vic.) officer; or
- (h) in the case of the Crime and Corruption Commission (Qld)—
a commission officer (within the meaning of the Crime and
Corruption Act (Qld)); or
- (i) in the case of the Law Enforcement Conduct Commission
(NSW):
 - (i) the Chief Commissioner of the Law Enforcement
Conduct Commission (NSW); or
 - (ii) the Commissioner for Integrity of the Law Enforcement
Conduct Commission (NSW); or
 - (iii) an Assistant Commissioner of the Law Enforcement
Conduct Commission (NSW); or
 - (iv) a member of the staff of the Law Enforcement Conduct
Commission (NSW); or
- (j) in the case of the Corruption and Crime Commission
(WA)—an officer of the Corruption and Crime Commission
(WA); or
- (k) in the case of the Independent Commission Against
Corruption (SA):
 - (i) the Commissioner of the Independent Commission
Against Corruption (SA); or

- (ii) the Deputy Commissioner of the Independent Commission Against Corruption (SA); or
- (iii) a member of the staff of the Independent Commission Against Corruption (SA).

23 Form of application

- (1) Subject to subclause (2), an application under clause 22 for an international production order must be in writing.
- (2) If the person making an application under clause 22 for an international production order on an interception agency's behalf:
 - (a) is the chief officer of the agency or a person in relation to whom an authorisation by the chief officer is in force under subclause (3); and
 - (b) thinks it necessary, because of urgent circumstances, to make the application by telephone;the person may make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

- (3) The chief officer of an interception agency may authorise in writing, for the purposes of subclause (2), persons who, or classes of persons who, are entitled under clause 22 to make applications on the agency's behalf.

24 Contents of application

A written application under clause 22 by an interception agency for an international production order must set out:

- (a) the name of the agency; and
- (b) the name of the person making the application on the agency's behalf.

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 25

25 Affidavits to accompany written application

- (1) A written application under clause 22 by an interception agency for an international production order must be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) If the application is for an international production order in respect of one or more individual transmission services, the affidavit must set out the following information, so far as it can be derived from the interception agency's records:
 - (a) the number of previous applications (if any) for international production orders that the agency has made under clause 22 in relation to those individual transmission services;
 - (b) the number of international production orders (if any) previously issued in response to such applications;
 - (c) particulars of the use made by the agency of intercepted communications made available to the agency under such orders.
- (4) If the application is for an international production order in respect of one or more individual message/call application services, the affidavit must set out the following information, so far as it can be derived from the interception agency's records:
 - (a) the number of previous applications (if any) for international production orders that the agency has made under clause 22 in relation to those individual message/call application services;
 - (b) the number of international production orders (if any) previously issued in response to such applications;
 - (c) particulars of the use made by the agency of intercepted messages, voice calls or video calls made available to the agency under such orders.
- (5) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart

from this subclause, this clause would have required an affidavit accompanying the application to set out.

26 Information to be given on telephone application

The information given to an eligible Judge or nominated ART member in connection with a telephone application under clause 22 to the eligible Judge or nominated ART member:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the interception agency's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 24 or 25 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the eligible Judge or nominated ART member directs.

27 Giving further information to eligible Judge or nominated ART member

- (1) An eligible Judge or nominated ART member may require further information to be given in connection with an application under clause 22 to the eligible Judge or nominated ART member for an international production order.
- (2) The further information:
 - (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the eligible Judge or nominated ART member directs.

Clause 28

28 Application by interception agency of Victoria

Scope

- (1) This clause applies if an interception agency of Victoria applies, under clause 22, to an eligible Judge or nominated ART member for an international production order under clause 30 that is in respect of:
- (a) one or more individual transmission services; or
 - (b) one or more individual message/call application services.

PIM may make submissions

- (2) A Victorian PIM may, orally or in writing, make submissions to the eligible Judge or nominated ART member about the following matters:
- (a) in the case of an application for an international production order that is in respect of one or more individual transmission services—the matters mentioned in subparagraphs 30(5)(a)(i) to (vi);
 - (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services—the matters mentioned in subparagraphs 30(5)(b)(i) to (vi).

PIM may question certain persons

- (3) The Victorian PIM may, for the purpose of making submissions under subclause (2), question:
- (a) the person making the application for the international production order on the interception agency's behalf; or
 - (b) a person who, under clause 27, is required by the eligible Judge or nominated ART member to give further information to the eligible Judge or nominated ART member in connection with the application.

However, the Victorian PIM may only do so in the presence of the eligible Judge or nominated ART member.

29 Application by interception agency of Queensland

Scope

- (1) This clause applies if an interception agency of Queensland applies, under clause 22, to an eligible Judge or nominated ART member for an international production order under clause 30 that is in respect of:
- (a) one or more individual transmission services; or
 - (b) one or more individual message/call application services.

PIM may make submissions

- (2) A Queensland PIM may, orally or in writing, make submissions to the eligible Judge or nominated ART member about the following matters:
- (a) in the case of an application for an international production order that is in respect of one or more individual transmission services—the matters mentioned in subparagraphs 30(5)(a)(i) to (vi);
 - (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services—the matters mentioned in subparagraphs 30(5)(b)(i) to (vi).

PIM may question certain persons

- (3) The Queensland PIM may, for the purpose of making submissions under subclause (2), question:
- (a) the person making the application for the international production order on the interception agency's behalf; or
 - (b) a person who, under clause 27, is required by the eligible Judge or nominated ART member to give further information to the eligible Judge or nominated ART member in connection with the application.

However, the Queensland PIM may only do so in the presence of the eligible Judge or nominated ART member.

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 30

- (4) A Queensland PIM may, by writing, delegate to a Queensland deputy PIM the Queensland PIM's power under subclause (2) or (3), or both.
- (5) In exercising powers under the delegation, the Queensland deputy PIM must comply with any directions of the Queensland PIM.

Subdivision B—International production orders relating to interception

30 Issue of international production order—enforcement of the criminal law

Scope

- (1) This clause applies if an interception agency applies, under clause 22, to an eligible Judge or nominated ART member for an international production order that:
 - (a) is in respect of:
 - (i) one or more individual transmission services; or
 - (ii) one or more individual message/call application services; and
 - (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the eligible Judge or nominated ART member is satisfied, on the basis of the information given to the eligible Judge or nominated ART member under this Division in connection with the application, that:
 - (a) in the case of an application for an international production order that is in respect of one or more individual transmission services—there are reasonable grounds for suspecting that:
 - (i) the prescribed communications provider owns or operates a telecommunications network that is, or is likely to be, used to supply those individual transmission services; or

- (ii) the prescribed communications provider supplies those individual transmission services; and
- (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services—there are reasonable grounds for suspecting that the prescribed communications provider provides those individual message/call application services; and
- (ba) the person who made the application on behalf of the agency reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
- (c) Subdivision A has been complied with in relation to the application; and
- (d) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
- (e) in the case of an application for an international production order that is in respect of one or more individual transmission services—there are reasonable grounds for suspecting that a particular person is using, or is likely to use, those individual transmission services; and
- (f) in the case of an application for an international production order that is in respect of one or more individual message/call application services—there are reasonable grounds for suspecting that a particular person is using, or is likely to use, those individual message/call application services; and
- (g) in the case of an application for an international production order that is in respect of one or more individual transmission services—information that would be likely to be obtained by accessing, under an order issued under this clause, communications that are being carried by those individual transmission services would be likely to assist in connection with the investigation by the interception agency of a serious category 2 offence, or serious category 2 offences, in which:

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 30

- (i) the particular person is involved; or
- (ii) another person is involved with whom the particular person is likely to communicate using those individual transmission services; and
- (h) in the case of an application for an international production order that is in respect of one or more individual message/call application services—information that would be likely to be obtained by accessing, under an order issued under this clause, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services would be likely to assist in connection with the investigation by the interception agency of a serious category 2 offence, or serious category 2 offences, in which:
 - (i) the particular person is involved; or
 - (ii) another person is involved with whom the particular person is likely to communicate using those individual message/call application services;

the eligible Judge or nominated ART member may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to:

- (i) in the case of an application for an international production order that is in respect of one or more individual transmission services:
 - (i) intercept communications carried by those individual transmission services during a specified period; and
 - (ii) make those intercepted communications available to the interception agency; and
 - (iii) disclose to the interception agency specified telecommunications data that relates to those intercepted communications; and
 - (iv) disclose to the interception agency specified telecommunications data that relates to those individual transmission services; or

- (j) in the case of an application for an international production order that is in respect of one or more individual message/call application services:
 - (i) intercept messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services during a specified period; and
 - (ii) make those intercepted messages, voice calls or video calls available to the interception agency; and
 - (iii) disclose to the interception agency specified telecommunications data that relates to those intercepted messages, voice calls or video calls; and
 - (iv) disclose to the interception agency specified telecommunications data that relates to those individual message/call application services.

Note: Subclauses (6) and (7) restrict the issuing of international production orders if subparagraph (2)(g)(ii) or (h)(ii) applies.

Period specified in international production order

- (3) A period specified in an international production order for the purposes of subparagraph (2)(i)(i) or (j)(i) must not begin before the time when the order is given to the prescribed communications provider.

Note: International production orders are given under clause 111.

- (4) The period specified in an international production order for the purposes of subparagraph (2)(i)(i) or (j)(i) must not be longer than:
 - (a) if subparagraph (2)(g)(ii) or (h)(ii) applies (as the case requires)—45 days; or
 - (b) otherwise—90 days.

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 30

Matters to which eligible Judge or nominated ART member must have regard

- (5) In deciding whether to issue an international production order under subclause (2), the eligible Judge or nominated ART member must have regard to the following matters:
- (a) in the case of an application for an international production order that is in respect of one or more individual transmission services:
 - (i) how much the privacy of any person or persons would be likely to be interfered with by accessing, under an international production order, communications that are being carried by those individual transmission services; and
 - (ii) the gravity of the conduct constituting the serious category 2 offence or serious category 2 offences being investigated; and
 - (iii) how much the information mentioned in paragraph (2)(g) would be likely to assist in connection with the investigation by the interception agency of the serious category 2 offence or serious category 2 offences; and
 - (iv) to what extent methods of investigating the serious category 2 offence or serious category 2 offences that do not involve so accessing communications have been used by, or are available to, the interception agency; and
 - (v) how much the use of such methods would be likely to assist in connection with the investigation by the interception agency of the serious category 2 offence or serious category 2 offences; and
 - (vi) how much the use of such methods would be likely to prejudice the investigation by the interception agency of the serious category 2 offence or serious category 2 offences, whether because of delay or for any other reason; and
 - (vii) in relation to an application by an interception agency of Victoria—any submissions made by a Victorian PIM

- under clause 28 to the eligible Judge or nominated ART member; and
- (viii) in relation to an application by an interception agency of Queensland—any submissions made by a Queensland PIM under clause 29 to the eligible Judge or nominated ART member; and
 - (ix) such other matters (if any) as the eligible Judge or nominated ART member considers relevant;
- (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services:
- (i) how much the privacy of any person or persons would be likely to be interfered with by accessing, under an international production order, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services; and
 - (ii) the gravity of the conduct constituting the serious category 2 offence or serious category 2 offences being investigated; and
 - (iii) how much the information mentioned in paragraph (2)(h) would be likely to assist in connection with the investigation by the interception agency of the serious category 2 offence or serious category 2 offences; and
 - (iv) to what extent methods of investigating the serious category 2 offence or serious category 2 offences that do not involve so accessing messages, voice calls or video calls have been used by, or are available to, the interception agency; and
 - (v) how much the use of such methods would be likely to assist in connection with the investigation by the interception agency of the serious category 2 offence or serious category 2 offences; and
 - (vi) how much the use of such methods would be likely to prejudice the investigation by the interception agency of

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 30

the serious category 2 offence or serious category 2 offences, whether because of delay or for any other reason; and

- (vii) in relation to an application by an interception agency of Victoria—any submissions made by a Victorian PIM under clause 28 to the eligible Judge or nominated ART member; and
- (viii) in relation to an application by an interception agency of Queensland—any submissions made by a Queensland PIM under clause 29 to the eligible Judge or nominated ART member; and
- (ix) such other matters (if any) as the eligible Judge or nominated ART member considers relevant.

Restriction on issuing order

- (6) The eligible Judge or nominated ART member must not issue an international production order under subclause (2) in a case where subparagraph (2)(g)(ii) applies unless the eligible Judge or nominated ART member is satisfied that:
 - (a) the interception agency has exhausted all other practicable methods of identifying the individual transmission services used, or likely to be used, by the person involved in the serious category 2 offence or serious category 2 offences mentioned in paragraph (2)(g); or
 - (b) interception (as permitted under an international production order) of communications carried by individual transmission services used or likely to be used by that person would not otherwise be possible.
- (7) The eligible Judge or nominated ART member must not issue an international production order under subclause (2) in a case where subparagraph (2)(h)(ii) applies unless the eligible Judge or nominated ART member is satisfied that:
 - (a) the interception agency has exhausted all other practicable methods of identifying the individual message/call application services used, or likely to be used, by the person

involved in the serious category 2 offence or serious category 2 offences mentioned in paragraph (2)(h); or

- (b) interception (as permitted under an international production order) of messages sent or received, voice calls made or received, or video calls made or received, using individual message/call application services used or likely to be used by that person would not otherwise be possible.

Copying stored communications

- (8) If an international production order issued under subclause (2) directs a prescribed communications provider to intercept communications, messages, voice calls or video calls:
 - (a) the prescribed communications provider may comply with the order by copying stored communications that consist of the communications, messages, voice calls or video calls; and
 - (b) a copy of a stored communication made for that purpose is taken to be a communication, message, voice call or video call (as the case may be) intercepted under the international production order.

31 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 30 in response to an application made by an interception agency.

Content

- (2) The order must be signed by the eligible Judge or nominated ART member who issued it.
- (3) The order must set out the following:
 - (a) the date on which the order was issued;
 - (b) the name of the interception agency;

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 31

- (c) the name of the prescribed communications provider to whom the order is directed;
 - (d) the name of the designated international agreement nominated in the application for the order;
 - (e) the applicable telecommunications identifiers:
 - (i) in the case of an order that is in respect of one or more individual transmission services—to which those individual transmission services relate; or
 - (ii) in the case of an order that is in respect of one or more individual message/call application services—to which those individual message/call application services relate;
 - (f) short particulars of each serious category 2 offence in relation to which the eligible Judge or nominated ART member issuing the order was satisfied, on the application for the order, as mentioned in paragraph 30(2)(g) or (h) of this Schedule (as the case requires).
- (4) If the order directs a prescribed communications provider to intercept communications, the order may require the provider to:
 - (a) intercept those communications in a specified way; and
 - (b) make those intercepted communications available to the interception agency in a specified way.
- (5) A requirement under subclause (4) may:
 - (a) require that intercepted communications be made available to the interception agency directly; or
 - (b) require that intercepted communications be made available to the interception agency indirectly via the Australian Designated Authority.
- (6) If the order directs a prescribed communications provider to intercept messages, voice calls or video calls, the order may require the provider to:
 - (a) intercept those messages, voice calls or video calls in a specified way; and

- (b) make those intercepted messages, voice calls or video calls available to the interception agency in a specified way.
- (7) A requirement under subclause (6) may:
 - (a) require that intercepted messages, voice calls or video calls be made available to the interception agency directly; or
 - (b) require that intercepted messages, voice calls or video calls be made available to the interception agency indirectly via the Australian Designated Authority.
- (8) If the order directs a prescribed communications provider to disclose telecommunications data to the interception agency, the order may require the provider to disclose that data to the agency in a specified way.
- (9) A requirement under subclause (8) may:
 - (a) require that the telecommunications data be disclosed to the interception agency directly; or
 - (b) require that the telecommunications data be disclosed to the interception agency indirectly via the Australian Designated Authority.
- (10) For the purposes of this clause, a specified way may deal with matters of timing.

Example: A requirement under subclause (4) may require that an intercepted communication be made available to the interception agency within 30 minutes after the communication was completed.

32 Issue of further international production order

- (1) If:
 - (a) an international production order (the ***original order***) was issued under clause 30; and
 - (b) the original order was in respect of one or more individual transmission services; and
 - (c) the original order was directed to a prescribed communications provider;

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 2 International production orders relating to interception: enforcement of the criminal law

Clause 32

this Schedule does not prevent the issue of a further international production order under clause 30 that is:

- (d) in respect of any or all of those services; and
- (e) directed to the provider;

so long as the period specified in the further order for the purposes of subparagraph 30(2)(i)(i) of this Schedule begins after the end of the period specified in the original order for the purposes of that subparagraph.

(2) If:

- (a) an international production order (the *original order*) was issued under clause 30; and
- (b) the original order was in respect of one or more individual message/call application services; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 30 that is:

- (d) in respect of any or all of those services; and
- (e) directed to the provider;

so long as the period specified in the further order for the purposes of subparagraph 30(2)(j)(i) of this Schedule begins after the end of the period specified in the original order for the purposes of that subparagraph.

**Division 3—International production orders relating to
stored communications: enforcement of the
criminal law**

Subdivision A—Applications

**33 Application for international production order—enforcement of
the criminal law**

- (1) A criminal law-enforcement agency may apply to an issuing authority for an international production order under clause 39 that:
 - (a) is in respect of a particular person; and
 - (b) is directed to a prescribed communications provider.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the criminal law-enforcement agency's behalf by:
 - (a) if the agency is referred to in subclause 22(3)—a person referred to in that subclause in relation to the agency; or
 - (b) otherwise:
 - (i) the chief officer of the agency; or
 - (ii) an officer of the agency (by whatever name called) who holds, or is acting in, an office or position in the agency nominated under subclause (4).
- (4) The chief officer of the criminal law-enforcement agency may, in writing, nominate for the purposes of subparagraph (3)(b)(ii) an office or position in the agency that is involved in the management of the agency.
- (5) A nomination under subclause (4) is not a legislative instrument.

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 3 International production orders relating to stored communications:
enforcement of the criminal law

Clause 34

34 Form of application

- (1) An application under clause 33 must be in writing.
- (2) However, a person making the application on the criminal law-enforcement agency's behalf may make the application by telephone if the person:
 - (a) is the chief officer of the agency or a person in relation to whom an authorisation by the chief officer is in force under subclause (3); and
 - (b) thinks it necessary, because of urgent circumstances, to make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

- (3) The chief officer of a criminal law-enforcement agency may, in writing, authorise persons (including classes of persons) for the purposes of subclause (2). However, each person must be entitled under clause 33 to make applications on the agency's behalf.

35 Contents of written application

An application under clause 33 must, if it is in writing, set out:

- (a) the name of the criminal law-enforcement agency; and
- (b) the name of the person making the application on the agency's behalf.

36 Affidavits to accompany written application

- (1) An application under clause 33 must, if it is in writing, be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

37 Information to be given on telephone application

The information given to an issuing authority in connection with a telephone application under clause 33 to the issuing authority:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the criminal law-enforcement agency's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 35 or 36 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the issuing authority directs.

38 Giving further information to issuing authority

- (1) An issuing authority may require further information to be given in connection with an application under clause 33 to the issuing authority for an international production order.
- (2) The further information:
 - (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the issuing authority directs.

Subdivision B—International production orders relating to stored communications

39 Issue of international production order—enforcement of the criminal law

Scope

- (1) This clause applies if a criminal law-enforcement agency applies, under clause 33, to an issuing authority for an international production order that:

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 3 International production orders relating to stored communications:
enforcement of the criminal law

Clause 39

- (a) is in respect of a particular person (the *relevant person*); and
- (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the issuing authority is satisfied, on the basis of the information given to the issuing authority under this Division in connection with the application, that:
 - (a) there are reasonable grounds for suspecting that the prescribed communications provider holds any of the following stored communications:
 - (i) stored communications that consist of communications that the relevant person has made using a telecommunications network owned or operated by the prescribed communications provider;
 - (ii) stored communications that consist of communications that another person has made using a telecommunications network owned or operated by the prescribed communications provider, and for which the relevant person is the intended recipient;
 - (iii) stored communications that consist of communications that the relevant person has made using a transmission service supplied by the prescribed communications provider;
 - (iv) stored communications that consist of communications that another person has made using a transmission service supplied by the prescribed communications provider, and for which the relevant person is the intended recipient;
 - (v) stored communications that consist of messages that the relevant person has sent or received using a message/call application service provided by the prescribed communications provider;
 - (vi) stored communications that consist of recordings of voice calls that the relevant person has made or received using a message/call application service provided by the prescribed communications provider;

- (vii) stored communications that consist of recordings of video calls that the relevant person has made or received using a message/call application service provided by the prescribed communications provider;
 - (viii) stored communications that consist of material that the relevant person has uploaded for storage or back-up by a storage/back-up service provided by the prescribed communications provider;
 - (ix) stored communications that consist of material that the relevant person has posted to a general electronic content service provided by the prescribed communications provider; and
 - (aa) the person who made the application on behalf of the agency reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
 - (b) Subdivision A has been complied with in relation to the application; and
 - (c) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
 - (d) information that would be likely to be obtained by making a copy, under an order issued under this clause, of the stored communications would be likely to assist in connection with the investigation by the criminal law-enforcement agency of a serious category 1 offence, or serious category 1 offences, in which the relevant person is involved;
- the issuing authority may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to:
- (e) make a copy of any such stored communications; and
 - (f) make the copy available to the criminal law-enforcement agency; and

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 3 International production orders relating to stored communications:
enforcement of the criminal law

Clause 39

- (g) if the stored communications consist of communications carried by an individual transmission service—disclose to the agency:
 - (i) specified telecommunications data that relates to those communications; and
 - (ii) specified telecommunications data that relates to the individual transmission service; and
 - (h) if the stored communications consist of messages sent or received using an individual message/call application service—disclose to the agency:
 - (i) specified telecommunications data that relates to those messages; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and
 - (i) if the stored communications consist of recordings of voice calls made or received using an individual message/call application service—disclose to the agency:
 - (i) specified telecommunications data that relates to those voice calls; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and
 - (j) if the stored communications consist of recordings of video calls made or received using an individual message/call application service—disclose to the agency:
 - (i) specified telecommunications data that relates to those video calls; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and
 - (k) if the stored communications consist of material that has been uploaded by an end-user for storage or back-up by a storage/back-up service—disclose to the agency:
 - (i) specified telecommunications data that relates to that material; and
 - (ii) specified telecommunications data that relates to the end-user's account with the storage/back-up service; and
-

- (l) if the stored communications consist of material posted to a general electronic content service by an end-user—disclose to the agency:
 - (i) specified telecommunications data that relates to that material; and
 - (ii) specified telecommunications data that relates to the end-user's account with the general electronic content service.

Matters to which issuing authority must have regard

- (3) In deciding whether to issue an international production order under subclause (2), the issuing authority must have regard to the following matters:
 - (a) how much the privacy of any person or persons would be likely to be interfered with by the criminal law-enforcement agency obtaining, under an international production order, a copy of the stored communications;
 - (b) the gravity of the conduct constituting the serious category 1 offence or serious category 1 offences being investigated;
 - (c) how much the information mentioned in paragraph (2)(d) would be likely to assist in connection with the investigation by the criminal law-enforcement agency of the serious category 1 offence or serious category 1 offences;
 - (d) to what extent methods of investigating the serious category 1 offence or serious category 1 offences that do not involve so obtaining a copy of the stored communications have been used by, or are available to, the criminal law-enforcement agency;
 - (e) how much the use of such methods would be likely to assist in connection with the investigation by the criminal law-enforcement agency of the serious category 1 offence or serious category 1 offences;
 - (f) how much the use of such methods would be likely to prejudice the investigation by the criminal law-enforcement agency of the serious category 1 offence or serious category 1 offences, whether because of delay or for any other reason;

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 3 International production orders relating to stored communications:
enforcement of the criminal law

Clause 40

- (g) such other matters (if any) as the issuing authority considers relevant.

40 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 39 in response to an application made by a criminal law-enforcement agency.

Content

- (2) The order must be signed by the issuing authority who issued it.
- (3) The order must set out the following:
- (a) the date on which the order was issued;
 - (b) the name of the criminal law-enforcement agency;
 - (c) the name of the prescribed communications provider to whom the order is directed;
 - (d) the name of the designated international agreement nominated in the application for the order;
 - (e) short particulars of each serious category 1 offence in relation to which the issuing authority issuing the order was satisfied, on the application for the order, as mentioned in paragraph 39(2)(d) of this Schedule.
- (4) If the order directs a prescribed communications provider to make a copy of stored communications available to the criminal law-enforcement agency, the order may require the provider to make that copy available to the agency in a specified way.
- (5) A requirement under subclause (4) may:
- (a) require that a copy of stored communications be made available to the criminal law-enforcement agency directly; or
 - (b) require that a copy of stored communications be made available to the criminal law-enforcement agency indirectly via the Australian Designated Authority.

- (6) If the order directs a prescribed communications provider to disclose telecommunications data to the criminal law-enforcement agency, the order may require the provider to disclose that data to the agency in a specified way.
- (7) A requirement under subclause (6) may:
 - (a) require that the telecommunications data be disclosed to the criminal law-enforcement agency directly; or
 - (b) require that the telecommunications data be disclosed to the criminal law-enforcement agency indirectly via the Australian Designated Authority.
- (8) For the purposes of this clause, a specified way may deal with matters of timing.

41 Issue of further international production order

If:

- (a) an international production order (the *original order*) was issued under clause 39; and
- (b) the original order was in respect of a particular person; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 39 that:

- (d) is in respect of the person; and
- (e) is directed to the provider.

**Division 4—International production orders relating to
telecommunications data: enforcement of the
criminal law**

Subdivision A—Applications

**42 Application for international production order—enforcement of
the criminal law**

- (1) An enforcement agency may apply to an issuing authority for an international production order under clause 48 that is directed to a prescribed communications provider.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the enforcement agency's behalf by an authorised officer of the agency.

43 Form of application

- (1) An application under clause 42 must be in writing.
- (2) However, a person making the application on the enforcement agency's behalf may make the application by telephone if the person:
 - (a) is the chief officer of the agency or a person in relation to whom an authorisation by the chief officer is in force under subclause (3); and
 - (b) thinks it necessary, because of urgent circumstances, to make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

- (3) The chief officer of an enforcement agency may, in writing, authorise persons (including classes of persons) for the purposes of

subclause (2). However, each person must be entitled under clause 42 to make applications on the agency's behalf.

44 Contents of written application

An application under clause 42 must, if it is in writing, set out:

- (a) the name of the enforcement agency; and
- (b) the name of the person making the application on the agency's behalf.

45 Affidavits to accompany written application

- (1) An application under clause 42 must, if it is in writing, be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

46 Information to be given on telephone application

The information given to an issuing authority in connection with a telephone application under clause 42 to the issuing authority:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the enforcement agency's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 44 or 45 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the issuing authority directs.

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 4 International production orders relating to telecommunications data:
enforcement of the criminal law

Clause 47

47 Giving further information to issuing authority

- (1) An issuing authority may require further information to be given in connection with an application under clause 42 to the issuing authority for an international production order.
- (2) The further information:
 - (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the issuing authority directs.

Subdivision B—International production orders relating to telecommunications data

48 Issue of international production order—enforcement of the criminal law

Scope

- (1) This clause applies if an enforcement agency applies, under clause 42, to an issuing authority for an international production order that is directed to a prescribed communications provider.

Issue of international production order

- (2) If the issuing authority is satisfied, on the basis of the information given to the issuing authority under this Division in connection with the application, that:
 - (a) there are reasonable grounds for suspecting that the prescribed communications provider holds, or is likely to commence to hold, any of the following telecommunications data:
 - (i) telecommunications data that relates to communications carried by an individual transmission service supplied using a telecommunications network owned or operated by the prescribed communications provider;

- (ii) telecommunications data that relates to an individual transmission service supplied using a telecommunications network owned or operated by the prescribed communications provider;
- (iii) telecommunications data that relates to communications carried by an individual transmission service supplied by the prescribed communications provider;
- (iv) telecommunications data that relates to an individual transmission service supplied by the prescribed communications provider;
- (v) telecommunications data that relates to messages sent or received using an individual message/call application service provided by the prescribed communications provider;
- (vi) telecommunications data that relates to voice calls made or received using an individual message/call application service provided by the prescribed communications provider;
- (vii) telecommunications data that relates to video calls made or received using an individual message/call application service provided by the prescribed communications provider;
- (viii) telecommunications data that relates to an individual message/call application service provided by the prescribed communications provider;
- (ix) telecommunications data that relates to material that has been uploaded by an end-user for storage or back-up by a storage/back-up service provided by the prescribed communications provider;
- (x) telecommunications data that relates to material that has been posted on a general electronic content service provided by the prescribed communications provider;
and
- (aa) the person who made the application on behalf of the agency reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 4 International production orders relating to telecommunications data:
enforcement of the criminal law

Clause 48

party to the designated international agreement nominated in the application; and

- (b) Subdivision A has been complied with in relation to the application; and
- (c) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
- (d) disclosing the telecommunications data to the enforcement agency, under an order issued under this clause, would be likely to assist in connection with the investigation by the enforcement agency of a serious category 1 offence, or serious category 1 offences;

the issuing authority may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to do either or both of the following:

- (e) so far as the telecommunications data is held by the prescribed communications provider when the international production order comes into force—disclose any such telecommunications data to the agency;
- (f) so far as the telecommunications data commences to be held by the prescribed communications provider during a specified period—disclose any such telecommunications data to the agency.

Period specified in international production order

- (3) A period specified in an international production order for the purposes of paragraph (2)(f) must not begin before the time when the order is given to the prescribed communications provider.

Note: International production orders are given under clause 111.

- (4) A period specified in an international production order for the purposes of paragraph (2)(f) must not be longer than 90 days.

Matters to which issuing authority must have regard

- (5) In deciding whether to issue an international production order under subclause (2), the issuing authority must have regard to the following matters:
- (a) how much the privacy of any person or persons would be likely to be interfered with by disclosing, under an international production order, the telecommunications data;
 - (b) the gravity of the conduct constituting the serious category 1 offence or serious category 1 offences being investigated;
 - (c) how much the telecommunications data would be likely to assist in connection with the investigation by the enforcement agency of the serious category 1 offence or serious category 1 offences;
 - (d) to what extent methods of investigating the serious category 1 offence or serious category 1 offences that do not involve so disclosing the telecommunications data have been used by, or are available to, the enforcement agency;
 - (e) how much the use of such methods would be likely to assist in connection with the investigation by the enforcement agency of the serious category 1 offence or serious category 1 offences;
 - (f) how much the use of such methods would be likely to prejudice the investigation by the enforcement agency of the serious category 1 offence or serious category 1 offences, whether because of delay or for any other reason;
 - (g) such other matters (if any) as the issuing authority considers relevant.

49 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 48 in response to an application made by an enforcement agency.

Schedule 1 International production orders

Part 2 International production orders relating to the enforcement of the criminal law

Division 4 International production orders relating to telecommunications data:
enforcement of the criminal law

Clause 49

Content

- (2) The order must be signed by the issuing authority who issued it.
- (3) The order must set out the following:
 - (a) the date on which the order was issued;
 - (b) the name of the enforcement agency;
 - (c) the name of the prescribed communications provider to whom the order is directed;
 - (d) the name of the designated international agreement nominated in the application for the order;
 - (e) short particulars of each serious category 1 offence in relation to which the issuing authority issuing the order was satisfied, on the application for the order, as mentioned in paragraph 48(2)(d) of this Schedule.
- (4) If the order directs a prescribed communications provider to disclose telecommunications data to the enforcement agency, the order may require the provider to disclose that data to the agency in a specified way.
- (5) A requirement under subclause (4) may:
 - (a) require that the telecommunications data be disclosed to the enforcement agency directly; or
 - (b) require that the telecommunications data be disclosed to the enforcement agency indirectly via the Australian Designated Authority.
- (6) For the purposes of this clause, a specified way may deal with matters of timing.

Example: If a requirement under subclause (4) relates to telecommunications data that commences to be held by a prescribed communications provider during a specified period, the requirement may require that the telecommunications data be disclosed to the enforcement agency within 30 minutes after the telecommunications data commences to be held.

50 Issue of further international production order

If:

- (a) an international production order (the *original order*) was issued under clause 48; and
- (b) the original order was directed to a prescribed communications provider; and
- (c) the original order relates to the investigation by an enforcement agency of a serious category 1 offence, or serious category 1 offences;

this Schedule does not prevent the issue of a further international production order under clause 48 that:

- (d) is directed to the provider; and
- (e) relates to the investigation by the enforcement agency of that offence or those offences.

Part 3—International production orders relating to Part 5.3 supervisory orders

Division 1—Introduction

51 Simplified outline of this Part

- If a Part 5.3 supervisory order is in force in relation to a person, an international production order may be issued for purposes in connection with the monitoring of the person, so as to achieve a Part 5.3 object.
- There are 3 types of international production orders:
 - (a) international production orders relating to interception; and
 - (b) international production orders relating to stored communications; and
 - (c) international production orders relating to telecommunications data.
- An international production order is directed to a prescribed communications provider.
- An international production order may be issued in response to an application made by a Part 5.3 IPO agency.
- An application for an international production order must nominate a designated international agreement.
- If an international production order is issued in relation to an application made by a Part 5.3 IPO agency, the agency must notify the international production order to the Ombudsman (if the agency is not the ACC), or the Inspector-General of Intelligence and Security (if the agency is the ACC).

Note: An international production order comes into force when it is given to a prescribed communications provider under clause 111.

Division 2—International production orders relating to interception: Part 5.3 supervisory orders

Subdivision A—Applications

52 Application for international production order—Part 5.3 supervisory order

- (1) A Part 5.3 IPO agency may apply for an international production order under clause 60 that:
 - (a) is in respect of:
 - (i) one or more individual transmission services; or
 - (ii) one or more individual message/call application services; and
 - (b) is directed to a prescribed communications provider.
- (1A) The Part 5.3 IPO agency may apply for the order to:
 - (a) for an application made by the National Anti-Corruption Commission—an eligible Judge; or
 - (b) otherwise—an eligible Judge or nominated ART member.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the Part 5.3 IPO agency's behalf by:
 - (a) if the agency is referred to in subclause 22(3)—a person referred to in that subclause in relation to the agency; or
 - (b) otherwise:
 - (i) the chief officer of the agency; or
 - (ii) an officer of the agency (by whatever name called) who holds, or is acting in, an office or position in the agency nominated under subclause (4).
- (4) The chief officer of the Part 5.3 IPO agency may, in writing, nominate for the purposes of subparagraph (3)(b)(ii) an office or

position in the agency that is involved in the management of the agency.

53 Form of application

- (1) Subject to subclause (2), an application under clause 52 for an international production order must be in writing.
- (2) If the person making an application under clause 52 for an international production order on a Part 5.3 IPO agency's behalf:
 - (a) is the chief officer of the agency or a person in relation to whom an authorisation by the chief officer is in force under subclause (3); and
 - (b) thinks it necessary, because of urgent circumstances, to make the application by telephone;the person may make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

- (3) The chief officer of a Part 5.3 IPO agency may authorise in writing, for the purposes of subclause (2), persons who, or classes of persons who, are entitled under clause 52 to make applications on the agency's behalf.

54 Contents of application

A written application under clause 52 by a Part 5.3 IPO agency for an international production order must set out:

- (a) the name of the agency; and
- (b) the name of the person making the application on the agency's behalf.

55 Affidavits to accompany written application

- (1) A written application under clause 52 by a Part 5.3 IPO agency for an international production order must be accompanied by an affidavit complying with this clause.

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 55

- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) If the application is for an international production order in respect of one or more individual transmission services, the affidavit must set out the following information, so far as it can be derived from the Part 5.3 IPO agency's records:
 - (a) the number of previous applications (if any) for international production orders that the agency has made under clause 52 in relation to those individual transmission services;
 - (b) the number of international production orders (if any) previously issued in response to such applications;
 - (c) particulars of the use made by the agency of intercepted communications made available to the agency under such orders.
- (4) If the application is for an international production order in respect of one or more individual message/call application services, the affidavit must set out the following information, so far as it can be derived from the Part 5.3 IPO agency's records:
 - (a) the number of previous applications (if any) for international production orders that the agency has made under clause 52 in relation to those individual message/call application services;
 - (b) the number of international production orders (if any) previously issued in response to such applications;
 - (c) particulars of the use made by the agency of intercepted messages, voice calls or video calls made available to the agency under such orders.
- (5) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

56 Information to be given on telephone application

The information given to an eligible Judge or nominated ART member in connection with a telephone application under clause 52 to the eligible Judge or nominated ART member:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the Part 5.3 IPO agency's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 54 or 55 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the eligible Judge or nominated ART member directs.

57 Giving further information to eligible Judge or nominated ART member

- (1) An eligible Judge or nominated ART member may require further information to be given in connection with an application under clause 52 to the eligible Judge or nominated ART member for an international production order.
- (2) The further information:
 - (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the eligible Judge or nominated ART member directs.

58 Application by Part 5.3 IPO agency of Victoria

Scope

- (1) This clause applies if a Part 5.3 IPO agency of Victoria applies, under clause 52, to an eligible Judge or nominated ART member for an international production order under clause 60 that is in respect of:

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 59

- (a) one or more individual transmission services; or
- (b) one or more individual message/call application services.

PIM may make submissions

- (2) A Victorian PIM may, orally or in writing, make submissions to the eligible Judge or nominated ART member about the following matters:
 - (a) in the case of an application for an international production order that is in respect of one or more individual transmission services—the matters mentioned in paragraphs 60(5)(a) to (gb) and paragraph 60(5)(j);
 - (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services—the matters mentioned in paragraphs 60(6)(a) to (gb) and paragraph 60(6)(j).

PIM may question certain persons

- (3) The Victorian PIM may, for the purpose of making submissions under subclause (2), question:
 - (a) the person making the application for the international production order on the Part 5.3 IPO agency's behalf; or
 - (b) a person who, under clause 57, is required by the eligible Judge or nominated ART member to give further information to the eligible Judge or nominated ART member in connection with the application.

However, the Victorian PIM may only do so in the presence of the eligible Judge or nominated ART member.

59 Application by Part 5.3 IPO agency of Queensland

Scope

- (1) This clause applies if a Part 5.3 IPO agency of Queensland applies, under clause 52, to an eligible Judge or nominated ART member for an international production order under clause 60 that is in respect of:
-

- (a) one or more individual transmission services; or
- (b) one or more individual message/call application services.

PIM may make submissions

- (2) A Queensland PIM may, orally or in writing, make submissions to the eligible Judge or nominated ART member about the following matters:
 - (a) in the case of an application for an international production order that is in respect of one or more individual transmission services—the matters mentioned in paragraphs 60(5)(a) to (gb) and paragraph 60(5)(j);
 - (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services—the matters mentioned in paragraphs 60(6)(a) to (gb) and paragraph 60(6)(j).

PIM may question certain persons

- (3) The Queensland PIM may, for the purpose of making submissions under subclause (2), question:
 - (a) the person making the application for the international production order on the Part 5.3 IPO agency's behalf; or
 - (b) a person who, under clause 57, is required by the eligible Judge or nominated ART member to give further information to the eligible Judge or nominated ART member in connection with the application.

However, the Queensland PIM may only do so in the presence of the eligible Judge or nominated ART member.

- (4) A Queensland PIM may, by writing, delegate to a Queensland deputy PIM the Queensland PIM's power under subclause (2) or (3), or both.
- (5) In exercising powers under the delegation, the Queensland deputy PIM must comply with any directions of the Queensland PIM.

Clause 60

Subdivision B—International production orders relating to interception

60 Issue of international production order—Part 5.3 supervisory order

Scope

- (1) This clause applies if a Part 5.3 IPO agency applies, under clause 52, to an eligible Judge or nominated ART member for an international production order that:
 - (a) is in respect of:
 - (i) one or more individual transmission services; or
 - (ii) one or more individual message/call application services; and
 - (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the eligible Judge or nominated ART member is satisfied, on the basis of the information given to the eligible Judge or nominated ART member under this Division in connection with the application, that:
 - (a) in the case of an application for an international production order that is in respect of one or more individual transmission services—there are reasonable grounds for suspecting that:
 - (i) the prescribed communications provider owns or operates a telecommunications network that is, or is likely to be, used to supply those individual transmission services; or
 - (ii) the prescribed communications provider supplies those individual transmission services; and
 - (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services—there are reasonable grounds for suspecting that the prescribed communications provider

provides those individual message/call application services;
and

- (ba) the person who made the application on behalf of the agency reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
- (c) Subdivision A has been complied with in relation to the application; and
- (d) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
- (e) in the case of an application for an international production order that is in respect of one or more individual transmission services—there are reasonable grounds for suspecting that a particular person is using, or is likely to use, those individual transmission services; and
- (f) in the case of an application for an international production order that is in respect of one or more individual message/call application services—there are reasonable grounds for suspecting that a particular person is using, or is likely to use, those individual message/call application services; and
- (g) in the case of an application for an international production order that is in respect of one or more individual transmission services:
 - (i) a Part 5.3 supervisory order is in force in relation to the particular person; or
 - (ii) a Part 5.3 supervisory order is in force in relation to another person, and the particular person is likely to communicate with the other person using those individual transmission services; and
- (h) in the case of an application for an international production order that is in respect of one or more individual message/call application services:
 - (i) a Part 5.3 supervisory order is in force in relation to the particular person; or

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 60

- (ii) a Part 5.3 supervisory order is in force in relation to another person, and the particular person is likely to communicate with the other person using those individual message/call application services; and
 - (i) in the case of an application for an international production order that is in respect of one or more individual transmission services—information that would be likely to be obtained by accessing, under an order issued under this clause, communications that are being carried by those individual transmission services would be likely to substantially assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with; and
 - (j) in the case of an application for an international production order that is in respect of one or more individual message/call application services—information that would be likely to be obtained by accessing, under an order issued under this clause, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services would be likely to substantially assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
- the eligible Judge or nominated ART member may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to:
- (k) in the case of an application for an international production order that is in respect of one or more individual transmission services:
 - (i) intercept communications carried by those individual transmission services during a specified period; and

-
- (ii) make those intercepted communications available to the Part 5.3 IPO agency; and
 - (iii) disclose to the Part 5.3 IPO agency specified telecommunications data that relates to those intercepted communications; and
 - (iv) disclose to the Part 5.3 IPO agency specified telecommunications data that relates to those individual transmission services; or
- (l) in the case of an application for an international production order that is in respect of one or more individual message/call application services:
- (i) intercept messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services during a specified period; and
 - (ii) make those intercepted messages, voice calls or video calls available to the Part 5.3 IPO agency; and
 - (iii) disclose to the Part 5.3 IPO agency specified telecommunications data that relates to those intercepted messages, voice calls or video calls; and
 - (iv) disclose to the Part 5.3 IPO agency specified telecommunications data that relates to those individual message/call application services.

Note 1: Part 5.3 of the *Criminal Code* creates offences relating to terrorist acts.

Note 2: Part 5.5 of the *Criminal Code* creates offences relating to engaging in a hostile activity in a foreign country.

Note 3: Sections 104.27 and 105A.18A of the *Criminal Code* create offences for contravening Part 5.3 supervisory orders.

Note 4: Subclauses (7) and (8) restrict the issuing of international production orders if subparagraph (2)(g)(ii) or (h)(ii) applies.

Period specified in international production order

- (3) A period specified in an international production order for the purposes of subparagraph (2)(k)(i) or (l)(i) must not begin before

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 60

the time when the order is given to the prescribed communications provider.

Note: International production orders are given under clause 111.

- (4) The period specified in an international production order for the purposes of subparagraph (2)(k)(i) or (l)(i) must not be longer than:
- (a) if subparagraph (2)(g)(ii) or (h)(ii) applies (as the case requires)—45 days; or
 - (b) otherwise—90 days.

Matters to which eligible Judge or nominated ART member must have regard

- (5) In deciding whether to issue an international production order under subclause (2) (in the case of an application for an international production order that is in respect of one or more individual transmission services), the eligible Judge or nominated ART member must have regard to the following matters:
- (a) how much the privacy of any person or persons would be likely to be interfered with by accessing, under an international production order, communications that are being carried by those individual transmission services;
 - (b) how much the information referred to in paragraph (2)(i) would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
 - (c) to what extent methods for:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;that do not involve so accessing communications have been used by, or are available to, the agency;

- (d) how much the use of such methods would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
 - (e) how much the use of such methods would be likely to prejudice:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;whether because of delay or for any other reason;
 - (f) whether accessing, under an international production order, communications carried by those individual transmission services would be the method that is likely to have the least interference with any person's privacy;
 - (g) in relation to a Part 5.3 supervisory order that is a control order—the possibility that the person in relation to whom the control order is in force:
 - (i) has engaged, is engaging, or will engage, in a terrorist act; or
 - (ii) has provided, is providing, or will provide, support for a terrorist act; or
 - (iii) has facilitated, is facilitating, or will facilitate, a terrorist act; or
 - (iv) has provided, is providing, or will provide, support for the engagement in a hostile activity in a foreign country; or
 - (v) has facilitated, is facilitating, or will facilitate, the engagement in a hostile activity in a foreign country;
 - (ga) in relation to a Part 5.3 supervisory order that is an extended supervision order or an interim supervision order—the possibility that the person in relation to whom the order is in force has committed, is committing, or will commit, a serious Part 5.3 or 5.3A offence;
-

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 60

- (gb) in relation to any Part 5.3 supervisory order—the possibility that the person in relation to whom the Part 5.3 supervisory order is in force:
 - (i) has contravened, is contravening, or will contravene, the Part 5.3 supervisory order; or
 - (ii) will contravene a succeeding Part 5.3 supervisory order;
 - (h) in relation to an application by a Part 5.3 IPO agency of Victoria—any submissions made by a Victorian PIM under clause 58 to the eligible Judge or nominated ART member;
 - (i) in relation to an application by a Part 5.3 IPO agency of Queensland—any submissions made by a Queensland PIM under clause 59 to the eligible Judge or nominated ART member;
 - (j) such other matters (if any) as the eligible Judge or nominated ART member considers relevant.
- (6) In deciding whether to issue an international production order under subclause (2) (in the case of an application for an international production order that is in respect of one or more individual message/call application services), the eligible Judge or nominated ART member must have regard to the following matters:
- (a) how much the privacy of any person or persons would be likely to be interfered with by accessing, under an international production order, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services;
 - (b) how much the information referred to in paragraph (2)(j) would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
 - (c) to what extent methods for:
 - (i) achieving a Part 5.3 object; or

- (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
- that do not involve so accessing messages, voice calls or video calls have been used by, or are available to, the agency;
- (d) how much the use of such methods would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
- (e) how much the use of such methods would be likely to prejudice:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
- whether because of delay or for any other reason;
- (f) whether accessing, under an international production order, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services would be the method that is likely to have the least interference with any person's privacy;
- (g) in relation to a Part 5.3 supervisory order that is a control order—the possibility that the person in relation to whom the control order is in force:
 - (i) has engaged, is engaging, or will engage, in a terrorist act; or
 - (ii) has provided, is providing, or will provide, support for a terrorist act; or
 - (iii) has facilitated, is facilitating, or will facilitate, a terrorist act; or
 - (iv) has provided, is providing, or will provide, support for the engagement in a hostile activity in a foreign country; or

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 60

- (v) has facilitated, is facilitating, or will facilitate, the engagement in a hostile activity in a foreign country;
- (ga) in relation to a Part 5.3 supervisory order that is an extended supervision order or an interim supervision order—the possibility that the person in relation to whom the order is in force has committed, is committing, or will commit, a serious Part 5.3 or 5.3A offence;
- (gb) in relation to any Part 5.3 supervisory order—the possibility that the person in relation to whom the Part 5.3 supervisory order is in force:
 - (i) has contravened, is contravening, or will contravene, the Part 5.3 supervisory order; or
 - (ii) will contravene a succeeding Part 5.3 supervisory order;
- (h) in relation to an application by a Part 5.3 IPO agency of Victoria—any submissions made by a Victorian PIM under clause 58 to the eligible Judge or nominated ART member; and
- (i) in relation to an application by a Part 5.3 IPO agency of Queensland—any submissions made by a Queensland PIM under clause 59 to the eligible Judge or nominated ART member;
- (j) such other matters (if any) as the eligible Judge or nominated ART member considers relevant.

Restriction on issuing order

- (7) The eligible Judge or nominated ART member must not issue an international production order under subclause (2) in a case where subparagraph (2)(g)(ii) applies, unless the eligible Judge or nominated ART member is satisfied that:
 - (a) the Part 5.3 IPO agency has exhausted all other practicable methods of identifying the individual transmission services used, or likely to be used, by the person to whom the Part 5.3 supervisory order referred to in subparagraph (2)(g)(ii) relates; or
 - (b) interception (as permitted under an international production order) of communications carried by individual transmission
-

services used or likely to be used by that person would not otherwise be possible.

- (8) The eligible Judge or nominated ART member must not issue an international production order under subclause (2) in a case where: subparagraph (2)(h)(ii) applies, unless the eligible Judge or nominated ART member is satisfied that:
- (a) the Part 5.3 IPO agency has exhausted all other practicable methods of identifying the individual message/call application services used, or likely to be used, by the person the person to whom the Part 5.3 supervisory order referred to in subparagraph (2)(h)(ii) relates; or
 - (b) interception (as permitted under an international production order) of messages sent or received, voice calls made or received, or video calls made or received, using individual message/call application services used or likely to be used by that person would not otherwise be possible.

Copying stored communications

- (9) If an international production order issued under subclause (2) directs a prescribed communications provider to intercept communications, messages, voice calls or video calls:
- (a) the prescribed communications provider may comply with the order by copying stored communications that consist of the communications, messages, voice calls or video calls; and
 - (b) a copy of a stored communication made for that purpose is taken to be a communication, message, voice call or video call (as the case may be) intercepted under the international production order.

61 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 60 in response to an application made by a Part 5.3 IPO agency.

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 61

Content

- (2) The order must be signed by the eligible Judge or nominated ART member who issued it.
- (3) The order must set out the following:
 - (a) the date on which the order was issued;
 - (b) the name of the Part 5.3 IPO agency;
 - (c) the name of the prescribed communications provider to whom the order is directed;
 - (d) the name of the designated international agreement nominated in the application for the order;
 - (e) the applicable telecommunications identifiers:
 - (i) in the case of an order that is in respect of one or more individual transmission services—to which those individual transmission services relate; or
 - (ii) in the case of an order that is in respect of one or more individual message/call application services—to which those individual message/call application services relate;
 - (f) a statement to the effect that the order is issued on the basis of a Part 5.3 supervisory order made in relation to a person;
 - (g) the name of the person;
 - (h) a statement to the effect that the Part 5.3 supervisory order is:
 - (i) an interim control order; or
 - (ii) a confirmed control order; or
 - (iii) an interim supervision order; or
 - (iv) an extended supervision order.
- (4) If the order directs a prescribed communications provider to intercept communications, the order may require the provider to:
 - (a) intercept those communications in a specified way; and
 - (b) make those intercepted communications available to the Part 5.3 IPO agency in a specified way.
- (5) A requirement under subclause (4) may:

- (a) require that intercepted communications be made available to the Part 5.3 IPO agency directly; or
 - (b) require that intercepted communications be made available to the Part 5.3 IPO agency indirectly via the Australian Designated Authority.
- (6) If the order directs a prescribed communications provider to intercept messages, voice calls or video calls, the order may require the provider to:
 - (a) intercept those messages, voice calls or video calls in a specified way; and
 - (b) make those intercepted messages, voice calls or video calls available to the Part 5.3 IPO agency in a specified way.
- (7) A requirement under subclause (6) may:
 - (a) require that intercepted messages, voice calls or video calls be made available to the Part 5.3 IPO agency directly; or
 - (b) require that intercepted messages, voice calls or video calls be made available to the Part 5.3 IPO agency indirectly via the Australian Designated Authority.
- (8) If the order directs a prescribed communications provider to disclose telecommunications data to the Part 5.3 IPO agency, the order may require the provider to disclose that data to the agency in a specified way.
- (9) A requirement under subclause (8) may:
 - (a) require that the telecommunications data be disclosed to the Part 5.3 IPO agency directly; or
 - (b) require that the telecommunications data be disclosed to the Part 5.3 IPO agency indirectly via the Australian Designated Authority.
- (10) For the purposes of this clause, a specified way may deal with matters of timing.

Example: A requirement under subclause (4) may require that an intercepted communication be made available to the Part 5.3 IPO agency within 30 minutes after the communication was completed.

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 2 International production orders relating to interception: Part 5.3 supervisory orders

Clause 62

62 Issue of further international production order

(1) If:

- (a) an international production order (the *original order*) was issued under clause 60; and
- (b) the original order was in respect of one or more individual transmission services; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 60 that is:

- (d) in respect of any or all of those services; and
- (e) directed to the provider;

so long as the period specified in the further order for the purposes of subparagraph 60(2)(k)(i) of this Schedule begins after the end of the period specified in the original order for the purposes of that subparagraph.

(2) If:

- (a) an international production order (the *original order*) was issued under clause 60; and
- (b) the original order was in respect of one or more individual message/call application services; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 60 that is:

- (d) in respect of any or all of those services; and
- (e) directed to the provider;

so long as the period specified in the further order for the purposes of subparagraph 60(2)(l)(i) of this Schedule begins after the end of the period specified in the original order for the purposes of that subparagraph.

Division 3—International production orders relating to stored communications: Part 5.3 supervisory orders

Subdivision A—Applications

63 Application for international production order—Part 5.3 supervisory order

- (1) A Part 5.3 IPO agency may apply to an issuing authority for an international production order under clause 69 that:
 - (a) is in respect of a particular person; and
 - (b) is directed to a prescribed communications provider.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the Part 5.3 IPO agency's behalf by:
 - (a) if the agency is referred to in subclause 22(3)—a person referred to in that subclause in relation to the agency; or
 - (b) otherwise:
 - (i) the chief officer of the agency; or
 - (ii) an officer of the agency (by whatever name called) who holds, or is acting in, an office or position in the agency nominated under subclause (4).
- (4) The chief officer of the Part 5.3 IPO agency may, in writing, nominate for the purposes of subparagraph (3)(b)(ii) an office or position in the agency that is involved in the management of the agency.
- (5) A nomination under subclause (4) is not a legislative instrument.

Clause 64

64 Form of application

- (1) An application under clause 63 must be in writing.
- (2) However, a person making the application on the Part 5.3 IPO agency's behalf may make the application by telephone if the person:
 - (a) is the chief officer of the agency or a person in relation to whom an authorisation by the chief officer is in force under subclause (3); and
 - (b) thinks it necessary, because of urgent circumstances, to make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

- (3) The chief officer of a Part 5.3 IPO agency may, in writing, authorise persons (including classes of persons) for the purposes of subclause (2). However, each person must be entitled under clause 63 to make applications on the agency's behalf.

65 Contents of written application

An application under clause 63 must, if it is in writing, set out:

- (a) the name of the Part 5.3 IPO agency; and
- (b) the name of the person making the application on the agency's behalf.

66 Affidavits to accompany written application

- (1) An application under clause 63 must, if it is in writing, be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

67 Information to be given on telephone application

The information given to an issuing authority in connection with a telephone application under clause 63 to the issuing authority:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the Part 5.3 IPO agency's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 65 or 66 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the issuing authority directs.

68 Giving further information to issuing authority

- (1) An issuing authority may require further information to be given in connection with an application under clause 63 to the issuing authority for an international production order.
- (2) The further information:
 - (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the issuing authority directs.

Subdivision B—International production orders relating to stored communications

69 Issue of international production order—Part 5.3 supervisory order

Scope

- (1) This clause applies if a Part 5.3 IPO agency applies, under clause 63, to an issuing authority for an international production order that:

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 3 International production orders relating to stored communications: Part 5.3 supervisory orders

Clause 69

- (a) is in respect of a particular person (the *relevant person*); and
- (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the issuing authority is satisfied, on the basis of the information given to the issuing authority under this Division in connection with the application, that:
 - (a) a Part 5.3 supervisory order is in force in relation to the relevant person; and
 - (b) there are reasonable grounds for suspecting that the prescribed communications provider holds any of the following stored communications:
 - (i) stored communications that consist of communications that the relevant person has made using a telecommunications network owned or operated by the prescribed communications provider;
 - (ii) stored communications that consist of communications that another person has made using a telecommunications network owned or operated by the prescribed communications provider, and for which the relevant person is the intended recipient;
 - (iii) stored communications that consist of communications that the relevant person has made using a transmission service supplied by the prescribed communications provider;
 - (iv) stored communications that consist of communications that another person has made using a transmission service supplied by the prescribed communications provider, and for which the relevant person is the intended recipient;
 - (v) stored communications that consist of messages that the relevant person has sent or received using a message/call application service provided by the prescribed communications provider;
 - (vi) stored communications that consist of recordings of voice calls that the relevant person has made or received

- using a message/call application service provided by the prescribed communications provider;
 - (vii) stored communications that consist of recordings of video calls that the relevant person has made or received using a message/call application service provided by the prescribed communications provider;
 - (viii) stored communications that consist of material that the relevant person has uploaded for storage or back-up by a storage/back-up service provided by the prescribed communications provider;
 - (ix) stored communications that consist of material that the relevant person has posted to a general electronic content service provided by the prescribed communications provider; and
 - (ba) the person who made the application on behalf of the agency reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
 - (c) Subdivision A has been complied with in relation to the application; and
 - (d) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
 - (e) information that would be likely to be obtained by making a copy, under an order issued under this clause, of the stored communications would be likely to substantially assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order has been, or is being, complied with;
- the issuing authority may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to:
- (f) make a copy of any such stored communications; and
 - (g) make the copy available to the Part 5.3 IPO agency; and
-

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 3 International production orders relating to stored communications: Part 5.3 supervisory orders

Clause 69

- (h) if the stored communications consist of communications carried by an individual transmission service—disclose to the agency:
 - (i) specified telecommunications data that relates to those communications; and
 - (ii) specified telecommunications data that relates to the individual transmission service; and
- (i) if the stored communications consist of messages sent or received using an individual message/call application service—disclose to the agency:
 - (i) specified telecommunications data that relates to those messages; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; or
- (j) if the stored communications consist of recordings of voice calls made or received using an individual message/call application service—disclose to the agency:
 - (i) specified telecommunications data that relates to those voice calls; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and
- (k) if the stored communications consist of recordings of video calls made or received using an individual message/call application service—disclose to the agency:
 - (i) specified telecommunications data that relates to those video calls; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and
- (l) if the stored communications consist of material that has been uploaded by an end-user for storage or back-up by a storage/back-up service—disclose to the agency:
 - (i) specified telecommunications data that relates to that material; and
 - (ii) specified telecommunications data that relates to the end-user's account with the storage/back-up service; and

- (m) if the stored communications consist of material posted to a general electronic content service by an end-user—disclose to the agency:
 - (i) specified telecommunications data that relates to that material; and
 - (ii) specified telecommunications data that relates to the end-user's account with the general electronic content service.

Matters to which issuing authority must have regard

- (3) In deciding whether to issue an international production order under subclause (2), the issuing authority must have regard to the following matters:
 - (a) how much the privacy of any person or persons would be likely to be interfered with by the Part 5.3 IPO agency obtaining, under an international production order, a copy of the stored communications;
 - (b) how much the information mentioned in paragraph (2)(e) would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order has been, or is being, complied with;
 - (c) to what extent methods for:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order has been, or is being, complied with;that do not involve so obtaining a copy of the stored communications have been used by, or are available to, the Part 5.3 IPO agency;
 - (d) how much the use of such methods would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order has been, or is being, complied with;

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 3 International production orders relating to stored communications: Part 5.3 supervisory orders

Clause 70

- (e) how much the use of such methods would be likely to prejudice:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order has been, or is being, complied with; whether because of delay or for any other reason;
- (f) such other matters (if any) as the issuing authority considers relevant.

70 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 69 in response to an application made by a Part 5.3 IPO agency.

Content

- (2) The order must be signed by the issuing authority who issued it.
- (3) The order must set out the following:
 - (a) the date on which the order was issued;
 - (b) the name of the Part 5.3 IPO agency;
 - (c) the name of the prescribed communications provider to whom the order is directed;
 - (d) the name of the designated international agreement nominated in the application for the order;
 - (e) a statement to the effect that the order is issued on the basis of a Part 5.3 supervisory order made in relation to a person;
 - (f) the name of the person;
 - (g) a statement to the effect that the Part 5.3 supervisory order is:
 - (i) an interim control order; or
 - (ii) a confirmed control order; or
 - (iii) an interim supervision order; or
 - (iv) an extended supervision order.

- (4) If the order directs a prescribed communications provider to make a copy of stored communications available to the Part 5.3 IPO agency, the order may require the provider to make that copy available to the agency in a specified way.
- (5) A requirement under subclause (4) may:
 - (a) require that a copy of stored communications be made available to the Part 5.3 IPO agency directly; or
 - (b) require that a copy of stored communications be made available to the Part 5.3 IPO agency indirectly via the Australian Designated Authority.
- (6) If the order directs a prescribed communications provider to disclose telecommunications data to the Part 5.3 IPO agency, the order may require the provider to disclose that data to the agency in a specified way.
- (7) A requirement under subclause (6) may:
 - (a) require that the telecommunications data be disclosed to the Part 5.3 IPO agency directly; or
 - (b) require that the telecommunications data be disclosed to the Part 5.3 IPO agency indirectly via the Australian Designated Authority.
- (8) For the purposes of this clause, a specified way may deal with matters of timing.

71 Issue of further international production order

If:

- (a) an international production order (the ***original order***) was issued under clause 69; and
- (b) the original order was in respect of a particular person; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 69 that:

- (d) is in respect of the person; and

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 3 International production orders relating to stored communications: Part 5.3 supervisory orders

Clause 71

(e) is directed to the provider.

Division 4—International production orders relating to telecommunications data: Part 5.3 supervisory orders

Subdivision A—Applications

72 Application for international production order—Part 5.3 supervisory order

- (1) A Part 5.3 IPO agency may apply to an issuing authority for an international production order under clause 78 that:
 - (a) is in respect of a particular person; and
 - (b) is directed to a prescribed communications provider.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the Part 5.3 IPO agency's behalf by an authorised officer of the agency.

73 Form of application

- (1) An application under clause 72 must be in writing.
- (2) However, a person making the application on the Part 5.3 IPO agency's behalf may make the application by telephone if the person:
 - (a) is the chief officer of the agency or a person in relation to whom an authorisation by the chief officer is in force under subclause (3); and
 - (b) thinks it necessary, because of urgent circumstances, to make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 4 International production orders relating to telecommunications data: Part 5.3 supervisory orders

Clause 74

- (3) The chief officer of a Part 5.3 IPO agency may, in writing, authorise persons (including classes of persons) for the purposes of subclause (2). However, each person must be entitled under clause 72 to make applications on the agency's behalf.

74 Contents of written application

An application under clause 72 must, if it is in writing, set out:

- (a) the name of the Part 5.3 IPO agency; and
- (b) the name of the person making the application on the agency's behalf.

75 Affidavits to accompany written application

- (1) An application under clause 72 must, if it is in writing, be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

76 Information to be given on telephone application

The information given to an issuing authority in connection with a telephone application under clause 72 to the issuing authority:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the Part 5.3 IPO agency's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 74 or 75 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the issuing authority directs.

77 Giving further information to issuing authority

- (1) An issuing authority may require further information to be given in connection with an application under clause 72 to the issuing authority for an international production order.
- (2) The further information:
 - (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the issuing authority directs.

Subdivision B—International production orders relating to telecommunications data

78 Issue of international production order—Part 5.3 supervisory order

Scope

- (1) This clause applies if a Part 5.3 IPO agency applies, under clause 72, to an issuing authority for an international production order that:
 - (a) is in respect of a particular person (the *relevant person*); and
 - (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the issuing authority is satisfied, on the basis of the information given to the issuing authority under this Division in connection with the application, that:
 - (a) a Part 5.3 supervisory order is in force in relation to the relevant person; and
 - (b) there are reasonable grounds for suspecting that the prescribed communications provider holds, or is likely to commence to hold, any of the following telecommunications data:

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 4 International production orders relating to telecommunications data: Part 5.3 supervisory orders

Clause 78

- (i) telecommunications data that relates to communications that the relevant person has made using an individual transmission service supplied by the prescribed communications provider;
- (ii) telecommunications data that relates to an individual transmission service supplied using a telecommunications network owned or operated by the prescribed communications provider, where the individual transmission service is used, or is likely to be used, by the relevant person;
- (iii) telecommunications data that relates to an individual transmission service supplied by the prescribed communications provider, where the individual transmission service is used, or is likely to be used, by the relevant person;
- (iv) telecommunications data that relates to messages sent or received by the relevant person using an individual message/call application service provided by the prescribed communications provider;
- (v) telecommunications data that relates to voice calls made or received by the relevant person using an individual message/call application service provided by the prescribed communications provider;
- (vi) telecommunications data that relates to video calls made or received by the relevant person using an individual message/call application service provided by the prescribed communications provider;
- (vii) telecommunications data that relates to an individual message/call application service provided by the prescribed communications provider, where the individual message/call application service is used, or is likely to be used, by the relevant person;
- (viii) telecommunications data that relates to material that has been uploaded by the relevant person for storage or back-up by a storage/back-up service provided by the prescribed communications provider;

- (ix) telecommunications data that relates to material that has been posted by the relevant person on a general electronic content service provided by the prescribed communications provider; and
 - (ba) the person who made the application on behalf of the agency reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
 - (c) Subdivision A has been complied with in relation to the application; and
 - (d) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
 - (e) disclosing the telecommunications data to the agency, under an order issued under this clause, would be likely to substantially assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
- the issuing authority may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to do either or both of the following:
- (f) so far as the telecommunications data is held by the prescribed communications provider when the international production order comes into force—disclose any such telecommunications data to the agency;
 - (g) so far as the telecommunications data commences to be held by the prescribed communications provider during a specified period—disclose any such telecommunications data to the agency.

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 4 International production orders relating to telecommunications data: Part 5.3 supervisory orders

Clause 78

Period specified in international production order

- (3) A period specified in an international production order for the purposes of paragraph (2)(g) must not begin before the time when the order is given to the prescribed communications provider.

Note: International production orders are given under clause 111.

- (4) A period specified in an international production order for the purposes of paragraph (2)(g) must not be longer than 90 days.
- (5) In deciding whether to issue an international production order under subclause (2), the issuing authority must have regard to the following matters:
- (a) how much the privacy of any person or persons would be likely to be interfered with by obtaining, under an international production order, the telecommunications data;
 - (b) how much the telecommunications data would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;
 - (c) to what extent methods for:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;that do not involve so obtaining the telecommunications data have been used by, or are available to, the Part 5.3 IPO agency;
 - (d) how much the use of such methods would be likely to assist in connection with:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;

- (e) how much the use of such methods would be likely to prejudice:
 - (i) achieving a Part 5.3 object; or
 - (ii) determining whether the Part 5.3 supervisory order, or any succeeding Part 5.3 supervisory order, has been, or is being, complied with;whether because of delay or for any other reason;
- (f) such other matters (if any) as the issuing authority considers relevant.

79 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 78 in response to an application made by a Part 5.3 IPO agency.

Content

- (2) The order must be signed by the issuing authority who issued it.
- (3) The order must set out the following:
 - (a) the date on which the order was issued;
 - (b) the name of the Part 5.3 IPO agency;
 - (c) the name of the prescribed communications provider to whom the order is directed;
 - (d) the name of the designated international agreement nominated in the application for the order;
 - (e) a statement to the effect that the order is issued on the basis of a Part 5.3 supervisory order made in relation to a person;
 - (f) the name of the person;
 - (g) a statement to the effect that the Part 5.3 supervisory order is:
 - (i) an interim control order; or
 - (ii) a confirmed control order; or
 - (iii) an interim supervision order; or

Schedule 1 International production orders

Part 3 International production orders relating to Part 5.3 supervisory orders

Division 4 International production orders relating to telecommunications data: Part 5.3 supervisory orders

Clause 80

(iv) an extended supervision order.

- (4) If the order directs a prescribed communications provider to disclose telecommunications data to the Part 5.3 IPO agency, the order may require the provider to disclose that data to the agency in a specified way.
- (5) A requirement under subclause (4) may:
- (a) require that the telecommunications data be disclosed to the Part 5.3 IPO agency directly; or
 - (b) require that the telecommunications data be disclosed to the Part 5.3 IPO agency indirectly via the Australian Designated Authority.
- (6) For the purposes of this clause, a specified way may deal with matters of timing.

Example: If a requirement under subclause (4) relates to telecommunications data that commences to be held by a prescribed communications provider during a specified period, the requirement may require that the telecommunications data be disclosed to the Part 5.3 IPO agency within 30 minutes after the telecommunications data commences to be held.

80 Issue of further international production order

If:

- (a) an international production order (the *original order*) was issued under clause 78; and
- (b) the original order was in respect of a particular person; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 78 that:

- (d) is in respect of the person; and
- (e) is directed to the provider.

**Division 5—Notification to Ombudsman or the
Inspector-General of Intelligence and Security by
Part 5.3 IPO agencies in relation to international
production orders**

**81 Notification to Ombudsman or the Inspector-General of
Intelligence and Security by Part 5.3 IPO agencies in
relation to international production orders**

- (1) Within 3 months after an international production order is issued under this Part in response to an application by a Part 5.3 IPO agency, the chief officer of the agency must:
 - (a) if the agency is the ACC:
 - (i) notify the Inspector-General of Intelligence and Security that the order has been issued; and
 - (ii) give to the Inspector-General of Intelligence and Security a copy of the order; and
 - (b) otherwise:
 - (i) notify the Ombudsman that the order has been issued; and
 - (ii) give to the Ombudsman a copy of the order.
- (2) If the chief officer of a Part 5.3 IPO agency contravenes paragraph 114(1)(d) of this Schedule (so far as that paragraph relates to an international production order issued under this Part), the chief officer must:
 - (a) notify the Ombudsman or the Inspector-General of Intelligence and Security (as the case requires) of the contravention; and
 - (b) do so as soon as practicable after the contravention.
- (3) A failure to comply with subclause (1) or (2) does not affect the validity of an international production order.

Part 4—International production orders relating to national security

Division 1—Introduction

82 Simplified outline of this Part

- International production orders may be issued for purposes in connection with the carrying out by the Organisation of its functions.
- There are 3 types of international production orders:
 - (a) international production orders relating to interception; and
 - (b) international production orders relating to stored communications; and
 - (c) international production orders relating to telecommunications data.
- An international production order is directed to a prescribed communications provider.
- An international production order may be issued in response to an application made by the Organisation.
- An application for an international production order must nominate a designated international agreement.

Note: An international production order comes into force when it is given to a prescribed communications provider under clause 112.

Division 2—International production orders relating to interception: national security

Subdivision A—Applications

83 Application for international production order—national security

- (1) The Organisation may apply to a nominated ART Intelligence and Security member for an international production order under clause 89 that:
 - (a) is in respect of:
 - (i) one or more individual transmission services; or
 - (ii) one or more individual message/call application services; and
 - (b) is directed to a prescribed communications provider.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the Organisation's behalf by:
 - (a) the Director-General of Security; or
 - (b) a Deputy Director-General of Security; or
 - (c) a senior position-holder in relation to whom an authorisation is in force under subclause (4).
- (4) The Director-General of Security may authorise in writing, for the purposes of subclause (3), senior position-holders who, or classes of senior position-holders who, are entitled under subclause (1) to make applications on the Organisation's behalf.

Attorney-General's consent to the making of an application

- (5) The Organisation must not make an application under subclause (1) unless the Attorney-General has consented to the making of the application.

Clause 83

- (6) The Attorney-General must not consent to the making of an application under subclause (1) for an international production order that is in respect of one or more individual transmission services unless the Attorney-General is satisfied that:
- (a) there are reasonable grounds for suspecting that those individual transmission services are being, or are likely to be:
 - (i) used by a person engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or
 - (ii) the means by which a person receives or sends a communication from or to another person who is engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or
 - (iii) used for purposes prejudicial to security; and
 - (b) information that would be likely to be obtained by accessing, under an order issued in response to the application, communications that are being carried by those individual transmission services would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security.
- (7) The Attorney-General must not consent to the making of an application under subclause (1) for an international production order that is in respect of one or more individual message/call application services unless the Attorney-General is satisfied that:
- (a) there are reasonable grounds for suspecting that those individual message/call application services are being, or are likely to be:
 - (i) used by a person engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or
 - (ii) the means by which a person receives or sends a message, or receives or makes a voice call or video call, from or to another person who is engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or

- (iii) used for purposes prejudicial to security; and
- (b) information that would be likely to be obtained by accessing, under an order issued in response to the application, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security.

Form of Attorney-General's consent to the making of an application

- (8) Subject to subclause (9), a consent given by the Attorney-General under subclause (5) must be in writing.
- (9) If the person who proposes to make an application under subclause (1) on the Organisation's behalf thinks it necessary, because of urgent circumstances, for the Attorney-General to consent orally to the making of the application:
 - (a) the person may request the Attorney-General to consent orally to the making of the application; and
 - (b) if the person makes such a request—the Attorney-General may consent orally to the making of the application.

Note: See also clause 17A (urgent circumstances).

- (9A) At the same time as a request is made by a person under subclause (9), the person must inform the Attorney-General of the particulars of the urgent circumstances because of which the person thought it necessary for the Attorney-General to consent orally to the making of the application concerned.
- (10) If, in response to a request made by a person under subclause (9), the Attorney-General consents orally to the making of an application, the person must:
 - (a) give the Attorney-General a written report that sets out:
 - (i) particulars of the urgent circumstances because of which the person thought it necessary for the Attorney-General to consent orally; and

Clause 84

- (ii) whether the application was granted, withdrawn or refused; and
 - (b) do so within 3 working days after the day on which the application was granted, withdrawn or refused.
- (11) If, in response to a request made by a person under subclause (9), the Attorney-General consents orally to the making of an application, the Organisation must:
 - (a) give the Inspector-General of Intelligence and Security a copy of the relevant report under subclause (10); and
 - (b) do so within 3 working days after the day on which the application was granted, withdrawn or refused.

84 Form of application

- (1) Subject to subclause (2), an application under clause 83 for an international production order must be in writing.
- (2) If the person making an application under clause 83 for an international production order on the Organisation's behalf thinks it necessary, because of urgent circumstances, to make the application by telephone, the person may make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

85 Contents of application

A written application under clause 83 for an international production order must set out:

- (a) a statement to the effect that the application is made by the Organisation; and
- (b) the name of the person making the application on the Organisation's behalf.

86 Affidavits to accompany written application

- (1) A written application under clause 83 for an international production order must be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) If the application is for an international production order in respect of one or more individual transmission services, the affidavit must set out the following information, so far as it can be derived from the Organisation's records:
 - (a) the number of previous applications (if any) for international production orders that the Organisation has made under clause 83 in relation to those individual transmission services;
 - (b) the number of international production orders (if any) previously issued in response to such applications;
 - (c) particulars of the use made by the Organisation of intercepted communications made available to the Organisation under such orders.
- (4) If the application is for an international production order in respect of one or more individual message/call application services, the affidavit must set out the following information, so far as it can be derived from the Organisation's records:
 - (a) the number of previous applications (if any) for international production orders that the Organisation has made under clause 83 in relation to those individual message/call application services;
 - (b) the number of international production orders (if any) previously issued in response to such applications;
 - (c) particulars of the use made by the Organisation of intercepted messages, voice calls or video calls made available to the Organisation under such orders.

Clause 87

- (5) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

87 Information to be given on telephone application

The information given to a nominated ART Intelligence and Security member in connection with a telephone application under clause 83 to the nominated ART Intelligence and Security member:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the Organisation's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 85 or 86 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the nominated ART Intelligence and Security member directs.

88 Giving further information to nominated ART Intelligence and Security member

- (1) A nominated ART Intelligence and Security member may require further information to be given in connection with an application under clause 83 to the nominated ART Intelligence and Security member for an international production order.
- (2) The further information:
 - (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the nominated ART Intelligence and Security member directs.

Subdivision B—International production orders relating to interception

89 Issue of international production order—national security

Scope

- (1) This clause applies if the Organisation applies, under clause 83, to a nominated ART Intelligence and Security member for an international production order that:
 - (a) is in respect of:
 - (i) one or more individual transmission services; or
 - (ii) one or more individual message/call application services; and
 - (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the nominated ART Intelligence and Security member is satisfied, on the basis of the information given to the nominated ART Intelligence and Security member under this Division in connection with the application, that:
 - (a) in the case of an application for an international production order that is in respect of one or more individual transmission services—there are reasonable grounds for suspecting that:
 - (i) the prescribed communications provider owns or operates a telecommunications network that is, or is likely to be, used to supply those individual transmission services; or
 - (ii) the prescribed communications provider supplies those individual transmission services; and
 - (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services—there are reasonable grounds for suspecting that the prescribed communications provider provides those individual message/call application services; and

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 2 International production orders relating to interception: national security

Clause 89

- (ba) the person who made the application on behalf of the Organisation reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
- (c) Subdivision A has been complied with in relation to the application; and
- (d) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
- (e) in the case of an application for an international production order that is in respect of one or more individual transmission services—there are reasonable grounds for suspecting that those services are being, or are likely to be:
 - (i) used by a person engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or
 - (ii) the means by which a person receives or sends a communication from or to another person who is engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or
 - (iii) used for purposes prejudicial to security; and
- (f) in the case of an application for an international production order that is in respect of one or more individual message/call application services—there are reasonable grounds for suspecting that those services are being, or are likely to be:
 - (i) used by a person engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or
 - (ii) the means by which a person receives or sends a message, or receives or makes a voice call or video call, from or to another person who is engaged in, or reasonably suspected of being engaged in, or of being likely to engage in, activities prejudicial to security; or
 - (iii) used for purposes prejudicial to security; and

- (g) in the case of an application for an international production order that is in respect of one or more individual transmission services—there are reasonable grounds for suspecting that information that would be likely to be obtained by accessing, under an order issued under this clause, communications that are being carried by those individual transmission services would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security; and
- (h) in the case of an application for an international production order that is in respect of one or more individual message/call application services—there are reasonable grounds for suspecting that information that would be likely to be obtained by accessing, under an order issued under this clause, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security;

the nominated ART Intelligence and Security member may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to:

- (i) in the case of an application for an international production order that is in respect of one or more individual transmission services:
 - (i) intercept communications carried by those individual transmission services during a specified period; and
 - (ii) make those intercepted communications available to the Organisation; and
 - (iii) disclose to the Organisation specified telecommunications data that relates to those intercepted communications; and
 - (iv) disclose to the Organisation specified telecommunications data that relates to those individual transmission services; or
- (j) in the case of an application for an international production order that is in respect of one or more individual message/call application services:

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 2 International production orders relating to interception: national security

Clause 89

- (i) intercept messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services during a specified period; and
- (ii) make those intercepted messages, voice calls or video calls available to the Organisation; and
- (iii) disclose to the Organisation specified telecommunications data that relates to those intercepted messages, voice calls or video calls; and
- (iv) disclose to the Organisation specified telecommunications data that relates to those individual message/call application services.

Note: Subclauses (6) and (7) restrict the issuing of international production orders if subparagraph (2)(e)(ii) or (f)(ii) applies.

Period specified in international production order

- (3) A period specified in an international production order for the purposes of subparagraph (2)(i)(i) or (j)(i) must not begin before the time when the order is given to the prescribed communications provider.

Note: International production orders are given under clause 112.

- (4) The period specified in an international production order for the purposes of subparagraph (2)(i)(i) or (j)(i) must not be longer than:
 - (a) if subparagraph (2)(e)(ii) or (f)(ii) applies (as the case requires)—3 months; or
 - (b) otherwise—6 months.

Matters to which nominated ART Intelligence and Security member must have regard

- (5) In deciding whether to issue an international production order under subclause (2), the nominated ART Intelligence and Security member must have regard to the following matters:
 - (a) in the case of an application for an international production order that is in respect of one or more individual transmission services:

- (i) to what extent methods of carrying out the Organisation's function of obtaining intelligence relating to security (so far as carrying out that function relates to the target) that are less intrusive than accessing, under such an order, communications being carried by those individual transmission services have been used by, or are available to, the Organisation; and
 - (ii) how much the use of such methods would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security (so far as carrying out that function relates to the target); and
 - (iii) how much the use of such methods would be likely to prejudice the Organisation in carrying out its function of obtaining intelligence relating to security (so far as carrying out that function relates to the target), whether because of delay or for any other reason; and
 - (iv) such other matters (if any) as the nominated ART Intelligence and Security member considers relevant;
- (b) in the case of an application for an international production order that is in respect of one or more individual message/call application services:
- (i) to what extent methods of carrying out the Organisation's function of obtaining intelligence relating to security (so far as carrying out that function relates to the target) that are less intrusive than accessing, under such an order, messages sent or received, voice calls made or received, or video calls made or received, using those individual message/call application services have been used by, or are available to, the Organisation; and
 - (ii) how much the use of such methods would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security (so far as carrying out that function relates to the target); and
 - (iii) how much the use of such methods would be likely to prejudice the Organisation in carrying out its function of obtaining intelligence relating to security (so far as

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 2 International production orders relating to interception: national security

Clause 89

carrying out that function relates to the target), whether because of delay or for any other reason; and

- (iv) such other matters (if any) as the nominated ART Intelligence and Security member considers relevant.

Note: For *target*, see subclause (8).

Restriction on issuing order

- (6) The nominated ART Intelligence and Security member must not issue an international production order under subclause (2) in a case where subparagraph (2)(e)(ii) applies unless the nominated ART Intelligence and Security member is satisfied that:
- (a) the Organisation has exhausted all other practicable methods of identifying the individual transmission services used, or likely to be used, by the other person mentioned in subparagraph (2)(e)(ii); or
 - (b) interception (as permitted under an international production order) of communications carried by individual transmission services used or likely to be used by that other person would not otherwise be possible.
- (7) The nominated ART Intelligence and Security member must not issue an international production order under subclause (2) in a case where subparagraph (2)(f)(ii) applies unless the nominated ART Intelligence and Security member is satisfied that:
- (a) the Organisation has exhausted all other practicable methods of identifying the individual message/call application services used, or likely to be used, by the other person mentioned in subparagraph (2)(f)(ii); or
 - (b) interception (as permitted under an international production order) of messages sent or received, voice calls made or received, or video calls made or received, using individual message/call application services used or likely to be used by that other person would not otherwise be possible.

Copying stored communications

- (7A) If an international production order issued under subclause (2) directs a prescribed communications provider to intercept communications, messages, voice calls or video calls:
- (a) the prescribed communications provider may comply with the order by copying stored communications that consist of the communications, messages, voice calls or video calls; and
 - (b) a copy of a stored communication made for that purpose is taken to be a communication, message, voice call or video call (as the case may be) intercepted under the international production order.

Target

- (8) For the purposes of this clause, **target** means:
- (a) if subparagraph (2)(e)(i) or (f)(i) applies—the person referred to in that subparagraph; or
 - (b) if subparagraph (2)(e)(ii) or (f)(ii) applies—the other person referred to in that subparagraph; or
 - (c) if subparagraph (2)(e)(iii) or (f)(iii) applies—the purposes referred to in that subparagraph.

90 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 89.

Content

- (2) The order must be signed by the nominated ART Intelligence and Security member who issued it.
- (3) The order must set out the following:
- (a) the date on which the order was issued;

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 2 International production orders relating to interception: national security

Clause 90

- (b) the name of the prescribed communications provider to whom the order is directed;
 - (c) the name of the designated international agreement nominated in the application for the order;
 - (d) the applicable telecommunications identifiers:
 - (i) in the case of an order that is in respect of one or more individual transmission services—to which those individual transmission services relate; or
 - (ii) in the case of an order that is in respect of one or more individual message/call application services—to which those individual message/call application services relate.
- (4) If the order directs a prescribed communications provider to intercept communications, the order may require the provider to:
 - (a) intercept those communications in a specified way; and
 - (b) make those intercepted communications available to the Organisation in a specified way.
- (5) A requirement under subclause (4) may:
 - (a) require that intercepted communications be made available to the Organisation directly; or
 - (b) require that intercepted communications be made available to the Organisation indirectly via the Australian Designated Authority.
- (6) If the order directs a prescribed communications provider to intercept messages, voice calls or video calls, the order may require the provider to:
 - (a) intercept those messages, voice calls or video calls in a specified way; and
 - (b) make those intercepted messages, voice calls or video calls available to the Organisation in a specified way.
- (7) A requirement under subclause (6) may:
 - (a) require that intercepted messages, voice calls or video calls be made available to the Organisation directly; or

- (b) require that intercepted messages, voice calls or video calls be made available to the Organisation indirectly via the Australian Designated Authority.
- (8) If the order directs a prescribed communications provider to disclose telecommunications data to the Organisation, the order may require the provider to disclose that data to the Organisation in a specified way.
- (9) A requirement under subclause (8) may:
 - (a) require that the telecommunications data be disclosed to the Organisation directly; or
 - (b) require that the telecommunications data be disclosed to the Organisation indirectly via the Australian Designated Authority.
- (10) For the purposes of this clause, a specified way may deal with matters of timing.

Example: A requirement under subclause (4) may require that an intercepted communication be made available to the Organisation within 30 minutes after the communication was completed.

91 Issue of further international production order

- (1) If:
 - (a) an international production order (the ***original order***) was issued under clause 89; and
 - (b) the original order was in respect of one or more individual transmission services; and
 - (c) the original order was directed to a prescribed communications provider;this Schedule does not prevent the issue of a further international production order under clause 89 that is:
 - (d) in respect of any or all of those services; and
 - (e) directed to the provider;so long as the period specified in the further order for the purposes of subparagraph 89(2)(i)(i) of this Schedule begins after the end of

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 2 International production orders relating to interception: national security

Clause 91

the period specified in the original order for the purposes of that subparagraph.

(2) If:

- (a) an international production order (the *original order*) was issued under clause 89; and
- (b) the original order was in respect of one or more individual message/call application services; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 89 that is:

- (d) in respect of any or all of those services; and
- (e) directed to the provider;

so long as the period specified in the further order for the purposes of subparagraph 89(2)(j)(i) of this Schedule begins after the end of the period specified in the original order for the purposes of that subparagraph.

Division 3—International production orders relating to stored communications: national security

Subdivision A—Applications

92 Application for international production order—national security

- (1) The Organisation may apply to a nominated ART Intelligence and Security member for an international production order under clause 98 that:
 - (a) is in respect of a particular person; and
 - (b) is directed to a prescribed communications provider.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the Organisation's behalf by:
 - (a) the Director-General of Security; or
 - (b) a Deputy Director-General of Security; or
 - (c) a senior position-holder in relation to whom an authorisation is in force under subclause (4).
- (4) The Director-General of Security may authorise in writing, for the purposes of subclause (3), senior position-holders who, or classes of senior position-holders who, are entitled under subclause (1) to make applications on the Organisation's behalf.

Attorney-General's consent to the making of an application

- (5) The Organisation must not make an application under subclause (1) unless the Attorney-General has consented to the making of the application.
- (6) The Attorney-General must not consent to the making of an application under subclause (1) for an international production

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 3 International production orders relating to stored communications: national security

Clause 92

order that is in respect of a particular person unless the Attorney-General is satisfied that:

- (a) there are reasonable grounds for suspecting that the person is engaged in, or is likely to engage in, activities prejudicial to security; and
- (b) information that would be likely to be obtained by making a copy, under an international production order issued in response to the application, of the stored communications covered by the application would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security.

Form of Attorney-General's consent to the making of an application

- (7) Subject to subclause (8), a consent given by the Attorney-General under subclause (5) must be in writing.
- (8) If the person who proposes to make an application under subclause (1) on the Organisation's behalf thinks it necessary, because of urgent circumstances, for the Attorney-General to consent orally to the making of the application:
 - (a) the person may request the Attorney-General to consent orally to the making of the application; and
 - (b) if the person makes such a request—the Attorney-General may consent orally to the making of the application.

Note: See also clause 17A (urgent circumstances).

- (8A) At the same time as a request is made by a person under subclause (8), the person must inform the Attorney-General of the particulars of the urgent circumstances because of which the person thought it necessary for the Attorney-General to consent orally to the making of the application concerned.
- (9) If, in response to a request made by a person under subclause (8), the Attorney-General consents orally to the making of an application, the person must:
 - (a) give the Attorney-General a written report that sets out:

- (i) particulars of the urgent circumstances because of which the person thought it necessary for the Attorney-General to consent orally; and
 - (ii) whether the application was granted, withdrawn or refused; and
 - (b) do so within 3 working days after the day on which the application was granted, withdrawn or refused.
- (10) If, in response to a request made by a person under subclause (8), the Attorney-General consents orally to the making of an application, the Organisation must:
- (a) give the Inspector-General of Intelligence and Security a copy of the relevant report under subclause (9); and
 - (b) do so within 3 working days after the day on which the application was granted, withdrawn or refused.

93 Form of application

- (1) An application under clause 92 must be in writing.
- (2) If the person making an application under clause 92 for an international production order on the Organisation's behalf thinks it necessary, because of urgent circumstances, to make the application by telephone, the person may make the application by telephone.

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

94 Contents of written application

An application under clause 92 must, if it is in writing, set out:

- (a) a statement to the effect that the application is made by the Organisation; and
- (b) the name of the person making the application on the Organisation's behalf.

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 3 International production orders relating to stored communications: national security

Clause 95

95 Affidavits to accompany written application

- (1) An application under clause 92 must, if it is in writing, be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

96 Information to be given on telephone application

The information given to a nominated ART Intelligence and Security member in connection with a telephone application under clause 92 to the nominated ART Intelligence and Security member:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the Organisation's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 94 or 95 would have required the application, or an affidavit accompanying it, to set out; and
- (c) must be given orally or in writing, as the nominated ART Intelligence and Security member directs.

97 Giving further information to nominated ART Intelligence and Security member

- (1) A nominated ART Intelligence and Security member may require further information to be given in connection with an application under clause 92 to the nominated ART Intelligence and Security member for an international production order.
- (2) The further information:

- (a) must be given on oath if the application was made in writing; and
- (b) must be given orally or otherwise, as the nominated ART Intelligence and Security member directs.

Subdivision B—International production orders relating to stored communications

98 Issue of international production order—national security

Scope

- (1) This clause applies if the Organisation applies, under clause 92, to a nominated ART Intelligence and Security member for an international production order that:
 - (a) is in respect of a particular person (the **relevant person**); and
 - (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the nominated ART Intelligence and Security member is satisfied, on the basis of the information given to the nominated ART Intelligence and Security member under this Division in connection with the application, that:
 - (a) there are reasonable grounds for suspecting that the relevant person is engaged in, or is likely to engage in, activities prejudicial to security; and
 - (b) there are reasonable grounds for suspecting that the prescribed communications provider holds any of the following stored communications:
 - (i) stored communications that consist of communications that the relevant person has made using a telecommunications network owned or operated by the prescribed communications provider;
 - (ii) stored communications that consist of communications that another person has made using a telecommunications network owned or operated by the

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 3 International production orders relating to stored communications: national security

Clause 98

- prescribed communications provider, and for which the relevant person is the intended recipient;
- (iii) stored communications that consist of communications that the relevant person has made using a transmission service supplied by the prescribed communications provider;
 - (iv) stored communications that consist of communications that another person has made using a transmission service supplied by the prescribed communications provider, and for which the relevant person is the intended recipient;
 - (v) stored communications that consist of messages that the relevant person has sent or received using a message/call application service provided by the prescribed communications provider;
 - (vi) stored communications that consist of recordings of voice calls that the relevant person has made or received using a message/call application service provided by the prescribed communications provider;
 - (vii) stored communications that consist of recordings of video calls that the relevant person has made or received using a message/call application service provided by the prescribed communications provider;
 - (viii) stored communications that consist of material that the relevant person has uploaded for storage or back-up by a storage/back-up service provided by the prescribed communications provider;
 - (ix) stored communications that consist of material that the relevant person has posted to a general electronic content service provided by the prescribed communications provider; and
- (ba) the person who made the application on behalf of the Organisation reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
-

- (c) Subdivision A has been complied with in relation to the application; and
- (d) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
- (e) information that would be likely to be obtained by making a copy, under an order issued under this clause, of the stored communications would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security;

the nominated ART Intelligence and Security member may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to:

- (f) make a copy of any such stored communications; and
- (g) make the copy available to the Organisation; and
- (h) if the stored communications consist of communications carried by an individual transmission service—disclose to the Organisation:
 - (i) specified telecommunications data that relates to those communications; and
 - (ii) specified telecommunications data that relates to the individual transmission service; and
- (i) if the stored communications consist of messages sent or received using an individual message/call application service—disclose to the Organisation:
 - (i) specified telecommunications data that relates to those messages; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and
- (j) if the stored communications consist of recordings of voice calls made or received using an individual message/call application service—disclose to the Organisation:
 - (i) specified telecommunications data that relates to those voice calls; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 3 International production orders relating to stored communications: national security

Clause 98

- (k) if the stored communications consist of recordings of video calls made or received using an individual message/call application service—disclose to the Organisation:
 - (i) specified telecommunications data that relates to those video calls; and
 - (ii) specified telecommunications data that relates to the individual message/call application service; and
- (l) if the stored communications consist of material that has been uploaded by an end-user for storage or back-up by a storage/back-up service—disclose to the Organisation:
 - (i) specified telecommunications data that relates to that material; and
 - (ii) specified telecommunications data that relates to the end-user's account with the storage/back-up service; and
- (m) if the stored communications consist of material posted to a general electronic content service by an end-user—disclose to the Organisation:
 - (i) specified telecommunications data that relates to that material; and
 - (ii) specified telecommunications data that relates to the end-user's account with the general electronic content service.

Matters to which nominated ART Intelligence and Security member must have regard

- (3) In deciding whether to issue an international production order under subclause (2), the nominated ART Intelligence and Security member must have regard to the following matters:
 - (a) to what extent methods of carrying out the Organisation's function of obtaining intelligence relating to security (so far as carrying out that function relates to the relevant person) that are less intrusive than obtaining, under such an order, a copy of the stored communications have been used by, or are available to, the Organisation;

- (b) how much the use of such methods would be likely to assist the Organisation in carrying out its function of obtaining intelligence relating to security (so far as carrying out that function relates to the relevant person);
- (c) how much the use of such methods would be likely to prejudice the Organisation in carrying out its function of obtaining intelligence relating to security (so far as carrying out that function relates to the relevant person);
- (d) such other matters (if any) as the nominated ART Intelligence and Security member considers relevant.

99 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 98.

Content

- (2) The order must be signed by the nominated ART Intelligence and Security member who issued it.
- (3) The order must set out the following:
 - (a) the date on which the order was issued;
 - (b) the name of the prescribed communications provider to whom the order is directed;
 - (c) the name of the designated international agreement nominated in the application for the order.
- (4) If the order directs a prescribed communications provider to make a copy of stored communications available to the Organisation, the order may require the provider to make that copy available to the Organisation in a specified way.
- (5) A requirement under subclause (4) may:
 - (a) require that a copy of stored communications be made available to the Organisation directly; or

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 3 International production orders relating to stored communications: national security

Clause 100

- (b) require that a copy of stored communications be made available to the Organisation indirectly via the Australian Designated Authority.
- (6) If the order directs a prescribed communications provider to disclose telecommunications data to the Organisation, the order may require the provider to disclose that data to the Organisation in a specified way.
- (7) A requirement under subclause (6) may:
 - (a) require that the telecommunications data be disclosed to the Organisation directly; or
 - (b) require that the telecommunications data be disclosed to the Organisation indirectly via the Australian Designated Authority.
- (8) For the purposes of this clause, a specified way may deal with matters of timing.

100 Issue of further international production order

If:

- (a) an international production order (the *original order*) was issued under clause 98; and
- (b) the original order was in respect of a particular person; and
- (c) the original order was directed to a prescribed communications provider;

this Schedule does not prevent the issue of a further international production order under clause 98 that:

- (d) is in respect of the person; and
- (e) is directed to the provider.

Division 4—International production orders relating to telecommunications data: national security

Subdivision A—Applications

101 Application for international production order—national security

- (1) The Organisation may apply to a nominated ART Intelligence and Security member for an international production order under clause 107 that:
 - (a) is in respect of a particular person; and
 - (b) is directed to a prescribed communications provider.
- (2) The application must nominate a designated international agreement.
- (3) The application must be made on the Organisation's behalf by:
 - (a) the Director-General of Security; or
 - (b) a Deputy Director-General of Security; or
 - (c) an eligible position-holder in relation to whom an authorisation is in force under subclause (4).
- (4) The Director-General of Security may authorise in writing, for the purposes of subclause (3), eligible position-holders who, or classes of eligible position-holders who, are entitled under subclause (1) to make applications on the Organisation's behalf.

102 Form of application

- (1) An application under clause 101 must be in writing.
- (2) If the person making an application under clause 101 for an international production order on the Organisation's behalf thinks it necessary, because of urgent circumstances, to make the application by telephone, the person may make the application by telephone.

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 4 International production orders relating to telecommunications data:
national security

Clause 103

Note: See also clause 17A (urgent circumstances) and clause 172 (action required).

103 Contents of written application

An application under clause 101 must, if it is in writing, set out:

- (a) a statement to the effect that the application is made by the Organisation; and
- (b) the name of the person making the application on the Organisation's behalf.

104 Affidavits to accompany written application

- (1) An application under clause 101 must, if it is in writing, be accompanied by an affidavit complying with this clause.
- (2) The affidavit must set out the facts and other grounds on which the application is based.
- (3) Despite subclause (1), a written application may be accompanied by 2 or more affidavits that together set out each matter that, apart from this subclause, this clause would have required an affidavit accompanying the application to set out.

105 Information to be given on telephone application

The information given to a nominated ART Intelligence and Security member in connection with a telephone application under clause 101 to the nominated ART Intelligence and Security member:

- (a) must include particulars of the urgent circumstances because of which the person making the application on the Organisation's behalf thinks it necessary to make the application by telephone; and
- (b) must include each matter that, if the application had been made in writing, clause 103 or 104 would have required the application, or an affidavit accompanying it, to set out; and

- (c) must be given orally or in writing, as the nominated ART Intelligence and Security member directs.

106 Giving further information to nominated ART Intelligence and Security member

- (1) A nominated ART Intelligence and Security member may require further information to be given in connection with an application under clause 101 to the nominated ART Intelligence and Security member for an international production order.
- (2) The further information:
- (a) must be given on oath if the application was made in writing; and
 - (b) must be given orally or otherwise, as the nominated ART Intelligence and Security member directs.

Subdivision B—International production orders relating to telecommunications data

107 Issue of international production order—national security

Scope

- (1) This clause applies if the Organisation applies, under clause 101, to a nominated ART Intelligence and Security member for an international production order that:
- (a) is in respect of a particular person (the *relevant person*); and
 - (b) is directed to a prescribed communications provider.

Issue of international production order

- (2) If the nominated ART Intelligence and Security member is satisfied, on the basis of the information given to the nominated ART Intelligence and Security member under this Division in connection with the application, that:

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 4 International production orders relating to telecommunications data:
national security

Clause 107

- (a) there are reasonable grounds for suspecting that the prescribed communications provider holds, or is likely to commence to hold, any of the following telecommunications data:
- (i) telecommunications data that relates to communications that the relevant person has made using an individual transmission service supplied by the prescribed communications provider;
 - (ii) telecommunications data that relates to an individual transmission service supplied using a telecommunications network owned or operated by the prescribed communications provider, where the individual transmission service is used, or is likely to be used, by the relevant person;
 - (iii) telecommunications data that relates to an individual transmission service supplied by the prescribed communications provider, where the individual transmission service is used, or is likely to be used, by the relevant person;
 - (iv) telecommunications data that relates to messages sent or received by the relevant person using an individual message/call application service provided by the prescribed communications provider;
 - (v) telecommunications data that relates to voice calls made or received by the relevant person using an individual message/call application service provided by the prescribed communications provider;
 - (vi) telecommunications data that relates to video calls made or received by the relevant person using an individual message/call application service provided by the prescribed communications provider;
 - (vii) telecommunications data that relates to an individual message/call application service provided by the prescribed communications provider, where the individual message/call application service is used, or is likely to be used, by the relevant person;

- (viii) telecommunications data that relates to material that has been uploaded by the relevant person for storage or back-up by a storage/back-up service provided by the prescribed communications provider;
 - (ix) telecommunications data that relates to material that has been posted by the relevant person on a general electronic content service provided by the prescribed communications provider; and
 - (aa) the person who made the application on behalf of the Organisation reasonably suspects that the prescribed communications provider is based in, or operates in, a foreign country that is a party to the designated international agreement nominated in the application; and
 - (b) Subdivision A has been complied with in relation to the application; and
 - (c) in the case of a telephone application—because of urgent circumstances, it was necessary to make the application by telephone; and
 - (d) disclosing the telecommunications data to the Organisation, under an order issued under this clause, would be in connection with the performance by the Organisation of its functions;
- the nominated ART Intelligence and Security member may issue an order (to be known as an ***international production order***) directing the prescribed communications provider to do either or both of the following:
- (e) so far as the telecommunications data is held by the prescribed communications provider when the international production order comes into force—disclose any such telecommunications data to the Organisation;
 - (f) so far as the telecommunications data commences to be held by the prescribed communications provider during a specified period—disclose any such telecommunications data to the Organisation.

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 4 International production orders relating to telecommunications data:
national security

Clause 108

Period specified in international production order

- (3) A period specified in an international production order for the purposes of paragraph (2)(f) must not begin before the time when the order is given to the prescribed communications provider.

Note: International production orders are given under clause 112.

- (4) A period specified in an international production order for the purposes of paragraph (2)(f) must not be longer than 90 days.

Matters to which nominated ART Intelligence and Security member must have regard

- (5) In deciding whether to issue an international production order under subclause (2), the nominated ART Intelligence and Security member must have regard to the following matters:
- (a) to what extent methods of performing the Organisation's functions (so far as performing those functions relates to the relevant person) that are less intrusive than obtaining, under such an order, the telecommunications data have been used by, or are available to, the Organisation;
 - (b) how much the use of such methods would be likely to assist the Organisation in performing its functions (so far as performing those functions relates to the relevant person);
 - (c) how much the use of such methods would be likely to prejudice the Organisation in performing its functions (so far as performing those functions relates to the relevant person), whether because of delay or for any other reason;
 - (d) such other matters (if any) as the nominated ART Intelligence and Security member considers relevant.

108 Content of international production order

Scope

- (1) This clause applies to an international production order issued under clause 107.

Content

- (2) The order must be signed by the nominated ART Intelligence and Security member who issued it.
- (3) The order must set out the following:
 - (a) the date on which the order was issued;
 - (b) the name of the prescribed communications provider to whom the order is directed;
 - (c) the name of the designated international agreement nominated in the application for the order.
- (4) If the order directs a prescribed communications provider to disclose telecommunications data to the Organisation, the order may require the provider to disclose that data to the Organisation in a specified way.
- (5) A requirement under subclause (4) may:
 - (a) require that the telecommunications data be disclosed to the Organisation directly; or
 - (b) require that the telecommunications data be disclosed to the Organisation indirectly via the Australian Designated Authority.
- (6) For the purposes of this clause, a specified way may deal with matters of timing.

Example: If a requirement under subclause (4) relates to telecommunications data that commences to be held by a prescribed communications provider during a specified period, the requirement may require that the telecommunications data be disclosed to the Organisation within 30 minutes after the telecommunications data commences to be held.

109 Issue of further international production order

If:

- (a) an international production order (the *original order*) was issued under clause 107; and
- (b) the original order was in respect of a particular person; and

Schedule 1 International production orders

Part 4 International production orders relating to national security

Division 4 International production orders relating to telecommunications data:
national security

Clause 109

- (c) the original order was directed to a prescribed communications provider;
- this Schedule does not prevent the issue of a further international production order under clause 107 that:
- (d) is in respect of the person; and
 - (e) is directed to the provider.

Part 5—Giving of international production orders

110 Simplified outline of this Part

- Before an international production order is given to a prescribed communications provider, the Australian Designated Authority must consider whether the order complies with the designated international agreement nominated in the application for the order.
- If the Australian Designated Authority is satisfied that the order complies with the designated international agreement nominated in the application for the order, the Australian Designated Authority must give the order to the prescribed communications provider. The order comes in force when it is given to the provider.
- If the Australian Designated Authority is not satisfied that the order complies with the designated international agreement nominated in the application for the order, the Australian Designated Authority must cancel the order.

111 Giving of international production orders—relevant agency

- (1) If an international production order is issued under Part 2 or 3 of this Schedule:
 - (a) the relevant agency that applied for the order must:
 - (i) give the order, or a certified copy of the order, to the Australian Designated Authority; and
 - (ii) do so as soon as practicable after the order is issued; and
 - (b) the Australian Designated Authority must consider whether the order complies with the designated international agreement nominated in the application for the order; and

Clause 111

- (c) if the Australian Designated Authority is satisfied that the order complies with the designated international agreement nominated in the application for the order—the Australian Designated Authority must:
 - (i) give the order, or the certified copy of the order, to the prescribed communications provider to whom the order is directed; and
 - (ii) do so as soon as practicable after becoming so satisfied; and
- (d) if the Australian Designated Authority is not satisfied that the order complies with the designated international agreement nominated in the application for the order—the Australian Designated Authority must:
 - (i) cancel the order; and
 - (ii) return the order, or the certified copy of the order, to the agency; and
 - (iii) give the agency such advice as the Australian Designated Authority considers appropriate in relation to compliance with the designated international agreement.

Note: See clause 171 (which deals with electronic service of documents).

- (2) For the purposes of this Schedule, if the Australian Designated Authority gives a certified copy of an international production order to a prescribed communications provider under subclause (1), the Australian Designated Authority is taken to have given the order to the prescribed communications provider under subclause (1).
- (3) An international production order issued under Part 2 or 3 of this Schedule comes into force when it is given to the prescribed communications provider to whom the order is directed.
- (4) For the purposes of this Schedule, if the Australian Designated Authority gives an international production order to a prescribed communications provider under subclause (1), the order is taken to invoke the designated international agreement nominated in the application for the order.

- (5) If the Australian Designated Authority gives an international production order to a prescribed communications provider under subclause (1), the Australian Designated Authority must notify the giving of the order to the relevant agency that applied for the order.
- (6) A cancellation under paragraph (1)(d) is to be set out in a written instrument.
- (7) If an international production order is issued under Part 2 or 3 of this Schedule, the relevant agency that applied for the order may give the Australian Designated Authority information that is likely to assist the Australian Designated Authority in making a decision under this clause in relation to the order.

112 Giving of international production orders—the Organisation

- (1) If an international production order is issued under Part 4 of this Schedule:
 - (a) the Organisation must:
 - (i) give the order, or a certified copy of the order, to the Australian Designated Authority; and
 - (ii) do so as soon as practicable after the order is issued; and
 - (b) the Australian Designated Authority must consider whether the order complies with the designated international agreement nominated in the application for the order; and
 - (c) if the Australian Designated Authority is satisfied that the order complies with the designated international agreement nominated in the application for the order—the Australian Designated Authority must:
 - (i) give the order, or the certified copy of the order, to the prescribed communications provider to whom the order is directed; and
 - (ii) do so as soon as practicable after becoming so satisfied; and
 - (d) if the Australian Designated Authority is not satisfied that the order complies with the designated international agreement

Clause 112

nominated in the application for the order—the Australian Designated Authority must:

- (i) cancel the order; and
- (ii) return the order, or the certified copy of the order, to the Organisation; and
- (iii) give the Organisation such advice as the Australian Designated Authority considers appropriate in relation to compliance with the designated international agreement.

Note: See clause 171 (which deals with electronic service of documents).

- (2) For the purposes of this Schedule, if the Australian Designated Authority gives a certified copy of an international production order to a prescribed communications provider under subclause (1), the Australian Designated Authority is taken to have given the order to the prescribed communications provider under subclause (1).
- (3) An international production order issued under Part 4 of this Schedule comes into force when it is given to the prescribed communications provider to whom the order is directed.
- (4) For the purposes of this Schedule, if the Australian Designated Authority gives an international production order to a prescribed communications provider under subclause (1), the order is taken to invoke the designated international agreement nominated in the application for the order.
- (5) If the Australian Designated Authority gives an international production order to a prescribed communications provider under subclause (1), the Australian Designated Authority must notify the giving of the order to the Organisation.
- (6) A cancellation under paragraph (1)(d) is to be set out in a written instrument.
- (7) If an international production order is issued under Part 4 of this Schedule, the Organisation may give the Australian Designated Authority information that is likely to assist the Australian

Clause 112

Designated Authority in making a decision under this clause in relation to the order.

Part 6—Revocation of international production orders

113 Simplified outline of this Part

- If an international production order was issued in response to an application made by a relevant agency, the chief officer of the agency:
 - (a) may revoke the order; and
 - (b) must revoke the order if the chief officer is satisfied that the grounds on which the order was issued have ceased to exist.
- If an international production order was issued in response to an application made by the Organisation, the Director-General of Security:
 - (a) may revoke the order; and
 - (b) must revoke the order if the Director-General of Security is satisfied that the grounds on which the order was issued have ceased to exist.
- If an international production order is revoked after it has come into force, the Australian Designated Authority must give the instrument of revocation to the prescribed communications provider to whom the order is directed.

114 Revocation of international production orders—relevant agency

- (1) If:
- (a) an international production order was issued under Part 2 or 3 of this Schedule; and
 - (b) the order was issued in response to an application made by a relevant agency;

the chief officer of the agency:

- (c) may revoke the order; and
 - (d) must revoke the order if the chief officer is satisfied that the grounds on which the order was issued have ceased to exist.
- (2) A revocation under this clause is to be set out in a written instrument.
- (3) For the purposes of the application of subclause (1) to an international production order issued under Part 3 of this Schedule on the ground that a Part 5.3 supervisory order was in force in relation to a particular person when the international production order was issued, that ground is taken to have ceased to exist if, and only if, neither that Part 5.3 supervisory order, nor any succeeding Part 5.3 supervisory order, is in force.

115 Giving of instrument of revocation—relevant agency

- (1) If an international production order is revoked under clause 114 by the chief officer of a relevant agency, the relevant agency must:
- (a) give the instrument of revocation to the Australian Designated Authority; and
 - (b) do so as soon as practicable after the order is revoked.
- (2) If:
- (a) the Australian Designated Authority gave an international production order to the prescribed communications provider to whom the order is directed; and
 - (b) the order was subsequently revoked under clause 114;
- the Australian Designated Authority must:
- (c) give the instrument of revocation to the prescribed communications provider; and
 - (d) do so as soon as practicable after the instrument of revocation is given to the Australian Designated Authority.
- (3) A revocation under clause 114 takes effect:

Clause 116

- (a) if the instrument of revocation is required to be given to the prescribed communications provider concerned—when the instrument is given; or
 - (b) otherwise—when the revocation is made.
- (4) If:
 - (a) an international production order is revoked under clause 114; and
 - (b) when the revocation takes effect, the Australian Designated Authority has not made a decision about the order under clause 111;clause 111 ceases to apply to the order when the revocation takes effect.

116 Revocation of international production orders—the Organisation

- (1) If an international production order was issued under Part 4 of this Schedule, the Director-General of Security:
 - (a) may revoke the order; and
 - (b) must revoke the order if the Director-General of Security is satisfied that the grounds on which the order was issued have ceased to exist.
- (2) A revocation under this clause is to be set out in a written instrument.

117 Giving of instrument of revocation—the Organisation

- (1) If an international production order is revoked under clause 116 by the Director-General of Security, the Organisation must:
 - (a) give the instrument of revocation to the Australian Designated Authority; and
 - (b) do so as soon as practicable after the order is revoked.

- (2) If:
- (a) the Australian Designated Authority gave an international production order to the prescribed communications provider to whom the order is directed; and
 - (b) the order was subsequently revoked under clause 116;
- the Australian Designated Authority must:
- (c) give the instrument of revocation to the prescribed communications provider; and
 - (d) do so as soon as practicable after the instrument of revocation is given to the Australian Designated Authority.
- (3) A revocation under clause 116 takes effect:
- (a) if the instrument of revocation is required to be given to the prescribed communications provider concerned—when the instrument is given; or
 - (b) otherwise—when the revocation is made.
- (4) If:
- (a) an international production order is revoked under clause 116; and
 - (b) when the revocation takes effect, the Australian Designated Authority has not made a decision about the order under clause 112;
- clause 112 ceases to apply to the order when the revocation takes effect.

118 Delegation by the chief officer of a relevant agency

- (1) The chief officer of a relevant agency may, by writing, delegate any or all of the chief officer's functions or powers under this Part to a certifying officer of the agency.
- (2) In performing functions, or exercising powers, under a delegation under subclause (1), the delegate must comply with any directions of the chief officer.

Clause 119

119 Delegation by the Director-General of Security

- (1) The Director-General of Security may, by writing, delegate any or all of the Director-General of Security's functions or powers under this Part to a person who is:
 - (a) a Deputy Director-General of Security; or
 - (b) an ASIO employee.
- (2) In performing functions, or exercising powers, under a delegation under subclause (1), the delegate must comply with any directions of the Director-General of Security.

Part 7—Objections to, and cancellation of, international production orders

120 Simplified outline of this Part

- If an international production order is given to a prescribed communications provider, the provider may object to the order on the grounds that the order does not comply with the designated international agreement nominated in the application for the order.
- The Australian Designated Authority may cancel an international production order.

121 Prescribed communications provider may object to international production order

- (1) If an international production order is given to the prescribed communications provider to whom the order is directed, the provider may, by written notice given to the Australian Designated Authority, object to the order on the grounds that the order does not comply with the designated international agreement nominated in the application for the order.
- (2) The notice must:
 - (a) be given to the Australian Designated Authority within a reasonable time after the international production order is given to the prescribed communications provider; and
 - (b) set out the reasons why the provider considers that the order does not comply with the designated international agreement nominated in the application for the order.

Clause 122

122 Cancellation of international production orders

- (1) The Australian Designated Authority may cancel an international production order.
- (2) A cancellation under subclause (1) is to be set out in a written instrument.
- (3) If an international production order is cancelled under subclause (1), the Australian Designated Authority must:
 - (a) if the order was issued under Part 2 or 3 of this Schedule in response to an application by a relevant agency:
 - (i) inform the chief officer of the relevant agency of the cancellation; and
 - (ii) do so as soon as practicable after cancelling the order; or
 - (b) if the order was issued under Part 4 of this Schedule:
 - (i) inform the Organisation of the cancellation; and
 - (ii) do so as soon as practicable after cancelling the order.
- (4) If:
 - (a) the Australian Designated Authority gave an international production order to the prescribed communications provider to whom the order is directed; and
 - (b) the order was subsequently cancelled under subclause (1);the Australian Designated Authority must:
 - (c) give the instrument of cancellation to the prescribed communications provider; and
 - (d) do so as soon as practicable after cancelling the order.
- (5) A cancellation under subclause (1) takes effect:
 - (a) if the instrument of cancellation is required to be given to the prescribed communications provider concerned—when the instrument is given; or
 - (b) otherwise—when the cancellation is made.
- (6) If:

Clause 122

- (a) an international production order is cancelled under this clause; and
 - (b) when the cancellation takes effect, the Australian Designated Authority has not made a decision about the order under clause 111 or 112 (as the case may be);
- clause 111 or 112 (as the case may be) ceases to apply to the order when the cancellation takes effect.

Part 8—Compliance with international production orders

123 Simplified outline of this Part

- Civil penalties apply for failing to comply with international production orders.

124 Compliance with international production orders

If:

- (a) an international production order is given to the prescribed communications provider to whom the order is directed; and
- (b) the order is in force; and
- (c) when the order is given, the prescribed communications provider meets the enforcement threshold;

the prescribed communications provider must comply with the order to the extent to which the prescribed communications provider is capable of doing so.

Civil penalty: 238 penalty units.

125 When a prescribed communications provider meets the enforcement threshold

- (1) For the purposes of this Schedule, if:
- (a) a prescribed communications provider owns or operates a telecommunications network that is used to supply a transmission service to one or more Australians; or
 - (b) a prescribed communications provider supplies a transmission service to one or more Australians; or
 - (c) a prescribed communications provider provides a message/call application service to one or more Australians; or

- (d) a prescribed communications provider provides a storage/back-up service to one or more Australians; or
- (e) one or more Australians have posted material on a general electronic content service provided by a prescribed communications provider;

the prescribed communications provider *meets the enforcement threshold* unless:

- (f) if paragraph (a) applies—the provider of a transmission service supplied using the telecommunications network cannot reasonably be considered to have offered or provided the transmission service on the basis of the service being available to Australians; and
- (g) if paragraph (b) applies—the prescribed communications provider cannot reasonably be considered to have offered or provided the transmission service on the basis of the service being available to Australians; and
- (h) if paragraph (c) applies—the prescribed communications provider cannot reasonably be considered to have offered or provided the message/call application service on the basis of the service being available to Australians; and
- (i) if paragraph (d) applies—the prescribed communications provider cannot reasonably be considered to have offered or provided the storage/back-up service on the basis of the service being available to Australians; and
- (j) if paragraph (e) applies—the prescribed communications provider cannot reasonably be considered to have offered or provided the general electronic content service on the basis of the opportunity to post material on the service being available to Australians.

Australian

- (2) For the purposes of this clause, *Australian* means an individual who is ordinarily resident in Australia.

Clause 126

126 Civil penalty provision—enforcement

Enforceable civil penalty provision

- (1) A civil penalty provision in this Part is enforceable under Part 4 of the *Regulatory Powers (Standard Provisions) Act 2014*.

Note: Part 4 of the *Regulatory Powers (Standard Provisions) Act 2014* allows a civil penalty provision to be enforced by obtaining an order for a person to pay a pecuniary penalty for the contravention of the provision.

Authorised applicant

- (2) For the purposes of Part 4 of the *Regulatory Powers (Standard Provisions) Act 2014*, a Communications Access Coordinator is an authorised applicant in relation to a civil penalty provision in this Part.

Relevant court

- (3) For the purposes of Part 4 of the *Regulatory Powers (Standard Provisions) Act 2014*, the Federal Court of Australia and the Federal Circuit and Family Court of Australia are relevant courts in relation to a civil penalty provision in this Part.

Penalty for a body corporate

- (4) Paragraph 82(5)(a) of the *Regulatory Powers (Standard Provisions) Act 2014*, as it applies in relation to a civil penalty provision in this Part, has effect as if “5 times” were omitted and “200 times” were substituted.

Extra-territorial application

- (5) Part 4 of the *Regulatory Powers (Standard Provisions) Act 2014*, as it applies in relation to a civil penalty provision in this Part, extends to acts, omissions, matters and things outside Australia.

Part 9—Reporting and record-keeping requirements

Division 1—Introduction

127 Simplified outline of this Part

- The chief officer of a relevant agency and the Australian Designated Authority must give the Minister annual reports about matters relating to international production orders.
- The Director-General of Security must give the Attorney-General a report on the extent to which compliance by a prescribed communications provider with an international production order has assisted the Organisation in carrying out its functions.
- The Minister must cause to be prepared annual reports about matters relating to international production orders that were issued in response to applications made by relevant agencies.
- The chief officer of a relevant agency, the Director-General of Security and the Australian Designated Authority must ensure that records are kept of matters relating to international production orders.

Division 2—Reporting requirements

128 Annual reports by relevant agencies

The chief officer of a relevant agency must, within 3 months after the end of each financial year, give the Minister a written report that sets out:

- (a) the relevant statistics about applications made by the agency under clause 22 during the financial year; and
- (b) the relevant statistics about applications made by the agency under clause 33 during the financial year; and
- (c) the relevant statistics about applications made by the agency under clause 42 during the financial year; and
- (d) the relevant statistics about applications made by the agency under clause 52 during the financial year; and
- (e) the relevant statistics about applications made by the agency under clause 63 during the financial year; and
- (f) the relevant statistics about applications made by the agency under clause 72 during the financial year; and
- (g) for each designated international agreement—the number of applications made by the agency under Part 2 or 3 of this Schedule during the financial year that nominated the designated international agreement; and
- (h) if one or more international production orders were issued before the end of the financial year in response to applications made by the agency:
 - (i) the number of occasions during the financial year on which protected information obtained in accordance with those orders was shared with other relevant agencies; and
 - (ii) the number of arrests that were made during the financial year on the basis of protected information obtained in accordance with those orders; and

- (iii) the number of prosecutions where protected information obtained in accordance with those orders was used in evidence during the financial year; and
- (iv) the number of convictions during the financial year where protected information obtained in accordance with those orders was used in evidence in the prosecutions that resulted in those convictions; and
- (i) if one or more international production orders were issued under clause 30 during the financial year, in response to applications made by the agency, on grounds relating to the investigation of one or more offences—the type or types of those offences; and
- (j) if one or more international production orders were issued under clause 39 during the financial year, in response to applications made by the agency, on grounds relating to the investigation of one or more offences—the type or types of those offences; and
- (k) if one or more international production orders were issued under clause 48 during the financial year, in response to applications made by the agency, on grounds relating to the investigation of one or more offences—the type or types of those offences; and
- (l) the number of international production orders revoked by the chief officer under clause 114 during the financial year; and
- (m) if subparagraph 30(2)(g)(ii) or (h)(ii) applied to one or more international production orders issued under clause 30 during the financial year in response to applications made by the agency—the number of those orders; and
- (n) if subparagraph 60(2)(g)(ii) or (h)(ii) applied to one or more international production orders issued under clause 60 during the financial year in response to applications made by the agency—the number of those orders.

129 Reports to be made to the Attorney-General by the Director-General of Security

The Director-General of Security must:

Clause 130

- (a) give the Attorney-General, in respect of each international production order issued under clause 89, a written report on the extent to which compliance by a prescribed communications provider with the order has assisted the Organisation in carrying out its functions; and
- (b) do so within 3 months after whichever of the following first occurs:
 - (i) the end of the last day on which the prescribed communications provider could have done an act or thing in compliance with the order;
 - (ii) the time when the order ceases to be in force because of the revocation or cancellation of the order.

130 Annual reports by the Australian Designated Authority

- (1) The Australian Designated Authority must, within 3 months after the end of each financial year, give the Minister a written report that sets out, for each relevant agency:
 - (a) if one or more international production orders issued in response to applications made by the agency were given by the Australian Designated Authority to prescribed communications providers during the financial year:
 - (i) the number of those orders; and
 - (ii) the number of each type of those orders; and
 - (iii) for each designated international agreement—the number of those orders that invoked the designated international agreement; and
 - (b) if subparagraph 30(2)(g)(ii) or (h)(ii) applied to one or more international production orders that were:
 - (i) issued under clause 30 in response to applications made by the agency; and
 - (ii) given by the Australian Designated Authority to prescribed communications providers during the financial year;
- the number of those orders; and

- (c) if subparagraph 60(2)(g)(ii) or (h)(ii) applied to one or more international production orders that were:
 - (i) issued under clause 60 in response to applications made by the agency; and
 - (ii) given by the Australian Designated Authority to prescribed communications providers during the financial year;the number of those orders; and
 - (d) if one or more international production orders issued in response to applications made by the agency were cancelled by the Australian Designated Authority under clause 111 during the financial year—the number of those orders; and
 - (e) if one or more international production orders issued in response to applications made by the agency were cancelled by the Australian Designated Authority under clause 122 during the financial year—the number of those orders; and
 - (f) if one or more instruments of revocation of international production orders issued in response to applications made by the agency were given by the Australian Designated Authority to prescribed communications providers during the financial year—the number of those instruments; and
 - (g) if one or more objections were received by the Australian Designated Authority under clause 121 during the financial year in relation to international production orders issued in response to applications made by the agency:
 - (i) the number of international production orders to which those objections relate; and
 - (ii) the number of each type of those orders; and
 - (iii) for each designated international agreement—the number of those orders that invoked the designated international agreement.
- (2) The Minister must:
- (a) cause a copy of a report under subclause (1) to be given to the Attorney-General; and
 - (b) do so as soon as practicable after receiving the report.

Clause 131

131 Annual reports by the Minister

- (1) The Minister must, as soon as practicable after the end of each financial year, cause to be prepared a written report that:
 - (a) sets out, for each relevant agency, the information contained in the report by the chief officer of the agency under clause 128 for the financial year; and
 - (b) sets out the information contained in the report by the Australian Designated Authority under clause 130 for the financial year.

Report to be tabled

- (2) The Minister must cause a copy of a report under subclause (1) to be tabled in each House of the Parliament within 15 sitting days of that House after the report is prepared.
- (3) A report under subclause (1) must not be made in a manner that is likely to enable the identification of a person.
- (4) For the purposes of section 34C of the *Acts Interpretation Act 1901*, a report that subclause (1) requires to be prepared as soon as practicable after the end of a financial year is taken to be a periodic report that this Act requires a person to furnish to the Minister and that relates to the administration of this Schedule during the financial year.

132 Deferral of inclusion of information in Ministerial report

Scope

- (1) This clause applies to information:
 - (a) included in a report given to the Minister:
 - (i) under clause 128 by the chief officer of a relevant agency; or
 - (ii) under clause 130 by the Australian Designated Authority; and

- (b) that the Minister would, apart from this clause, be required to include in the next Ministerial report.

Exclusion of information—relevant agency

- (2) If:
 - (a) subparagraph (1)(a)(i) applies; and
 - (b) the chief officer of the relevant agency is satisfied that the information is Part 5.3 information;the chief officer must advise the Minister in writing not to include the information in the next Ministerial report.
- (3) If the Minister is satisfied, on the advice of the chief officer, that the information is Part 5.3 information, the Minister must:
 - (a) notify the chief officer in writing; and
 - (b) not include the information in any Ministerial report until the Minister decides otherwise under subclause (5).

Inclusion of information in subsequent report—relevant agency

- (4) If the information has not been included in a Ministerial report because of subclause (3), the chief officer must, before the Minister prepares the next Ministerial report:
 - (a) reconsider whether the information is Part 5.3 information; and
 - (b) if the chief officer is satisfied that the information is not Part 5.3 information—advise the Minister in writing to include the information in the next Ministerial report.
- (5) If the Minister is satisfied, on the advice of the chief officer, that the information is not Part 5.3 information, the Minister must:
 - (a) notify the chief officer in writing; and
 - (b) include the information in the next Ministerial report.

Exclusion of information—Australian Designated Authority

- (6) If:
 - (a) subparagraph (1)(a)(ii) applies; and

Clause 132

- (b) the Australian Designated Authority is satisfied that the information is Part 5.3 information;
- the Australian Designated Authority must advise the Minister in writing not to include the information in the next Ministerial report.
- (7) If the Minister is satisfied, on the advice of the Australian Designated Authority, that the information is Part 5.3 information, the Minister must:
 - (a) notify the Australian Designated Authority in writing; and
 - (b) not include the information in any Ministerial report until the Minister decides otherwise under subclause (9).

Inclusion of information in subsequent report—Australian Designated Authority

- (8) If the information has not been included in a Ministerial report because of subclause (7), the Australian Designated Authority must, before the Minister prepares the next Ministerial report:
 - (a) reconsider whether the information is Part 5.3 information; and
 - (b) if the Australian Designated Authority is satisfied that the information is not Part 5.3 information—advise the Minister in writing to include the information in the next Ministerial report.
- (9) If the Minister is satisfied, on the advice of the Australian Designated Authority, that the information is not Part 5.3 information, the Minister must:
 - (a) notify the chief officer in writing; and
 - (b) include the information in the next Ministerial report.

Definitions

- (10) In this clause:

Ministerial report means a report the Minister causes to be prepared under clause 131.

Part 5.3 information means information that, if made public, could reasonably be expected to enable a reasonable person to conclude that:

- (a) an international production order is likely to be, or is not likely to be, in force under Part 3 of this Schedule in relation to:
 - (i) an individual carriage service used, or likely to be used, by a particular person; or
 - (ii) an individual message/call application service used, or likely to be used, by a particular person; or
 - (iii) stored communications that consist of communications that a particular person has made using an individual carriage service; or
 - (iv) stored communications that consist of messages that a particular person has sent or received using an individual message/call application service; or
 - (v) stored communications that consist of recordings of voice calls that a particular person has made or received using an individual message/call application service; or
 - (vi) stored communications that consist of recordings of video calls that a particular person has made or received using an individual message/call application service; or
 - (vii) stored communications that consist of material that a particular person has uploaded for storage or back-up by a storage/back-up service; or
 - (viii) stored communications that consist of material that a particular person has posted to a general electronic content service; or
 - (ix) telecommunications data that relates to communications that a particular person has made using an individual carriage service; or
 - (x) telecommunications data that relates to an individual carriage service used, or likely to be used, by a particular person; or

Clause 132

- (xi) telecommunications data that relates to messages sent or received by a particular person using an individual message/call application service; or
 - (xii) telecommunications data that relates to voice calls made or received by a particular person using an individual message/call application service; or
 - (xiii) telecommunications data that relates to video calls made or received by a particular person using an individual message/call application service; or
 - (xiv) telecommunications data that relates to an individual message/call application service used, or likely to be used, by a particular person; or
 - (xv) telecommunications data that relates to material that has been uploaded by a particular person for storage or back-up by a storage/back-up service; or
 - (xvi) telecommunications data that relates to material that has been posted by a particular person on a general electronic content service; or
- (b) an international production order is likely to be, or is not likely to be, in force under Part 3 of this Schedule in relation to a particular person.

Division 3—Record-keeping requirements

133 Keeping documents associated with international production orders—relevant agencies

- (1) The chief officer of a relevant agency must cause the following to be kept in the agency's records:
 - (a) a copy of each written application made by the agency for an international production order;
 - (b) a copy of each affidavit that accompanied a written application made by the agency for an international production order;
 - (c) a copy of each international production order issued in response to an application made by the agency;
 - (d) a copy of each authorisation given by the chief officer under subclause 23(3);
 - (e) a copy of each authorisation given by the chief officer under subclause 34(3);
 - (f) a copy of each authorisation given by the chief officer under subclause 43(3);
 - (g) a copy of each authorisation given by the chief officer under subclause 53(3);
 - (h) a copy of each authorisation given by the chief officer under subclause 64(3);
 - (i) a copy of each authorisation given by the chief officer under subclause 73(3);
 - (j) if the chief officer revokes an international production order under clause 114—a copy of the instrument of revocation.
- (2) The period for which the chief officer of a relevant agency must cause a copy of a particular document to be kept in the agency's records under subclause (1) is the period:
 - (a) starting when the document came into existence; and
 - (b) ending:

Clause 134

- (i) when 3 years have elapsed since the document came into existence; or
 - (ii) if the Ombudsman is required to give a report to the Minister under clause 150 that is about records that include the copy—when the Ombudsman gives the report;
- whichever happens earlier.

134 Other records to be kept—relevant agencies

- (1) The chief officer of a relevant agency must cause the following to be kept in the agency's records:
 - (a) details of each telephone application made by the agency for an international production order;
 - (b) for each application made by the agency for an international production order—a statement as to whether the application was granted, refused or withdrawn;
 - (c) for each international production order issued in response to an application made by the agency:
 - (i) a record of the type of order; and
 - (ii) a record of the designated international agreement nominated in the application; and
 - (iii) a statement as to whether the international production order was issued on grounds relating to the investigation of one or more offences and, if so, the type or types of those offences; and
 - (iv) if subparagraph 30(2)(g)(ii) or (h)(ii) applied to the order—a statement to that effect; and
 - (v) if subparagraph 60(2)(g)(ii) or (h)(ii) applied to the order—a statement to that effect; and
 - (vi) if a period was specified in the order—details of that period; and
 - (vii) a record of the agency giving the order, or a certified copy of the order, to the Australian Designated Authority; and

- (viii) details of each communication by an officer of the agency to a person other than an officer of the agency of protected information obtained in accordance with the order; and
 - (ix) a record of the prescribed communications provider to whom the order was directed; and
 - (x) a statement as to whether the prescribed communications provider complied with the order; and
 - (xi) if the prescribed communications provider made intercepted communications, messages, voice calls or video calls available to the agency directly—a statement to that effect; and
 - (xii) if the prescribed communications provider made stored communications or telecommunications data available to the agency directly—a statement to that effect; and
 - (xiii) if the agency used protected information obtained in accordance with the order—a statement setting out details of that use of the protected information; and
 - (xiv) if the chief officer revoked the order under clause 114—a statement setting out the reasons for the revocation; and
 - (xv) if the Australian Designated Authority cancelled the order under clause 122—a record of the cancellation; and
 - (xvi) if a certifying officer of the agency certified a document to be a true copy of the order—a statement to that effect;
 - (d) documents indicating whether a record was destroyed in accordance with subclause 140(1) or (3);
 - (e) documents and other materials of a kind prescribed under subclause (2).
- (2) The Minister may, by legislative instrument, prescribe kinds of documents and other materials that the chief officer of a relevant agency must cause to be kept in the agency's records.

Clause 135

- (3) The period for which the chief officer of a relevant agency must cause a particular item to be kept in the agency's records under subclause (1) is the period:
- (a) starting when the item came into existence; and
 - (b) ending:
 - (i) when 3 years have elapsed since the item came into existence; or
 - (ii) if the Ombudsman is required to give a report to the Minister under clause 150 that is about records that include the copy—when the Ombudsman gives the report;
- whichever happens earlier.

135 Keeping documents associated with international production orders—the Organisation

- (1) The Director-General of Security must cause the following to be kept in the Organisation's records:
- (a) a copy of each written application made under Part 4 of this Schedule for an international production order;
 - (b) a copy of each affidavit that accompanied a written application under Part 4 of this Schedule for an international production order;
 - (ba) a copy of each written request that the Attorney-General consent orally to the making of an application under Part 4 of this Schedule for an international production order;
 - (bb) a copy of each written consent by the Attorney-General to the making of an application under Part 4 of this Schedule for an international production order;
 - (bc) a copy of each report given to the Attorney-General under subclause 83(9) or 92(9);
 - (bd) a copy of each document of a kind specified in a written agreement between the Director-General of Security and the Inspector-General of Intelligence and Security;
 - (c) a copy of each international production order issued under Part 4 of this Schedule;

- (d) a copy of each authorisation given by the Director-General of Security under subclause 83(4);
 - (e) a copy of each authorisation given by the Director-General of Security under subclause 92(4);
 - (f) a copy of each authorisation given by the Director-General of Security under subclause 101(4);
 - (g) if the Director-General of Security revoked an international production order under clause 116—a copy of the instrument of revocation.
- (2) The period for which the Director-General of Security must cause a copy of a particular document to be kept in the Organisation's records under subclause (1) is the period:
- (a) starting when the document came into existence; and
 - (b) if:
 - (i) the document relates to an international production order that was issued under Part 4 of this Schedule; and
 - (ii) information was obtained in accordance with the order; ending at the later of the following times:
 - (iii) when 3 years have elapsed since the document came into existence;
 - (iv) when the Organisation ceases to retain the information that was obtained in accordance with the order; and
 - (c) if paragraph (b) does not apply—ending when 3 years have elapsed since the document came into existence.
- (3) An agreement under paragraph (1)(bd) is not a legislative instrument.

136 Other records to be kept—the Organisation

- (1) The Director-General of Security must cause the following to be kept in the Organisation's records:
- (a) details of each telephone application made under Part 4 of this Schedule for an international production order;

Clause 136

- (b) for each application made under Part 4 of this Schedule for an international production order—a statement as to whether the application was granted, refused or withdrawn;
- (ba) a record of each oral request that the Attorney-General consent orally to the making of an application under Part 4 of this Schedule for an international production order;
- (bb) a record of each oral consent by the Attorney-General to the making of an application under Part 4 of this Schedule for an international production order;
- (bc) each record of a kind specified in a written agreement between the Director-General of Security and the Inspector-General of Intelligence and Security;
- (c) for each international production order issued under Part 4 of this Schedule:
 - (i) a record of the type of order; and
 - (ii) a record of the designated international agreement nominated in the application for the order; and
 - (iii) if a period was specified in the order—details of that period; and
 - (iv) a record of the Organisation giving the order, or a certified copy of the order, to the Australian Designated Authority; and
 - (v) details of each communication by an ASIO official to a person other than an ASIO official of protected information obtained in accordance with the order; and
 - (vi) a record of the prescribed communications provider to whom the order was directed; and
 - (vii) a statement as to whether the prescribed communications provider complied with the order; and
 - (viii) if the prescribed communications provider made intercepted communications, messages, voice calls, video calls, stored communications or telecommunications data available to the Organisation directly—a statement to that effect; and

- (ix) if the Organisation used protected information obtained in accordance with the order—a statement setting out details of that use of the protected information; and
 - (x) if the Director-General of Security revokes the order under clause 116—a statement setting out the reasons for the revocation; and
 - (xi) if the Australian Designated Authority cancelled the order under clause 122—a record of the cancellation; and
 - (xii) if a certifying person certified a document to be a true copy of the order—a statement to that effect;
 - (d) documents indicating whether a record was destroyed in accordance with subclause 140(2) or (4).
- (2) The period for which the Director-General of Security must cause a particular record to be kept in the Organisation's records under subclause (1) is the period:
- (a) starting when the record came into existence; and
 - (b) if:
 - (i) the record relates to an international production order that was issued under Part 4 of this Schedule; and
 - (ii) information was obtained in accordance with the order; ending at the later of the following times:
 - (iii) when 3 years have elapsed since the record came into existence;
 - (iv) when the Organisation ceases to retain the information that was obtained in accordance with the order; and
 - (c) if paragraph (b) does not apply—ending when 3 years have elapsed since the record came into existence.
- (3) An agreement under paragraph (1)(bc) is not a legislative instrument.

Clause 137

137 Keeping documents associated with international production orders—Australian Designated Authority

- (1) The Australian Designated authority must cause the following to be kept in the Australian Designated Authority's records:
 - (a) a copy of each international production order given by the Australian Designated Authority to a prescribed communications provider;
 - (b) if an instrument of revocation of an international production order was given by the Australian Designated Authority to a prescribed communications provider—a copy of the instrument of revocation;
 - (c) if an instrument of cancellation of an international production order was given by the Australian Designated Authority to a prescribed communications provider—a copy of the instrument of cancellation;
 - (d) a copy of each objection received by the Australian Designated Authority under clause 121.
- (2) The period for which the Australian Designated Authority must cause a document to be kept in the Australian Designated Authority's records under subclause (1) is the period:
 - (a) starting when the document came into existence; and
 - (b) ending when 3 years have elapsed since the document came into existence.

138 Other records to be kept—Australian Designated Authority

- (1) The Australian Designated Authority must cause the following to be kept in the Australian Designated Authority's records:
 - (a) for each international production order given by the Australian Designated Authority to a prescribed communications provider:
 - (i) a record of the type of order; and
 - (ii) a record of the Australian entity that applied for the order; and

- (iii) the name of the designated international agreement invoked by the order; and
- (iv) the name of the prescribed communications provider; and
- (v) if, in compliance with the order, the prescribed communications provider made intercepted communications, messages, voice calls or video calls available to an Australian entity directly—a statement to that effect; and
- (vi) if, in compliance with the order, the prescribed communications provider made stored communications or telecommunications data available to an Australian entity directly—a statement to that effect;
- (b) if an international production order is cancelled by the Australian Designated Authority under clause 111, 112 or 122—a record of the cancellation and the reasons for the cancellation;
- (c) if an instrument of revocation of an international production order is given by the Australian Designated Authority to a prescribed communications provider—a record of the giving of the instrument;
- (d) if an instrument of cancellation of an international production order is given by the Australian Designated Authority to a prescribed communications provider—a record of the giving of the instrument;
- (e) if an objection is received by the Australian Designated Authority under clause 121:
 - (i) a record of the receipt of the objection; and
 - (ii) a record of the international production order to which the objection relates; and
 - (iii) a record of the type of order; and
 - (iv) the name of the designated international agreement invoked by the order; and
 - (v) the name of the prescribed communications provider to whom the order is directed; and

Clause 138

- (vi) the name of the Australian entity that applied for the order; and
- (vii) if the objection was referred to an authority (however described) of a foreign country—a record of the referral.

(2) If:

- (a) there is a designated international agreement between Australia and one or more foreign countries; and
- (b) the agreement deals with (among other things) the issue of orders (however described) by a competent authority (however described) of such a foreign country; and
- (c) such an order (the *incoming order*) is directed to a prescribed communications provider that:
 - (i) carries on activities in Australia; or
 - (ii) provides one or more services to end-users who are physically present in Australia; and
- (d) the provider notifies an authority (however described) of the foreign country that the provider objects to the incoming order:
 - (i) on the grounds that the incoming order does not comply with the designated international agreement; or
 - (ii) on similar grounds; and
- (e) the Australian Designated Authority is aware of the objection;

the Australian Designated Authority must cause the following to be kept in the Australian Designated Authority's records:

- (f) a record of the objection;
- (g) the name of the foreign entity that applied for the incoming order;
- (h) the name of the designated international agreement;
- (i) the name of the provider;
- (j) a record of whether the incoming order was cancelled (however described), withdrawn or set aside as a result of the objection;
- (k) if the Australian Designated Authority made one or more representations to an authority (however described) of the

foreign country that resulted in the incoming order being cancelled (however described), withdrawn or set aside—a record of those representations.

- (3) The period for which the Australian Designated Authority must cause a particular record to be kept in the Australian Designated Authority's records under subclause (1) or (2) is the period:
 - (a) starting when the record came into existence; and
 - (b) ending when 3 years have elapsed since the record came into existence.
- (4) For the purposes of this clause, *Australian entity* means:
 - (a) a relevant agency; or
 - (b) the Organisation.
- (5) For the purposes of this clause, *foreign entity* means an agency or authority of a foreign country.

Division 4—Register of international production orders

139 Register of international production orders

- (1) The Australian Designated Authority must cause to be kept a register of international production orders.
- (2) The Australian Designated Authority must cause each of the following to be recorded in the register in relation to each international production order:
 - (a) the date of issue of the order;
 - (b) the type of order;
 - (c) particulars of the person who issued the order;
 - (d) if a relevant agency applied for the order—the name of the relevant agency;
 - (e) if the order was issued under Part 4 of this Schedule—the fact that the Organisation applied for the order;
 - (f) the name of the prescribed communications provider to whom the order is directed;
 - (g) the name of the designated international agreement nominated in the application for the order;
 - (h) if the order was issued under clause 30—the period that was specified in the order for the purposes of subparagraph 30(2)(i)(i) or (j)(i);
 - (i) if the order was issued under clause 60—the period that was specified in the order for the purposes of subparagraph 60(2)(k)(i) or (l)(i);
 - (j) if the order was issued under clause 89—the period that was specified in the order for the purposes of subparagraph 89(2)(i)(i) or (j)(i);
 - (k) if:
 - (i) the order was issued under clause 48; and
 - (ii) a period was specified in the order for the purposes of paragraph 48(2)(f);that period;

- (l) if:
 - (i) the order was issued under clause 78; and
 - (ii) a period was specified in the order for the purposes of paragraph 78(2)(g);that period;
 - (m) if:
 - (i) the order was issued under clause 107; and
 - (ii) a period was specified in the order for the purposes of paragraph 107(2)(f);that period;
 - (n) if the order was issued under Part 2 of this Schedule in response to an application made on grounds relating to the investigation of one or more offences—the type or types of those offences;
 - (o) if the order was issued under Part 3 of this Schedule in relation to a Part 5.3 supervisory order—the name of the person to whom the Part 5.3 supervisory order relates.
- (3) An IGIS official may access information in the register for the purposes of the performance of a function or duty, or the exercise of a power, by the IGIS official.

Division 5—Destruction of records

140 Destruction of records

Interception

- (1) If:
- (a) an international production order was issued in response to an application made by a relevant agency; and
 - (b) in compliance with the order, a prescribed communications provider makes:
 - (i) intercepted communications; or
 - (ii) intercepted messages; or
 - (iii) intercepted voice calls; or
 - (iv) intercepted video calls;available to the agency (whether directly or indirectly via the Australian Designated Authority); and
 - (c) a record of the intercepted communications, intercepted messages, intercepted voice calls, or intercepted video calls, as the case may be, is in the agency's possession; and
 - (d) the chief officer of the agency is satisfied that the record is not likely to be required for a purpose referred to in clause 153 or 157;
- the chief officer must cause the record to be destroyed immediately after becoming so satisfied.
- (2) If:
- (a) an international production order was issued under clause 89; and
 - (b) in compliance with the order, a prescribed communications provider makes:
 - (i) intercepted communications; or
 - (ii) intercepted messages; or
 - (iii) intercepted voice calls; or
 - (iv) intercepted video calls;

available to the Organisation (whether directly or indirectly via the Australian Designated Authority); and

- (c) a record of the intercepted communications, intercepted messages, intercepted voice calls, or intercepted video calls, as the case may be, is in the Organisation's possession; and
- (d) the Director-General of Security is satisfied that the record is not likely to be required for a purpose referred to in clause 153 or 157;

the Director-General of Security must cause the record to be destroyed immediately after becoming so satisfied.

Stored communications

(3) If:

- (a) an international production order was issued in response to an application made by a relevant agency; and
- (b) in compliance with the order, a prescribed communications provider makes a copy of stored communications available to the agency (whether directly or indirectly via the Australian Designated Authority); and
- (c) the copy is in the agency's possession; and
- (d) the chief officer of the agency is satisfied that the copy is not likely to be required for a purpose referred to in clause 153 or 158;

the chief officer must cause the copy to be destroyed immediately after becoming so satisfied.

(4) If:

- (a) an international production order was issued under clause 98; and
- (b) in compliance with the order, a prescribed communications provider makes a copy of stored communications available to the Organisation (whether directly or indirectly via the Australian Designated Authority); and
- (c) the copy is in the Organisation's possession; and

Clause 140

- (d) the Director-General of Security is satisfied that the copy is not likely to be required for a purpose referred to in clause 153 or 158;
the Director-General of Security must cause the copy to be destroyed immediately after becoming so satisfied.

Part 10—Oversight by the Commonwealth Ombudsman

141 Simplified outline of this Part

- The Ombudsman may inspect records of a relevant agency, except the ACC or certain agencies, or parts of agencies, prescribed by regulations made under the *Ombudsman Act 1976*, to determine the extent of compliance with this Schedule by the relevant agency and its officers.
- The Ombudsman may inspect records of the Australian Designated Authority to determine the extent of compliance with this Schedule by the Australian Designated Authority.
- The Ombudsman must give the Minister an annual report about the results of those inspections.

142 Inspection of records—relevant agency

- (1) The Ombudsman may inspect records of a relevant agency, except the ACC or any agency, or part of an agency performing any functions, prescribed by regulations made under the *Ombudsman Act 1976* for the purposes of subclause (1A) of this clause, to determine the extent of compliance with this Schedule by the relevant agency and its officers.
- (1A) Regulations made under the *Ombudsman Act 1976* may prescribe certain agencies, or functions of certain agencies, for the purposes of this subclause.
- (2) For the purpose of an inspection under this clause, the Ombudsman:

Clause 143

- (a) after notifying the chief officer of the relevant agency, may enter at any reasonable time premises occupied by the relevant agency; and
 - (b) is entitled to have full and free access at all reasonable times to all records of the relevant agency that are relevant to the inspection; and
 - (c) despite any other law, is entitled to make copies of, and to take extracts from, records of the relevant agency; and
 - (d) may require a member of staff of the relevant agency to give the Ombudsman any information that the Ombudsman considers necessary, being information:
 - (i) that is in the member's possession, or to which the member has access; and
 - (ii) that is relevant to the inspection.
- (3) Before inspecting records of a relevant agency under this clause, the Ombudsman must give reasonable notice to the chief officer of the relevant agency of when the inspection will occur.
- (4) The chief officer must ensure that members of staff of the relevant agency give the Ombudsman any assistance the Ombudsman reasonably requires to enable the Ombudsman to perform functions under this clause.

143 Inspection of records—Australian Designated Authority

- (1) The Ombudsman may inspect records of the Australian Designated Authority to determine the extent of compliance with this Schedule by the Australian Designated Authority.
- (2) For the purpose of an inspection under this clause, the Ombudsman:
- (a) after notifying the Australian Designated Authority, may enter at any reasonable time premises occupied by the Attorney-General's Department; and
 - (b) is entitled to have full and free access at all reasonable times to all records of the Australian Designated Authority that are relevant to the inspection; and

- (c) despite any other law, is entitled to make copies of, and to take extracts from, records of the Australian Designated Authority; and
- (d) may require a member of staff of the Attorney-General's Department to give the Ombudsman any information that the Ombudsman considers necessary, being information:
 - (i) that is in the member's possession, or to which the member has access; and
 - (ii) that is relevant to the inspection.
- (3) Before inspecting records of the Australian Designated Authority under this clause, the Ombudsman must give reasonable notice to the Australian Designated Authority of when the inspection will occur.
- (4) The Australian Designated Authority must ensure that members of staff of the Attorney-General's Department give the Ombudsman any assistance the Ombudsman reasonably requires to enable the Ombudsman to perform functions under this clause.

144 Power to obtain relevant information

Relevant agency

- (1) If the Ombudsman has reasonable grounds to believe that an officer of a particular relevant agency is able to give information relevant to an inspection under this Part of the relevant agency's records, the Ombudsman may:
 - (a) if the Ombudsman knows the officer's identity—by written notice given to the officer, require the officer to do one or both of the following:
 - (i) give the information to the Ombudsman, by writing signed by the officer, at a specified place and within a specified period;
 - (ii) attend before a specified inspecting officer to answer questions relevant to the inspection; or
 - (b) if the Ombudsman does not know the officer's identity—require the chief officer of the relevant agency, or a person

Clause 144

nominated by the chief officer, to attend before a specified inspecting officer to answer questions relevant to the inspection.

Australian Designated Authority

- (2) If the Ombudsman has reasonable grounds to believe that a member of staff of the Attorney-General's Department is able to give information relevant to an inspection under this Part of the Australian Designated Authority's records, the Ombudsman may:
- (a) if the Ombudsman knows the member's identity—by written notice given to the member, require the member to do one or both of the following:
 - (i) give the information to the Ombudsman, by writing signed by the member, at a specified place and within a specified period;
 - (ii) attend before a specified inspecting officer to answer questions relevant to the inspection; or
 - (b) if the Ombudsman does not know the member's identity—require the Australian Designated Authority, or a person nominated by the Australian Designated Authority, to attend before a specified inspecting officer to answer questions relevant to the inspection.

Specification of place and period etc.

- (3) A requirement under subclause (1) or (2) to attend before an inspecting officer must specify:
- (a) a place for the attendance; and
 - (b) a period within which, or a time and day when, the attendance is to occur.

The place, and the period or the time and day, must be reasonable having regard to the circumstances in which the requirement is made.

Offence

- (4) A person commits an offence if:

Clause 145

- (a) the person is subject to a requirement under subclause (1) or (2); and
- (b) the person omits to do an act; and
- (c) the omission breaches the requirement.

Penalty for an offence against this subclause: Imprisonment
for 6 months.

145 Ombudsman to be given information and access despite other laws

- (1) Despite any other law, a person is not excused from giving information, answering a question, or giving access to a document, as and when required under this Part, on the ground that giving the information, answering the question, or giving access to the document, as the case may be:
 - (a) would contravene a law; or
 - (b) would be contrary to the public interest; or
 - (c) might tend to incriminate the person or make the person liable to a penalty.
- (2) However:
 - (a) the information, the answer, or the fact that the person has given access to the document, as the case may be; or
 - (b) any information or thing (including a document) obtained as a direct or indirect consequence of giving the information, answering the question or giving access to the document;is not admissible in evidence against the person except in a proceeding by way of a prosecution for:
 - (c) an offence against clause 152; or
 - (d) an offence against Part 7.4 or 7.7 of the *Criminal Code*.
- (3) Nothing in clause 152, or in any other law, prevents an officer of a relevant agency from:
 - (a) giving information to an inspecting officer (whether orally or in writing and whether or not in answer to a question); or

Clause 146

- (b) giving access to a record of the relevant agency to an inspecting officer;
for the purposes of an inspection under this Part of the relevant agency's records.
- (4) Nothing in clause 152, or in any other law, prevents an officer of a relevant agency from making a record of information, or causing a record of information to be made, for the purposes of giving the information to a person as permitted by subclause (3).
- (5) Nothing in clause 152, or in any other law, prevents a member of staff of the Attorney-General's Department from:
 - (a) giving information to an inspecting officer (whether orally or in writing and whether or not in answer to a question); or
 - (b) giving access to a record of the Australian Designated Authority to an inspecting officer;
for the purposes of an inspection under this Part of the Australian Designated Authority's records.
- (6) Nothing in clause 152, or in any other law, prevents a member of staff of the Attorney-General's Department from making a record of information, or causing a record of information to be made, for the purposes of giving the information to a person as permitted by subclause (5).

146 Application of Ombudsman Act

- (1) Section 11A of the *Ombudsman Act 1976* does not apply in relation to the exercise or proposed exercise of a power, or the performance or the proposed performance of a function, of the Ombudsman under this Part.
- (2) A reference in section 19 of the *Ombudsman Act 1976* to the Ombudsman's operations does not include a reference to anything that an inspecting officer has done or omitted to do under this Part.
- (3) Subject to clause 145, subsections 35(2), (3), (4) and (8) of the *Ombudsman Act 1976* apply for the purposes of this Part and so apply as if:

- (a) a reference in those subsections to an officer were a reference to an inspecting officer; and
- (b) a reference in those subsections to information did not include a reference to protected information; and
- (c) a reference in those subsections to that Act were a reference to this Part; and
- (d) paragraph 35(3)(b) of that Act were omitted; and
- (e) section 35A of that Act had not been enacted.

**147 Exchange of information between Ombudsman or
Inspector-General of Intelligence and Security, and
State/Territory inspecting authorities**

*Exchange of information between Ombudsman and State/Territory
inspecting authorities*

- (1) If the Ombudsman has obtained under this Part information relating to an authority of a State or Territory, the Ombudsman may give the information to another authority of that State or Territory (an *inspecting authority*) that:
 - (a) has powers under the law of that State or Territory; and
 - (b) has the function of making inspections of a similar kind to those provided for in clause 142 when the inspecting authority is exercising those powers.
- (2) However, the Ombudsman may give the information only if the Ombudsman is satisfied that giving the information is necessary to enable the inspecting authority to perform its functions in relation to the first-mentioned authority of the State or Territory.
- (3) An inspecting authority may give the Ombudsman information relevant to the performance of the Ombudsman's functions under this Part.

Clause 148

*Exchange of information between Inspector-General of
Intelligence and Security and State/Territory inspecting authorities*

- (4) If an IGIS official has obtained, under the *Inspector-General of Intelligence and Security Act 1986*, information relating to an authority of a State or Territory about the performance of functions of an intelligence agency (within the meaning of that Act) and its officers, the Inspector-General of Intelligence and Security may give the information to another authority of that State or Territory (an **inspecting authority**) that:
- (a) has powers under the law of that State or Territory; and
 - (b) has the function of making inspections of a similar kind to those provided for in section 9A of the *Inspector-General of Intelligence and Security Act 1986* when the inspecting authority is exercising those powers.
- (5) However, the Inspector-General of Intelligence and Security may give the information only if the Inspector-General of Intelligence and Security is satisfied that giving the information is necessary to enable the inspecting authority to perform its functions in relation to the authority of the State or Territory.
- (6) The Inspector-General of Intelligence and Security may receive, from an inspecting authority, information that:
- (a) relates to the performance of functions of an intelligence agency (within the meaning of the *Inspector-General of Intelligence and Security Act 1986*) with this Schedule; and
 - (b) is relevant to the performance of the Inspector-General of Intelligence and Security's functions under that Act.

148 Delegation by Ombudsman

- (1) The Ombudsman may, by writing, delegate:
- (a) to an APS employee responsible to the Ombudsman; or
 - (b) to a person having similar oversight functions to the Ombudsman under the law of a State or Territory or to an employee responsible to that person;

Clause 149

all or any of the Ombudsman's powers under this Part other than a power to report to the Minister.

- (2) A delegate must, upon request by a person affected by the exercise of any power delegated to the delegate, produce the instrument of delegation, or a copy of the instrument, for inspection by the person.

149 Ombudsman not to be sued

The Ombudsman, an inspecting officer, or a person acting under an inspecting officer's direction or authority, is not liable to an action, suit or proceeding for or in relation to an act done, or omitted to be done, in good faith in the performance or exercise, or the purported performance or exercise, of a function or power conferred by this Part.

150 Reports

- (1) The Ombudsman must report to the Minister, in writing, about the results of:
- (a) inspections under clause 142 of the records of relevant agencies during a financial year; and
 - (b) inspections under clause 143 of the records of the Australian Designated Authority during a financial year.
- (2) The report under subclause (1) must be given to the Minister as soon as practicable after the end of the financial year.
- (3) The Minister must cause a copy of the report to be tabled in each House of the Parliament within 15 sitting days of that House after the Minister receives it.
- (4) The Ombudsman may report to the Minister in writing at any time about the results of an inspection under this Part and must do so if so requested by the Minister.
- (5) If, as a result of an inspection under this Part of the records of a relevant agency, the Ombudsman is of the opinion that an officer

Clause 150

of the relevant agency has contravened a provision of this Schedule, the Ombudsman may include in the Ombudsman's report on the inspection a report on the contravention.

- (6) If, as a result of an inspection under this Part of the records of the Australian Designated Authority, the Ombudsman is of the opinion that a member of staff of the Attorney-General's Department has contravened a provision of this Schedule, the Ombudsman may include in the Ombudsman's report on the inspection a report on the contravention.
- (7) The Ombudsman must:
 - (a) give the chief officer of a relevant agency a copy of so much of a report under subclause (1) or (4) as relates to the relevant agency; and
 - (b) give the Australian Designated Authority a copy of so much of a report under subclause (1) or (4) as relates to the Australian Designated Authority.
- (8) A report under this clause must not include information which, if made public, could reasonably be expected to:
 - (a) endanger a person's safety; or
 - (b) prejudice an investigation or prosecution; or
 - (c) compromise any relevant agency's operational activities or methodologies.

Part 11—Disclosure of protected information

151 Simplified outline of this Part

- Protected information must not be used, recorded or disclosed, unless an exception applies.
- Protected information must not be admitted in evidence, unless an exception applies.

152 Prohibition on use, recording or disclosure of protected information or its admission in evidence

- (1) A person commits an offence if:
- (a) the person uses, records or discloses information; and
 - (b) the information is protected information; and
 - (c) the use, recording or disclosure of the information is not permitted by this Part.

Penalty: Imprisonment for 2 years.

- (2) Subject to this Part, protected information must not be admitted in evidence in any proceedings in Australia.

153 Exceptions—general

- (1) Protected information may be used, recorded or disclosed, or may be admitted in evidence, for any of the following purposes:
- (a) the investigation of a serious category 1 offence or a serious category 2 offence or the making of a report on the outcome of such an investigation;
 - (b) the making of a decision whether or not to bring a prosecution for a serious category 1 offence or a serious category 2 offence (other than an offence referred to in paragraph (r));

Clause 153

- (c) a proceeding by way of a prosecution for a serious category 1 offence or a serious category 2 offence (other than an offence referred to in paragraph (r));
- (d) a proceeding by way of a bail application if the application relates to a proceeding by way of a prosecution for a serious category 1 offence or a serious category 2 offence;
- (e) a proceeding by way of review of a decision to refuse such a bail application;
- (f) a proceeding by way of a review of a decision to grant such a bail application;
- (g) the investigation of a contravention of a civil penalty provision in this Schedule or the making of a report on the outcome of such an investigation;
- (h) the performance of the functions, or the exercise of the powers, of the Organisation;
- (i) the performance of a function or duty, or the exercise of a power, by a person, court or other body under, or in relation to a matter arising under, Division 104 (control orders) or Division 105A (post-sentence orders) of the *Criminal Code*;
- (j) a preventative detention order law;
- (k) a post-sentence detention law or a post-sentence supervision law;
- (ka) the making of a decision whether to apply for a post-sentence order, or for a variation or review of a post-sentence order, under Division 105A of the *Criminal Code* in relation to a person;
- (kb) the making of a decision whether to apply for an order, or make any other application in relation to an order, under a post-sentence detention law or a post-sentence supervision law in relation to a person;
- (l) a proceeding by way of an application for a civil penalty order in relation to a contravention of a civil penalty provision in this Schedule;
- (m) the making of reports, and the keeping of records, under Part 9 of this Schedule;

- (n) the making of reports referred to in subsection 94(1) of the *Australian Security Intelligence Organisation Act 1979*, so far as they include statements covered by subsection 94(2BBA) of that Act;
- (o) an inspection by the Ombudsman under clause 142 or 143;
- (p) the performance of a function or duty, or the exercise of a power, by an IGIS official;
- (q) the performance of a function or duty, or the exercise of a power, by an Ombudsman official;
- (qa) the performance of a function or duty, or the exercise of a power, of the Inspector of the National Anti-Corruption Commission or a person assisting the NACC Inspector;
- (r) an investigation under the *Privacy Act 1988* or any other law of the Commonwealth concerning the privacy of personal information and also any subsequent investigation or prosecution of a serious category 1 offence, or a serious category 2 offence, arising directly from that first-mentioned investigation;
- (s) the administration or execution of this Schedule;
- (t) any legal proceedings arising out of or otherwise related to this Schedule or any report of any such proceedings;
- (u) a proceeding for the taking of evidence pursuant to section 43 of the *Extradition Act 1988*, in so far as the proceeding relates to a serious category 1 offence;
- (v) a proceeding under section 13 of the *Mutual Assistance in Criminal Matters Act 1987* in relation to a criminal matter (within the meaning of that Act) that concerns an offence, against the laws of the foreign country that made the request resulting in the proceeding, that is punishable by imprisonment for life or for a period, or maximum period, of at least 3 years;
- (w) a proceeding under Division 5 of Part 4 of the *International Criminal Court Act 2002*;
- (x) a proceeding before the International Criminal Court sitting in Australia under Part 5 of the *International Criminal Court Act 2002*;

Clause 153

- (y) a proceeding under Division 1 of Part 4 of the *International War Crimes Tribunals Act 1995*;
 - (z) a designated international agreement.
- (2) For the purposes of subclause (1), **this Schedule** includes the *Regulatory Powers (Standard Provisions) Act 2014*, so far as that Act relates to this Schedule.

Disclosure to Public Interest Monitor of Victoria or Queensland

- (3) If:
- (a) a person (the **applicant**) applies, or proposes to apply, under clause 22, on behalf of an interception agency of Victoria or Queensland for an international production order under clause 30; and
 - (b) a law of that State authorises or requires the applicant:
 - (i) to notify a PIM of that State of the application or proposed application; or
 - (ii) to notify a PIM of that State of any information that relates to the application or proposed application; or
 - (iii) to give a PIM of that State any document that relates to the application or proposed application;making the notification, or giving the document, to a PIM of that State is taken to be necessary for the purposes of the administration or execution of this Schedule.
- (4) If:
- (a) a person (the **applicant**) applies, or proposes to apply, under clause 52, on behalf of a Part 5.3 IPO agency of Victoria or Queensland for an international production order under clause 60; and
 - (b) a law of that State authorises or requires the applicant:
 - (i) to notify a PIM of that State of the application or proposed application; or
 - (ii) to notify a PIM of that State of any information that relates to the application or proposed application; or

(iii) to give a PIM of that State any document that relates to the application or proposed application; making the notification, or giving the document, to a PIM of that State is taken to be necessary for the purposes of the administration or execution of this Schedule.

International assistance

- (5) If the Attorney-General has authorised the provision of protected information to a foreign country under subsection 13A(1) of the *Mutual Assistance in Criminal Matters Act 1987*, the information may be disclosed to:
- (a) that foreign country; or
 - (b) the Secretary of the Attorney-General's Department for the purpose of providing the information to that foreign country.
- (6) If the Attorney-General has authorised the provision of protected information to the International Criminal Court under section 69A of the *International Criminal Court Act 2002*, the information may be disclosed to:
- (a) that Court; or
 - (b) the Secretary of the Attorney-General's Department for the purpose of providing the information to that Court.
- (7) If the Attorney-General has authorised the provision of protected information to a War Crimes Tribunal under section 25A of the *International War Crimes Tribunals Act 1995*, the information may be disclosed to:
- (a) that Tribunal; or
 - (b) the Secretary of the Attorney-General's Department for the purpose of providing the information to that Tribunal.

154 Exception—disclosure to the Minister

Protected information may be disclosed to the Minister for the purposes of the performance of the functions, or the exercise of the powers, of the Minister.

Clause 155

155 Exception—disclosure to the Attorney-General

Protected information may be disclosed to the Attorney-General for the purposes of the performance of the functions, or the exercise of the powers, of the Attorney-General.

156 Exception—statistical information

A prescribed communications provider may disclose the total number of international production orders given to the provider during a period of at least 6 months.

Note: This clause authorises the disclosure of aggregate statistical information. That information cannot be broken down:

- (a) by agency; or
- (b) in any other way.

157 Exceptions—international production orders relating to interception

- (1) Protected information that:
- (a) was obtained in accordance with an international production order issued under clause 30, 60 or 89; or
 - (b) relates to an international production order issued under clause 30, 60 or 89;
- may be used, recorded or disclosed, or may be admitted in evidence, for any of the following purposes:
- (c) a proceeding for the confiscation or forfeiture of property in connection with the commission of a serious category 1 offence;
 - (d) a proceeding under the *Spam Act 2003*;
 - (e) a proceeding under, or a proceeding relating to a matter arising under, the main unexplained wealth provisions;
 - (f) a proceeding under, or a proceeding relating to a matter arising under, the unexplained wealth legislation of a participating State, the Australian Capital Territory or the Northern Territory;

- (g) a proceeding under, or a proceeding relating to a matter arising under, an organised crime control law;
- (h) a proceeding for the extradition of a person from a State or Territory to another State or Territory, in so far as the proceeding relates to a serious category 1 offence;
- (i) a proceeding by way of a coroner's inquest if, in the opinion of the coroner, the event that is the subject of the inquest may have resulted from the commission of a serious category 1 offence;
- (j) a police disciplinary proceeding;
- (k) a proceeding in so far as it relates to:
 - (i) a decision by the Commissioner of Police to terminate the employment of an AFP employee or the appointment of a special member of the Australian Federal Police; or
 - (ii) a decision by the Commissioner of a Police Force of a State to terminate the appointment of an officer or member of staff of that Police Force;
- (l) a proceeding in so far as it is, or relates to, disciplinary or legal action (within the meaning of section 6S) that is in relation to an eligible staff member (within the meaning of that section) of the Australian Federal Police or the ACC;
- (m) any other proceeding (not being a proceeding by way of a prosecution for an offence) in so far as it relates to alleged misbehaviour, or alleged improper conduct, of an officer of the Commonwealth or of a State;
- (n) a proceeding for the recovery of an amount due to a network entity or transmission service provider in connection with the supply of a transmission service;
- (o) a proceeding of an eligible Commonwealth authority;
- (p) a proceeding of the Independent Commission Against Corruption (NSW);
- (q) a proceeding of the Inspector of the Independent Commission Against Corruption (NSW);

Clause 157

- (r) a proceeding in relation to an application under subsection 34B(1) of the ACC Act in respect of contempt of the ACC;
- (s) a proceeding of the IBAC (Vic.);
- (t) a proceeding of the Victorian Inspectorate;
- (u) a proceeding of the Corruption and Crime Commission (WA);
- (v) a proceeding of the Parliamentary Inspector of the Corruption and Crime Commission (WA);
- (w) a proceeding of the Law Enforcement Conduct Commission (NSW);
- (x) a proceeding of the Inspector of the Law Enforcement Conduct Commission (NSW);
- (y) a proceeding of the Crime and Corruption Commission (Qld);
- (z) a proceeding of the Independent Commission Against Corruption (SA);
- (zaa) a proceeding of the Inspector of the Independent Commission Against Corruption (SA);
- (za) an eligible purpose of the ACC;
- (zb) an eligible purpose of the Australian Federal Police;
- (zc) an eligible purpose of the National Anti-Corruption Commission;
- (zd) an eligible purpose of a Commonwealth Royal Commission that is an eligible Commonwealth authority;
- (ze) an eligible purpose of the Police Force of a State;
- (zf) an eligible purpose of an eligible authority of a State;
- (zg) an eligible purpose of the Independent Commission Against Corruption (NSW);
- (zh) an eligible purpose of the Inspector of the Independent Commission Against Corruption (NSW);
- (zi) an eligible purpose of the Inspector of the Law Enforcement Conduct Commission (NSW);
- (zj) an eligible purpose of the Law Enforcement Conduct Commission (NSW);

- (zk) an eligible purpose of the IBAC (Vic.);
- (zl) an eligible purpose of the Victorian Inspectorate;
- (zm) an eligible purpose of the Corruption and Crime Commission (WA);
- (zn) an eligible purpose of the Crime and Corruption Commission (Qld);
- (zo) an eligible purpose of the Parliamentary Inspector of the Corruption and Crime Commission (WA);
- (zp) an eligible purpose of the Independent Commission Against Corruption (SA);
- (zq) an eligible purpose of the Inspector of the Independent Commission Against Corruption (SA).

Eligible purpose

- (2) For the purposes of this clause:
 - (a) each of the following is an ***eligible purpose*** of the ACC:
 - (i) a special ACC operation/investigation;
 - (ii) a report to the Board of the ACC on the outcome of such an operation or investigation;
 - (iii) an investigation of, or an inquiry into, alleged misbehaviour, or alleged improper conduct, of a member of the staff referred to in subsection 47(1) of the ACC Act;
 - (iv) a report on such an investigation or inquiry;
 - (v) the making by a person of a decision, following such an investigation or inquiry, in relation to the employment of such a staff member (including a decision to terminate the staff member's employment);
 - (vi) a review (whether by way of appeal or otherwise) of such a decision; and
 - (b) each of the following is an ***eligible purpose*** of the Australian Federal Police:
 - (i) an investigation of, or an inquiry into, alleged misbehaviour, or alleged improper conduct, of an officer of the Commonwealth, being an investigation or

Clause 157

- inquiry under a law of the Commonwealth or by a person in the person's capacity as an officer of the Commonwealth;
- (ii) a report on such an investigation or inquiry;
 - (iii) the making by a person of a decision under the *Australian Federal Police Act 1979* in relation to the engagement of an AFP employee, the retirement of an AFP employee or the termination of the employment of an AFP employee or in relation to the appointment or the termination of the appointment of a special member of the Australian Federal Police;
 - (iv) a review (whether by way of appeal or otherwise) of such a decision;
 - (v) the tendering to the Governor-General of advice to terminate, because of misbehaviour or improper conduct, the appointment of an officer of the Commonwealth;
 - (vi) deliberations of the Executive Council in connection with advice to the Governor-General to terminate, because of misbehaviour or improper conduct, the appointment of an officer of the Commonwealth; and
- (c) each of the following is an **eligible purpose** of the National Anti-Corruption Commission:
- (i) a corruption investigation or NACC corruption investigation (within the meaning of the *National Anti-Corruption Commission Act 2022*);
 - (ii) a report on such an investigation; and
- (d) each of the following is an **eligible purpose** of a Commonwealth Royal Commission that is an eligible Commonwealth authority:
- (i) an investigation that the Commonwealth Royal Commission is conducting in the course of the inquiry it is commissioned to undertake;
 - (ii) a report on such an investigation; and
- (e) each of the following is an **eligible purpose** of the Police Force of a State:

- (i) an investigation of, or an inquiry into, alleged misbehaviour, or alleged improper conduct, of an officer of that State, being an investigation or inquiry under a law of that State or by a person in the person's capacity as an officer of that State;
 - (ii) a report on such an investigation or inquiry;
 - (iii) the making by a person of a decision in relation to the appointment, re-appointment, term of appointment, retirement or termination of appointment of an officer or member of staff of that Police Force;
 - (iv) a review (whether by way of appeal or otherwise) of such a decision;
 - (v) the tendering to the Governor of that State of advice to terminate, because of misbehaviour or improper conduct, the appointment of an officer of that State;
 - (vi) deliberations of the Executive Council of that State in connection with advice to the Governor of that State to terminate, because of misbehaviour or improper conduct, the appointment of an officer of that State; and
- (f) each of the following is an **eligible purpose** of an eligible authority of a State:
- (i) an inspection of the authority's records that is made under a requirement of the law of that State, being a requirement of the kind referred to in paragraph 35(1)(h);
 - (ii) a report on such an inspection; and
- (g) each of the following is an **eligible purpose** of the Independent Commission Against Corruption (NSW):
- (i) an investigation under the Independent Commission Against Corruption Act (NSW) into whether corrupt conduct (within the meaning of that Act) may have occurred, may be occurring or may be about to occur;
 - (ii) a report on such an investigation; and
- (h) each of the following is an **eligible purpose** of the Inspector of the Independent Commission Against Corruption (NSW):

Clause 157

- (i) auditing the operations of the Independent Commission Against Corruption (NSW) for the purpose of monitoring compliance with the law of New South Wales;
- (ii) dealing with (by reports and recommendations) complaints of abuse of power, impropriety or other forms of misconduct (within the meaning of the Independent Commission Against Corruption Act (NSW)) on the part of the Independent Commission Against Corruption (NSW) or an officer of the Independent Commission Against Corruption (NSW);
- (iii) dealing with (by reports and recommendations) conduct amounting to maladministration (within the meaning of the Independent Commission Against Corruption Act (NSW)) by the Independent Commission Against Corruption (NSW) or an officer of the Independent Commission Against Corruption (NSW);
- (iv) assessing the effectiveness and appropriateness of the procedures of the Independent Commission Against Corruption (NSW) relating to the legality or propriety of that Commission's activities; and
- (i) each of the following is an **eligible purpose** of the Inspector of the Law Enforcement Conduct Commission (NSW):
 - (i) auditing the operations of the Law Enforcement Conduct Commission (NSW) for the purpose of monitoring compliance with the law of New South Wales;
 - (ii) dealing with (by reports and recommendations) conduct amounting to agency maladministration (within the meaning of subsection 122(3) of the Law Enforcement Conduct Commission Act (NSW)) on the part of the Law Enforcement Conduct Commission (NSW), whether or not the subject of a complaint;
 - (iii) dealing with (by reports and recommendations) conduct amounting to officer misconduct (within the meaning of subsection 122(3) of the Law Enforcement Conduct Commission Act (NSW)) or officer maladministration

- (within the meaning of that subsection) on the part of an officer of the Law Enforcement Conduct Commission (NSW), whether or not the subject of a complaint;
- (iv) assessing the effectiveness and appropriateness of the policies and procedures of the Law Enforcement Conduct Commission (NSW) relating to the legality or propriety of that Commission's activities; and
- (j) each of the following is an ***eligible purpose*** of the Law Enforcement Conduct Commission (NSW):
- (i) an investigation under Part 6 of the Law Enforcement Conduct Commission Act (NSW) in respect of conduct to which subsection 5(7) of this Act applies;
 - (ii) a report on an investigation covered by subparagraph (i);
 - (iii) the tendering to the Governor of New South Wales of advice to terminate, because of misbehaviour or improper conduct, the appointment of the Commissioner of the New South Wales Police Force;
 - (iv) deliberations of the Executive Council of New South Wales in connection with advice to the Governor of that State to terminate, because of misbehaviour or improper conduct, the appointment of the Commissioner of the New South Wales Police Force; and
- (k) each of the following is an ***eligible purpose*** of the IBAC (Vic.):
- (i) an investigation under the IBAC Act (Vic.) of corrupt conduct (within the meaning of that Act);
 - (ii) an investigation under the IBAC Act (Vic.) of police personnel conduct (within the meaning of that Act); and
- (l) each of the following is an ***eligible purpose*** of the Victorian Inspectorate:
- (i) monitoring the compliance of the IBAC (Vic.) and IBAC personnel (within the meaning of the Victorian Inspectorate Act) with the IBAC Act (Vic.) and other laws;

Clause 157

- (ii) overseeing the performance by the IBAC (Vic.) of its functions under the *Public Interest Disclosures Act 2012* (Vic.);
 - (iii) assessing the effectiveness and appropriateness of the policies and procedures of the IBAC (Vic.) which relate to the legality and propriety of IBAC (Vic.)'s activities;
 - (iv) receiving complaints in accordance with the Victorian Inspectorate Act about the conduct of the IBAC (Vic.) and IBAC personnel (within the meaning of that Act);
 - (v) investigating and assessing the conduct of the IBAC (Vic.) and IBAC personnel (within the meaning of the Victorian Inspectorate Act) in the performance or exercise or purported performance or purported exercise of their duties, functions and powers;
 - (vi) reporting or making recommendations on an investigation covered by subparagraph (v) of this paragraph;
 - (vii) monitoring the interaction between the IBAC (Vic.) and other integrity bodies to ensure compliance with relevant laws; and
- (m) each of the following is an ***eligible purpose*** of the Corruption and Crime Commission (WA):
- (i) an investigation under the Corruption, Crime and Misconduct Act (WA) into whether misconduct (within the meaning of that Act) has or may have occurred, is or may be occurring, is or may be about to occur, or is likely to occur;
 - (ii) a report on such an investigation; and
- (n) each of the following is an ***eligible purpose*** of the Crime and Corruption Commission (Qld):
- (i) an investigation under the Crime and Corruption Act (Qld) into whether corruption (within the meaning of that Act) may have occurred, may be occurring or may be about to occur;
 - (ii) a report on such an investigation; and

- (o) each of the following is an ***eligible purpose*** of the Parliamentary Inspector of the Corruption and Crime Commission (WA):
- (i) auditing the operation of the Corruption, Crime and Misconduct Act (WA);
 - (ii) auditing the operations of the Corruption and Crime Commission (WA) for the purpose of monitoring compliance with the laws of Western Australia;
 - (iii) dealing with matters of misconduct (within the meaning of the Corruption, Crime and Misconduct Act (WA)) on the part of the Corruption and Crime Commission (WA), an officer of the Corruption and Crime Commission (WA) or an officer of the Parliamentary Inspector of the Corruption and Crime Commission (WA);
 - (iv) auditing any operation carried out pursuant to the powers conferred or made available by the Corruption, Crime and Misconduct Act (WA);
 - (v) assessing the effectiveness and appropriateness of the Corruption and Crime Commission (WA)'s procedures;
 - (vi) making recommendations to the Corruption and Crime Commission (WA), independent agencies (within the meaning of the Corruption, Crime and Misconduct Act (WA)) and appropriate authorities (within the meaning of that Act);
 - (vii) reporting and making recommendations to either House of Parliament of Western Australia and the Standing Committee (within the meaning of the Corruption, Crime and Misconduct Act (WA));
 - (viii) performing any other function given to the Parliamentary Inspector of the Corruption and Crime Commission (WA) under the Corruption, Crime and Misconduct Act (WA) or another law of Western Australia; and
- (p) each of the following is an ***eligible purpose*** of the Independent Commission Against Corruption (SA):

Clause 158

- (i) an investigation under the Independent Commission Against Corruption Act (SA) into corruption in public administration (within the meaning of that Act);
- (ii) a report on such an investigation; and
- (q) each of the following is an **eligible purpose** of the Inspector of the Independent Commission Against Corruption (SA):
 - (i) conducting annual reviews examining the operations of the Office for Public Integrity (SA) established by section 17 of the Independent Commission Against Corruption Act (SA), and the Independent Commission Against Corruption (SA), during each financial year;
 - (ii) conducting reviews relating to relevant complaints (within the meaning of Schedule 4 to the Independent Commission Against Corruption Act (SA)) received by the Inspector of the Independent Commission Against Corruption (SA);
 - (iii) conducting other reviews on the Inspector of the Independent Commission Against Corruption (SA)'s own motion or at the request of the Attorney-General of South Australia or the Committee (within the meaning of Schedule 4 to the Independent Commission Against Corruption Act (SA));
 - (iv) performing any other functions conferred on the Inspector of the Independent Commission Against Corruption (SA) by other laws of South Australia.

158 Exceptions—international production orders relating to stored communications

Protected information that:

- (a) was obtained in accordance with an international production order issued under clause 39, 69 or 98; or
- (b) relates to an international production order issued under clause 39, 69 or 98;

may be used, recorded or disclosed, or may be admitted in evidence, for any of the following purposes:

Clause 159

- (c) a proceeding for the confiscation or forfeiture of property in connection with the commission of a serious category 1 offence;
- (d) a proceeding for the extradition of a person from a State or Territory to another State or Territory, in so far as the proceeding relates to a serious category 1 offence;
- (e) a proceeding by way of a coroner's inquest if, in the opinion of the coroner, the event that is the subject of the inquest may have resulted from the commission of a serious category 1 offence;
- (f) a proceeding for recovery of a pecuniary penalty for a contravention that would, if proved, render the person committing the contravention liable to:
 - (i) a pecuniary penalty, or a maximum pecuniary penalty, of at least 60 penalty units if the contravention is committed by an individual; or
 - (ii) if the contravention cannot be committed by an individual—a pecuniary penalty, or a maximum pecuniary penalty, of at least 300 penalty units;
- (g) a proceeding under the *Spam Act 2003*;
- (h) a police disciplinary proceeding.

159 Exceptions—telecommunications data

- (1) Protected information that:
 - (a) consists of telecommunications data obtained in accordance with an international production order; or
 - (b) relates to such an international production order;may be used, recorded or disclosed, or may be admitted in evidence, for any of the following purposes:
 - (c) the enforcement of the criminal law;
 - (d) the enforcement of a law imposing a pecuniary penalty;
 - (e) the protection of the public revenue.
- (2) If the Australian Federal Police, or a Police Force of a State has been notified that a person is missing, protected information that

Clause 159

consists of telecommunications data obtained in accordance with an international production order may be disclosed if:

- (a) the disclosure is reasonably necessary for the purposes of finding the missing person; or
- (b) the information is disclosed to the person who notified the Australian Federal Police, or a Police Force of a State, of the missing person and:
 - (i) the missing person consented to the disclosure; or
 - (ii) the missing person is unable to consent, and the disclosure is reasonably necessary to prevent a threat to the missing person's health, life or safety; or
 - (iii) the missing person is dead.

Part 12—Evidentiary certificates

160 Simplified outline of this Part

- A manager of a prescribed communications provider may issue an evidentiary certificate setting out facts with respect to acts or things done by the provider in order to comply with an international production order.
- A manager of a prescribed communications provider may issue an evidentiary certificate setting out facts with respect to acts or things done by the provider in order to voluntarily provide information in connection with an international production order.
- A certifying officer of a relevant agency may issue an evidentiary certificate setting out facts with respect to the receipt by the agency of information that was made available to the agency in accordance with an international production order.
- A certifying person may issue an evidentiary certificate setting out facts with respect to the receipt by the Organisation of information that was made available to the Organisation in accordance with an international production order.
- If an international production order requires information to be made available to a relevant agency or the Organisation indirectly via the Australian Designated Authority, the Australian Designated Authority may issue an evidentiary certificate setting out facts with respect to:
 - (a) the receipt by the Australian Designated Authority of the information; or

Clause 161

- | |
|---|
| (b) anything done by the Australian Designated Authority for the purposes of ensuring that the information was passed on to the agency or the Organisation. |
|---|

161 Evidentiary certificates—compliance with international production orders by prescribed communications providers

- (1) If:
- (a) an international production order is directed to a prescribed communications provider; and
 - (b) the provider is not an individual;
- a manager of the provider may issue a written certificate signed by the manager setting out such facts as the manager considers relevant with respect to acts or things done by the provider in order to comply with the international production order.
- (2) If:
- (a) an international production order is directed to a prescribed communications provider; and
 - (b) the provider is an individual;
- the provider may issue a written certificate signed by the provider setting out such facts as the provider considers relevant with respect to acts or things done by the provider in order to comply with the international production order.
- (3) A document purporting to be a certificate issued under subclause (1) or (2):
- (a) is to be received in evidence in a proceeding in Australia without further proof; and
 - (b) in a proceeding in Australia, is conclusive evidence of the matters stated in the document.

162 Evidentiary certificates—voluntary provision of associated information by prescribed communications providers

Interception

- (1) If:
- (a) an international production order is directed to a prescribed communications provider; and
 - (b) the provider is not an individual; and
 - (c) either:
 - (i) the order requires the provider to intercept communications carried by one or more individual transmission services, and make those intercepted communications available to a relevant agency or the Organisation; or
 - (ii) the order requires the provider to intercept messages sent or received, voice calls made or received, or video calls made or received, using one or more individual message/call application services, and make those intercepted messages, voice calls or video calls available to a relevant agency or the Organisation;
- a manager of the provider may do either or both of the following:
- (d) issue a written certificate signed by the manager setting out such facts as the manager considers relevant with respect to acts or things done by the provider in order to voluntarily give the relevant agency or the Organisation (as the case may be) in connection with the international production order, information relating to:
 - (i) those individual transmission services or individual message/call application services (as the case may be); or
 - (ii) a person who uses, or is likely to use, those individual transmission services or individual message/call application services (as the case may be);
 - (e) issue a written certificate signed by the manager setting out such facts as the manager considers would assist in explaining:

Clause 162

- (i) the operation of those individual transmission services or individual message/call application services (as the case may be); or
 - (ii) the way in which the intercepted communications, intercepted messages, intercepted voice calls or intercepted video calls (as the case may be) were made available by the provider to the relevant agency or the Organisation (as the case may be).
- (2) If:
 - (a) an international production order is directed to a prescribed communications provider; and
 - (b) the provider is an individual; and
 - (c) either:
 - (i) the order requires the provider to intercept communications carried by one or more individual transmission services, and make those intercepted communications available to a relevant agency or the Organisation; or
 - (ii) the order requires the provider to intercept messages sent or received, voice calls made or received, or video calls made or received, using one or more individual message/call application services, and make those intercepted messages, voice calls or video calls available to a relevant agency or the Organisation;the provider may do either or both of the following:
 - (d) issue a written certificate signed by the provider setting out such facts as the provider considers relevant with respect to acts or things done by the provider in order to voluntarily give the relevant agency or the Organisation (as the case may be) in connection with the international production order, information relating to:
 - (i) those individual transmission services or individual message/call application services (as the case may be); or

- (ii) a person who uses, or is likely to use, those individual transmission services or individual message/call application services (as the case may be);
- (e) issue a written certificate signed by the provider setting out such facts as the provider considers would assist in explaining:
 - (i) the operation of those individual transmission services or individual message/call application services (as the case may be); or
 - (ii) the way in which the intercepted communications, intercepted messages, intercepted voice calls or intercepted video calls (as the case may be) were made available by the provider to the relevant agency or the Organisation (as the case may be).

Stored communications

- (3) If:
 - (a) an international production order is directed to a prescribed communications provider; and
 - (b) the provider is not an individual; and
 - (c) the order requires the provider to:
 - (i) make a copy of stored communications; and
 - (ii) make the copy available to a relevant agency or the Organisation; and
 - (d) the stored communications consist of:
 - (i) communications that a person has made using a transmission service; or
 - (ii) messages that a person has sent or received using a message/call application service; or
 - (iii) recordings of voice calls that a person has made or received using a message/call application service; or
 - (iv) recordings of video calls that a person has made or received using a message/call application service; or
 - (v) material that a person has uploaded for storage or back-up by a storage/back-up service; or

Clause 162

- (vi) material that a person has posted to a general electronic content service;
- a manager of the provider may do either or both of the following:
- (e) issue a written certificate signed by the manager setting out such facts as the manager considers relevant with respect to acts or things done by the provider in order to voluntarily give the relevant agency or the Organisation (as the case may be) in connection with the international production order, information relating to:
 - (i) those individual transmission services, those individual message/call application services, that storage/back-up service or that general electronic content service (as the case may be); or
 - (ii) the person;
 - (f) issue a written certificate signed by the manager setting out such facts as the manager considers would assist in explaining:
 - (i) the operation of those individual transmission services, those individual message/call application services, that storage/back-up service or that general electronic content service (as the case may be); or
 - (ii) the way in which the copy of the stored communications was made available by the provider to the relevant agency or the Organisation (as the case may be).
- (4) If:
- (a) an international production order is directed to a prescribed communications provider; and
 - (b) the provider is an individual; and
 - (c) the order requires the provider to:
 - (i) make a copy of stored communications; and
 - (ii) make the copy available to a relevant agency or the Organisation; and
 - (d) the stored communications consist of:
 - (i) communications that a person has made using a transmission service; or

Clause 162

- (ii) messages that a person has sent or received using a message/call application service; or
- (iii) recordings of voice calls that a person has made or received using a message/call application service; or
- (iv) recordings of video calls that a person has made or received using a message/call application service; or
- (v) material that a person has uploaded for storage or back-up by a storage/back-up service; or
- (vi) material that a person has posted to a general electronic content service;

the provider may do either or both of the following:

- (e) issue a written certificate signed by the provider setting out such facts as the provider considers relevant with respect to acts or things done by the provider in order to voluntarily give the relevant agency or the Organisation (as the case may be) in connection with the international production order, information relating to:
 - (i) those individual transmission services, those individual message/call application services, that storage/back-up service or that general electronic content service (as the case may be); or
 - (ii) the person;
- (f) issue a written certificate signed by the provider setting out such facts as the provider considers would assist in explaining:
 - (i) the operation of those individual transmission services, those individual message/call application services, that storage/back-up service or that general electronic content service (as the case may be); or
 - (ii) the way in which the copy of the stored communications was made available by the provider to the relevant agency or the Organisation (as the case may be).

Telecommunications data

(5) If:

Clause 162

- (a) an international production order is directed to a prescribed communications provider; and
 - (b) the provider is not an individual; and
 - (c) the order requires the provider to disclose to a relevant agency, or to the Organisation, telecommunications data that relates to:
 - (i) communications carried by an individual transmission service; or
 - (ii) an individual transmission service; or
 - (iii) messages sent or received using an individual message/call application service; or
 - (iv) voice calls made or received using an individual message/call application service; or
 - (v) video calls made or received using an individual message/call application service; or
 - (vi) an individual message/call application service; or
 - (vii) material that has been uploaded by an end-user for storage or back-up by a storage/back-up service; or
 - (viii) material that has been posted on a general electronic content service;
- a manager of the provider may do either or both of the following:
- (d) issue a written certificate signed by the manager setting out such facts as the manager considers relevant with respect to acts or things done by the provider in order to voluntarily give the relevant agency or the Organisation (as the case may be) in connection with the international production order, information relating to those individual transmission services, those individual message/call application services, that storage/back-up service or that general electronic content service (as the case may be);
 - (e) issue a written certificate signed by the manager setting out such facts as the manager considers would assist in explaining:
 - (i) the operation of those individual transmission services, those individual message/call application services, that

storage/back-up service or that general electronic content service (as the case may be); or

- (ii) the way in which the telecommunications data was disclosed by the provider to the relevant agency or the Organisation (as the case may be).

(6) If:

- (a) an international production order is directed to a prescribed communications provider; and
- (b) the provider is an individual; and
- (c) the order requires the provider to disclose to a relevant agency, or to the Organisation, telecommunications data that relates to:
 - (i) communications carried by an individual transmission service; or
 - (ii) an individual transmission service; or
 - (iii) messages sent or received using an individual message/call application service; or
 - (iv) voice calls made or received using an individual message/call application service; or
 - (v) video calls made or received using an individual message/call application service; or
 - (vi) an individual message/call application service; or
 - (vii) material that has been uploaded by an end-user for storage or back-up by a storage/back-up service; or
 - (viii) material that has been posted on a general electronic content service;

the provider may do either or both of the following:

- (d) issue a written certificate signed by the provider setting out such facts as the provider considers relevant with respect to acts or things done by the provider in order to voluntarily give the relevant agency or the Organisation (as the case may be) in connection with the international production order, information relating to those individual transmission services, those individual message/call application services,

Clause 163

that storage/back-up service or that general electronic content service (as the case may be);

- (e) issue a written certificate signed by the provider setting out such facts as the provider considers would assist in explaining:
 - (i) the operation of those individual transmission services, those individual message/call application services, that storage/back-up service or that general electronic content service (as the case may be); or
 - (ii) the way in which the telecommunications data was disclosed by the provider to the relevant agency or the Organisation (as the case may be).

Evidentiary effect

- (7) A document purporting to be a certificate issued under subclause (1), (2), (3), (4), (5) or (6) in connection with an international production order:
 - (a) is to be received in evidence in a proceeding in Australia without further proof; and
 - (b) in a proceeding in Australia, is prima facie evidence of the matters stated in the document;so long as information obtained in accordance with the order is admissible in those proceedings.

163 Evidentiary certificates—interception

- (1) A certifying officer of an interception agency may issue a written certificate signed by the officer setting out such facts as the officer considers relevant with respect to:
 - (a) the receipt by the agency of:
 - (i) intercepted communications; or
 - (ii) intercepted messages; or
 - (iii) intercepted voice calls; or
 - (iv) intercepted video calls;that were made available to the agency in accordance with an international production order issued under clause 30; or

Clause 163

- (b) the receipt by the agency of telecommunications data that was disclosed to the agency in accordance with an international production order issued under clause 30.
- (2) A certifying officer of a Part 5.3 IPO agency may issue a written certificate signed by the officer setting out such facts as the officer considers relevant with respect to:
 - (a) the receipt by the agency of:
 - (i) intercepted communications; or
 - (ii) intercepted messages; or
 - (iii) intercepted voice calls; or
 - (iv) intercepted video calls;that were made available to the agency in accordance with an international production order issued under clause 60; or
 - (b) the receipt by the agency of telecommunications data that was disclosed to the agency in accordance with an international production order issued under clause 60.
- (3) A certifying person may issue a written certificate signed by the person setting out such facts as the person considers relevant with respect to:
 - (a) the receipt by the Organisation of:
 - (i) intercepted communications; or
 - (ii) intercepted messages; or
 - (iii) intercepted voice calls; or
 - (iv) intercepted video calls;that were made available to the Organisation in accordance with an international production order issued under clause 89; or
 - (b) the receipt by the Organisation of telecommunications data that was disclosed to the Organisation in accordance with an international production order issued under clause 89.
- (4) A document purporting to be a certificate issued under subclause (1), (2) or (3):

Clause 164

- (a) is to be received in evidence in a proceeding in Australia without further proof; and
- (b) in a proceeding in Australia, is prima facie evidence of the matters stated in the document.

164 Evidentiary certificates—stored communications

- (1) A certifying officer of a criminal law-enforcement agency may issue a written certificate signed by the officer setting out such facts as the officer considers relevant with respect to:
 - (a) the receipt by the agency of a copy of stored communications that were made available to the agency in accordance with an international production order issued under clause 39; or
 - (b) the receipt by the agency of telecommunications data that was disclosed to the agency in accordance with an international production order issued under clause 39.
- (2) A certifying officer of a Part 5.3 IPO agency may issue a written certificate signed by the officer setting out such facts as the officer considers relevant with respect to:
 - (a) the receipt by the agency of a copy of stored communications that were made available to the agency in accordance with an international production order issued under clause 69; or
 - (b) the receipt by the agency of telecommunications data that was disclosed to the agency in accordance with an international production order issued under clause 69.
- (3) A certifying person may issue a written certificate signed by the person setting out such facts as the person considers relevant with respect to:
 - (a) the receipt by the Organisation of a copy of stored communications that were made available to the Organisation in accordance with an international production order issued under clause 98; or
 - (b) the receipt by the Organisation of telecommunications data that was disclosed to the Organisation in accordance with an international production order issued under clause 98.

- (4) A document purporting to be a certificate issued under subclause (1), (2) or (3):
 - (a) is to be received in evidence in a proceeding in Australia without further proof; and
 - (b) in a proceeding in Australia, is prima facie evidence of the matters stated in the document.

165 Evidentiary certificates—telecommunications data

- (1) A certifying officer of an enforcement agency may issue a written certificate signed by the officer setting out such facts as the officer considers relevant with respect to the receipt by the agency of telecommunications data that was disclosed to the agency in accordance with an international production order issued under clause 48.
- (2) A certifying officer of a Part 5.3 IPO agency may issue a written certificate signed by the officer setting out such facts as the officer considers relevant with respect to the receipt by the agency of telecommunications data that was disclosed to the agency in accordance with an international production order issued under clause 78.
- (3) A certifying person may issue a written certificate signed by the person setting out such facts as the person considers relevant with respect to the receipt by the Organisation of telecommunications data that was disclosed to the Organisation in accordance with an international production order issued under clause 107.
- (4) A document purporting to be a certificate issued under subclause (1), (2) or (3):
 - (a) is to be received in evidence in a proceeding in Australia without further proof; and
 - (b) in a proceeding in Australia, is prima facie evidence of the matters stated in the document.

Clause 166

166 Evidentiary certificates—Australian Designated Authority

- (1) The Australian Designated Authority may issue a written certificate signed by the Australian Designated Authority setting out such facts as the Australian Designated Authority considers relevant with respect to:
 - (a) giving an international production order to a prescribed communications provider; or
 - (b) giving an instrument of revocation of an international production order to a prescribed communications provider; or
 - (c) giving an instrument of cancellation to a prescribed communications provider.
- (2) If an international production order requires a prescribed communications provider to make intercepted communications, intercepted messages, intercepted voice calls or intercepted video calls available to:
 - (a) an interception agency; or
 - (b) a Part 5.3 IPO agency; or
 - (c) the Organisation;
indirectly via the Australian Designated Authority, the Australian Designated Authority may issue a written certificate signed by the Australian Designated Authority setting out such facts as the Australian Designated Authority considers relevant with respect to:
 - (d) the receipt by the Australian Designated Authority of the intercepted communications, intercepted messages, intercepted voice calls or intercepted video calls; or
 - (e) anything done by the Australian Designated Authority for the purposes of ensuring that the intercepted communications, intercepted messages, intercepted voice calls or intercepted video calls were passed on to the agency or Organisation, as the case requires.
- (3) If an international production order requires a prescribed communications provider to make a copy of stored communications available to:
 - (a) a criminal law-enforcement agency; or

- (b) a Part 5.3 IPO agency; or
 - (c) the Organisation;indirectly via the Australian Designated Authority, the Australian Designated Authority may issue a written certificate signed by the Australian Designated Authority setting out such facts as the Australian Designated Authority considers relevant with respect to:
 - (d) the receipt by the Australian Designated Authority of the copy; or
 - (e) anything done by the Australian Designated Authority for the purposes of ensuring that the copy was passed on to the agency or Organisation, as the case requires.
- (4) If an international production order requires a prescribed communications provider to disclose telecommunications data to:
 - (a) a relevant agency; or
 - (b) the Organisation;indirectly via the Australian Designated Authority, the Australian Designated Authority may issue a written certificate signed by the Australian Designated Authority setting out such facts as the Australian Designated Authority considers relevant with respect to:
 - (c) the receipt by the Australian Designated Authority of the telecommunications data; or
 - (d) anything done by the Australian Designated Authority for the purposes of ensuring that the telecommunications data was passed on to the agency or Organisation, as the case requires.
- (5) A document purporting to be a certificate issued under subclause (1), (2), (3) or (4):
 - (a) is to be received in evidence in a proceeding in Australia without further proof; and
 - (b) in a proceeding in Australia, is prima facie evidence of the matters stated in the document.

Part 13—Incoming orders and requests

167 Simplified outline of this Part

- If there is a designated international agreement between Australia and one or more foreign countries, and a competent authority of such a foreign country issues an order, or makes a request, covered by the agreement, an act or thing done in compliance with such an order or request is exempt from:
 - (a) the provisions of this Act that prohibit intercepting communications and accessing stored communications; and
 - (b) the provisions of this Act that prohibit disclosure of information; and
 - (c) the provisions of the *Telecommunications Act 1997* that prohibit the disclosure of information.

168 Incoming orders and requests—exemptions from various prohibitions

If:

- (a) there is a designated international agreement between Australia and one or more foreign countries; and
- (b) the agreement deals with (among other things):
 - (i) the issue of orders (however described); or
 - (ii) the making of requests (however described);by a competent authority (however described) of such a foreign country;

then:

- (c) subsections 7(1) and 108(1) do not apply to or in relation to:
 - (i) an act or thing done in compliance with such an order or request; or

- (ii) the issue of such an order or the making of such a request; and
- (d) subsections 63(1) and 133(1) do not apply to or in relation to:
 - (i) an act or thing done in compliance with such an order or request; or
 - (ii) information obtained in accordance with such an order or request; and
- (e) sections 276, 277 and 278 of the *Telecommunications Act 1997* do not apply to or in relation to:
 - (i) an act or thing done in compliance with such an order or request; or
 - (ii) information obtained in accordance with such an order or request.

Note 1: In a prosecution for an offence against subsection 7(1) or 108(1), a defendant bears an evidential burden in relation to the matter in paragraph (c): see subsection 13.3(3) of the *Criminal Code*.

Note 2: In a prosecution for an offence against subsection 63(1) or 133(1), a defendant bears an evidential burden in relation to the matter in paragraph (d): see subsection 13.3(3) of the *Criminal Code*.

Note 3: In a prosecution for an offence against section 276, 277 or 278 of the *Telecommunications Act 1997*, a defendant bears an evidential burden in relation to the matter in paragraph (e): see subsection 13.3(3) of the *Criminal Code*.

169 Interaction with the *Privacy Act 1988*

For the purposes of the *Privacy Act 1988*, if:

- (a) there is a designated international agreement between Australia and one or more foreign countries; and
- (b) the agreement deals with (among other things):
 - (i) the issue of orders (however described); or
 - (ii) the making of requests (however described);by a competent authority (however described) of such a foreign country;

the disclosure of information in compliance with any such order or request, to the extent that the information contains personal

Clause 169

information, is taken to be a disclosure that is authorised by this Act.

Part 14—Miscellaneous

170 Simplified outline of this Part

- This Part deals with miscellaneous matters, such as:
 - (a) electronic service of documents; and
 - (b) certified copies of international production orders; and
 - (c) delegations.

171 Electronic service of documents

(1) If:

- (a) any of the following is required by this Schedule to be given to a person by the Australian Designated Authority:
 - (i) an international production order;
 - (ii) a certified copy of an international production order;
 - (iii) an instrument of revocation of an international production order;
 - (iv) an instrument of cancellation of an international production order; and
- (b) the person has nominated an electronic address for service in a document given by the person to the Australian Designated Authority;

the order, copy or instrument is taken to have been given to the person if it is sent to the nominated electronic address for service.

(2) If:

- (a) any of the following is required by this Schedule to be given to the Australian Designated Authority by a person, a relevant agency or the Organisation:
 - (i) an international production order;
 - (ii) a certified copy of an international production order;

Clause 172

- (iii) an instrument of revocation of an international production order;
 - (iv) an instrument of cancellation of an international production order; and
 - (b) the Australian Designated Authority has nominated an electronic address for service in a document given by the Australian Designated Authority to the person, the relevant agency or the Organisation, as the case may be;
- the order, copy or instrument is taken to have been given to the Australian Designated Authority if it is sent to the nominated electronic address for service.

172 International production order issued in response to a telephone application—action required

Scope

- (1) This clause applies if a person (the *issuing person*) issues an international production order in response to a telephone application made by a person (the *applicant*) on behalf of:
 - (a) a relevant agency; or
 - (b) the Organisation.

Required action

- (2) Within one day after the day on which the international production order is issued, the applicant must:
 - (a) cause each person who gave information to the issuing person in connection with the application to swear or affirm an affidavit setting out the information so given by the person; and
 - (b) give to the issuing person:
 - (i) the affidavit or affidavits; and
 - (ii) if, as a result of an authorisation that was in force under clause 23, 34, 43, 53, 64 or 73 when the application was made, the applicant was authorised to make the application by telephone—a copy of the authorisation.

Cancellation if required action not taken

- (3) If the issuing person is satisfied that subclause (2) has not been complied with in relation to the order, the issuing person may cancel the order.
- (4) A cancellation under subclause (3) is to be set out in a written instrument.
- (5) If the international production order is cancelled by the issuing person under subclause (3):
 - (a) the issuing person must:
 - (i) give the instrument of cancellation to the Australian Designated Authority; and
 - (ii) do so as soon as practicable after the order is cancelled; and
 - (b) if the telephone application was made on behalf of a relevant agency—the Australian Designated Authority must:
 - (i) inform the chief officer of the relevant agency of the cancellation; and
 - (ii) do so as soon as practicable after the instrument of cancellation is given to the Australian Designated Authority; and
 - (c) if the telephone application was made on behalf of the Organisation—the Australian Designated Authority must:
 - (i) inform the Organisation of the cancellation; and
 - (ii) do so as soon as practicable after the instrument of cancellation is given to the Australian Designated Authority.
- (6) If:
 - (a) the Australian Designated Authority gave the international production order to the prescribed communications provider to whom the order is directed; and
 - (b) the order was subsequently cancelled under subclause (3);the Australian Designated Authority must:

Clause 173

- (c) give the instrument of cancellation to the prescribed communications provider; and
 - (d) do so as soon as practicable after the instrument of cancellation is given to the Australian Designated Authority.
- (7) A cancellation under subclause (3) takes effect:
 - (a) if the instrument of cancellation is required to be given to the prescribed communications provider concerned—when the instrument is given; or
 - (b) otherwise—when the cancellation is made.
- (8) If:
 - (a) an international production order is cancelled under this clause; and
 - (b) when the cancellation takes effect, the Australian Designated Authority has not made a decision about the order under clause 111 or 112 (as the case may be);clause 111 or 112 (as the case may be) ceases to apply to the order when the cancellation takes effect.

173 Duty of nominated ART Intelligence and Security member

It is the duty of a nominated ART Intelligence and Security member to ensure, so far as the member is able to do so, that, in or in connection with the performance of a function, or the exercise of a power, conferred on the member by this Schedule, information is not communicated or made available to a person contrary to the requirements of security (within the ordinary meaning of that expression).

174 Certified copy of international production order—interception agency

- (1) A document certified in writing by a certifying officer of an interception agency to be a true copy of an international production order issued under clause 30 is to be received in evidence in a proceeding mentioned in clause 153 or 157 as if it were the original international production order.

- (2) The document is to be known as a *certified copy* of the original international production order.

175 Certified copy of international production order—criminal law-enforcement agency

- (1) A document certified in writing by a certifying officer of a criminal law-enforcement agency to be a true copy of an international production order issued under clause 39 is to be received in evidence in a proceeding mentioned in clause 153 or 158 as if it were the original international production order.
- (2) The document is to be known as a *certified copy* of the original international production order.

176 Certified copy of international production order—enforcement agency

- (1) A document certified in writing by a certifying officer of an enforcement agency to be a true copy of an international production order issued under clause 48 is to be received in evidence in:
- (a) a proceeding mentioned in clause 153; or
 - (b) a proceeding for a purpose mentioned in clause 159;
- as if it were the original international production order.
- (2) The document is to be known as a *certified copy* of the original international production order.

177 Certified copy of international production order—Part 5.3 IPO agency

Interception

- (1) A document certified in writing by a certifying officer of a Part 5.3 IPO agency to be a true copy of an international production order issued under clause 60 is to be received in evidence in:
- (a) a proceeding by way of a prosecution for an offence against:

Clause 177

- (i) Part 5.3 of the *Criminal Code*; or
 - (ii) Part 5.5 of the *Criminal Code*; or
 - (b) a proceeding mentioned in clause 153; or
 - (c) a proceeding mentioned in clause 157;
- as if it were the original international production order.
- (2) The document is to be known as a ***certified copy*** of the original international production order.

Stored communications

- (3) A document certified in writing by a certifying officer of a Part 5.3 IPO agency to be a true copy of an international production order issued under clause 69 is to be received in evidence in:
- (a) a proceeding by way of a prosecution for an offence against:
 - (i) Part 5.3 of the *Criminal Code*; or
 - (ii) Part 5.5 of the *Criminal Code*; or
 - (b) a proceeding mentioned in clause 153; or
 - (c) a proceeding mentioned in clause 158;
- as if it were the original international production order.
- (4) The document is to be known as a ***certified copy*** of the original international production order.

Telecommunications data

- (5) A document certified in writing by a certifying officer of a Part 5.3 IPO agency to be a true copy of an international production order issued under clause 78 is to be received in evidence in:
- (a) a proceeding by way of a prosecution for an offence against:
 - (i) Part 5.3 of the *Criminal Code*; or
 - (ii) Part 5.5 of the *Criminal Code*; or
 - (b) a proceeding mentioned in clause 153; or
 - (c) a proceeding for a purpose mentioned in clause 159;
- as if it were the original international production order.

- (6) The document is to be known as a *certified copy* of the original international production order.

178 Certified copy of international production order—the Organisation

Interception

- (1) A document certified in writing by a certifying person to be a true copy of an international production order issued under clause 89 is to be received in evidence in a proceeding mentioned in clause 153 or 157 as if it were the original international production order.
- (2) The document is to be known as a *certified copy* of the original international production order.

Stored communications

- (3) A document certified in writing by a certifying person to be a true copy of an international production order issued under clause 98 is to be received in evidence in a proceeding mentioned in clause 153 or 158 as if it were the original international production order.
- (4) The document is to be known as a *certified copy* of the original international production order.

Telecommunications data

- (5) A document certified in writing by a certifying person to be a true copy of an international production order issued under clause 107 is to be received in evidence in:
- (a) a proceeding mentioned in clause 153; or
 - (b) a proceeding for a purpose mentioned in clause 159;
- as if it were the original international production order.
- (6) The document is to be known as a *certified copy* of the original international production order.

Clause 179

179 Delegation by the Australian Designated Authority

- (1) The Australian Designated Authority may, by writing, delegate any or all of the Australian Designated Authority's functions or powers under this Schedule to:
- (a) an SES employee, or acting SES employee, in the Attorney-General's Department; or
 - (b) an APS employee who holds, or is acting in, an Executive Level 1 or 2 position in the Attorney-General's Department.

Note: The expressions *SES employee*, *acting SES employee* and *APS employee* are defined in section 2B of the *Acts Interpretation Act 1901*.

- (2) In performing functions, or exercising powers, under a delegation under subclause (1), the delegate must comply with any directions of the Australian Designated Authority.

180 Minor defects in connection with international production order

- (1) If:
- (a) information is purportedly obtained in accordance with an international production order; and
 - (b) there is a defect or irregularity in relation to the international production order; and
 - (c) apart from that defect or irregularity, the information would have been obtained in accordance with the international production order;
- the information is taken to have been obtained in accordance with the international production order.
- (2) For the purposes of subclause (1), a *defect or irregularity* in relation to an international production order means a defect or irregularity:
- (a) that is not a substantial defect or irregularity; and
 - (b) that is:
 - (i) in, or in connection with the issue of, a document purporting to be the international production order; or

- (ii) in connection with compliance with the international production order; or
- (iii) in connection with purported compliance with a document purporting to be the international production order.

181 Protection of persons—control order declared to be void

- (1) If:
 - (a) an international production order was issued under Part 3 of this Schedule on the basis that an interim control order was in force; and
 - (b) a court subsequently declares the interim control order to be void;a criminal proceeding does not lie against a person in respect of anything done in good faith by the person in purported compliance with the international production order.
- (2) Subclause (1) does not apply to a thing done at a particular time if, at that time, the person knew, or ought reasonably to have known, of the declaration.

182 Specification of international agreements

- (1) If:
 - (a) there is an agreement between Australia and one or more foreign countries; and
 - (b) the name of the agreement is specified in:
 - (i) regulations made for the purposes of this Schedule; or
 - (ii) an application made under this Schedule; or
 - (iii) an international production order; or
 - (iv) any other instrument made under this Schedule;a reference in the regulations, application, order or other instrument (as the case may be) to the agreement is a reference to the agreement as amended and in force for Australia from time to time.

Clause 183

- (2) For the purposes of subclause (1), disregard an amendment of an agreement unless:
- (a) a copy of the English text of the amendment is set out in regulations made for the purposes of paragraph 3(1)(d) or (3)(d); and
 - (b) the amendment has entered into force for Australia.

183 Operation of the *Mutual Assistance in Criminal Matters Act 1987* not limited

This Schedule is not intended to limit the operation of the *Mutual Assistance in Criminal Matters Act 1987*.

184 Other functions or powers not limited

This Schedule is not intended to limit the functions or powers of:

- (a) a relevant agency; or
 - (b) the Organisation; or
 - (c) any other body or person;
- to request or obtain assistance or information from:
- (d) a prescribed communications provider; or
 - (e) any other body or person.

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment

Endnotes

Endnote 1—About the endnotes

can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	p = page(s)
amdt = amendment	para = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
ch = Chapter(s)	prev = previous
cl = clause(s)	(prev...) = previously
cont. = continued	pt = Part(s)
def = definition(s)	r = regulation(s)/Court rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
div = Division(s)	rep = repealed
ed = editorial change	rs = repealed and substituted
exp = expires/expired or ceases/ceased to have effect	s = section(s)/subsection(s) /rule(s)/subrule(s)/order(s)/suborder(s)
gaz = gazette	sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	SLI = Select Legislative Instrument
LIA = <i>Legislative Instruments Act 2003</i>	SR = Statutory Rules
(md) = misdescribed amendment can be given effect	sub ch = Sub-Chapter(s)
(md not incorp) = misdescribed amendment cannot be given effect	sub div = Subdivision(s)
mod = modified/modification	sub pt = Subpart(s)
No. = Number(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Interception) Act 1979	114, 1979	25 Oct 1979	1 June 1980 (<i>see Gazette</i> 1980, No. G21, p. 2)	—
Telecommunications (Interception) Amendment Act 1979	181, 1979	4 Dec 1979	1 June 1980 (<i>see</i> s. 2 and <i>Gazette</i> 1980, No. G21, p. 2)	—
Director of Public Prosecutions (Consequential Amendments) Act 1983	114, 1983	14 Dec 1983	s. 8(1): 16 Dec 1985 (<i>see</i> s. 2(2)) s. 8(2): 16 Dec 1985 (<i>see</i> s. 2(3)) Remainder: 5 Mar 1984 (<i>see</i> s. 2(1) and <i>Gazette</i> 1984, No. S55)	—
Telecommunications (Interception) Amendment Act 1983	116, 1983	16 Dec 1983	16 Dec 1983	—
Telecommunications (Interception) Amendment Act 1984	6, 1984	4 Apr 1984	4 Apr 1984	s 4
Telecommunications (Interception) Amendment Act (No. 2) 1984	116, 1984	17 Oct 1984	17 Oct 1984	—
Telecommunications (Interception) Amendment Act 1985	8, 1985	29 Mar 1985	29 Mar 1985	—
Telecommunications (Interception) Amendment Act (No. 2) 1985	63, 1985	4 June 1985	4 June 1985	ss. 2(2) and 8

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Intelligence and Security (Consequential Amendments) Act 1986	102, 1986	17 Oct 1986	s 25–34: 1 Feb 1987 (s 2)	—
as amended by				
Crimes Legislation Amendment Act 1991	28, 1991	4 Mar 1991	Sch 2 (Pt 3): 1 Feb 1987 (s 2(7))	—
Telecommunications (Interception) Amendment Act 1987	89, 1987	5 June 1987	s 3, 4, 5(1)(b), 7, 9–21 and Sch 1: 1 Sept 1988 (s 2(2) and gaz 1988, No S256) s 5(1)(a), (2), 6 and 8: 16 Dec 1987 (s 2(1A))	s 6(2), 16(2), (3), 17(2) and 18(2)–(4)
as amended by				
Crimes Legislation Amendment Act 1987	120, 1987	16 Dec 1987	s 54: 16 Dec 1987 (s 2(3))	—
Crimes Legislation Amendment Act 1987	120, 1987	16 Dec 1987	s 56–59: 16 Dec 1987 (s 2(3) and (4)) s 60–67: 1 Sept 1988 (s 2(5))	—
Extradition (Repeal and Consequential Provisions) Act 1988	5, 1988	9 Mar 1988	s 7(2), (3) and Sch: 1 Dec 1988 (s 2(1) and (3)(a))	s 7(2) and (3)
Crimes Legislation Amendment Act 1988	65, 1988	15 June 1988	ss. 9–11: 1 Sept 1988 (see s. 2(2), (3) and <i>Gazette</i> 1988, No. S256) Remainder: Royal Assent	—
Crimes Legislation Amendment Act (No. 2) 1988	66, 1988	15 June 1988	s 26–28: 1 Sept 1988 (s 2(5))	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Statutory Instruments (Tabling and Disallowance) Legislation Amendment Act 1988	99, 1988	2 Dec 1988	2 Dec 1988	—
Telecommunications Amendment Act 1988	121, 1988	14 Dec 1988	ss. 5, 6, 10, 12, 13, 23(2) and 26(1): 1 Jan 1989 (see <i>Gazette</i> 1988, No. S402) ss. 14, 23(3) and 26(2): 30 June 1989 (see <i>Gazette</i> 1989, No. S216) Remainder: Royal Assent	—
Telecommunications and Postal Services (Transitional Provisions and Consequential Amendments) Act 1989	63, 1989	19 June 1989	s 38–59: 1 July 1989 (s 2(1) and gaz 1989, No S230)	—
as amended by Transport and Communications Legislation Amendment Act 1990	11, 1991	21 Jan 1991	Sch: 1 July 1989 (s 2(13)(e))	—
Law and Justice Legislation Amendment Act 1989	11, 1990	17 Jan 1990	s 51(1)(a), 52–55 and Sch 2: 14 Feb 1990 (s 2(1)) s 51(1)(b) and (2): 17 Jan 1990 (s 2(5)(b))	s 51(2)
Crimes Legislation Amendment Act 1991	28, 1991	4 Mar 1991	s 61(1), 64–66 and 68–72: 4 Mar 1991 (s 2(1)) s 61(2), 62, 63, 67 and 73: 29 Apr 1991 (s 2(2) and gaz 1991, No S108)	s 73

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Transitional Provisions and Consequential Amendments) Act 1991	99, 1991	27 June 1991	ss. 1 and 2: Royal Assent ss. 3–23 and 25: 1 July 1991 Remainder: 1 Feb 1992 (see s. 2(3) and <i>Gazette</i> 1992, No. S32)	—
Telecommunications (Interception) Amendment Act 1993	103, 1993	22 Dec 1993	ss. 3(2), 5, 12, 14–18 and 24–28: 1 Feb 1994 (see <i>Gazette</i> 1994, No. S27) Remainder: Royal Assent	s 3(3), 17(2), (3), 24(2) and 25(2), (3)
Royal Commission into the New South Wales Police Service (Access to Information) Act 1994	170, 1994	16 Dec 1994	16 Dec 1994	—
Evidence (Transitional Provisions and Consequential Amendments) Act 1995	3, 1995	23 Feb 1995	s 14: 23 Feb 1995 (s 2(1)) Sch: 18 Apr 1995 (s 2(13)(a))	s 14
International War Crimes Tribunals (Consequential Amendments) Act 1995	19, 1995	29 Mar 1995	s. 3: 28 Aug 1995 (see <i>Gazette</i> 1995, No. S323) Remainder: Royal Assent	—
Telecommunications (Interception) Amendment Act 1995	141, 1995	12 Dec 1995	Schedule 1 (Part 2): 12 June 1996 Remainder: Royal Assent	Sch 1 (items 3, 14, 19, 34, 36, 39)
Statute Law Revision Act 1996	43, 1996	25 Oct 1996	Sch 5 (items 147–149): 25 Oct 1996 (s 2(1))	—
Telecommunications (Transitional Provisions and Consequential Amendments) Act 1997	59, 1997	3 May 1997	Sch 1 (items 51–55): 1 July 1997 (s 2(2)(d))	—

Telecommunications (Interception and Access) Act 1979

301

Compilation No. 133

Compilation date: 04/06/2026

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Interception) and Listening Device Amendment Act 1997	160, 1997	11 Nov 1997	Schedule 1 (items 6, 19, 20, 24, 25, 27–39, 47–50), Schedule 2 and Schedule 3 (items 1–8, 11–13): 1 Feb 1998 (<i>see Gazette</i> 1998, No. GN3) Remainder: Royal Assent	s 3 (rep. by 151, 1999, Sch. 2)
as amended by				
Telecommunications (Interception) Amendment Act 1999	151, 1999	11 Nov 1999	11 Nov 1999	—
Migration Legislation Amendment Act (No. 1) 1999	89, 1999	16 July 1999	Sch 2: 22 July 1999 (s 2(4) and gaz 1999, No S337)	—
Public Employment (Consequential and Transitional) Amendment Act 1999	146, 1999	11 Nov 1999	Sch 1 (item 918): 5 Dec 1999 (s 2(1) and (2))	—
Telecommunications (Interception) Amendment Act 1999	151, 1999	11 Nov 1999	11 Nov 1999	—
Australian Security Intelligence Organisation Legislation Amendment Act 1999	161, 1999	10 Dec 1999	Sch 3 (items 1, 62–81): 10 Dec 1999 (s 2(2))	—
Australian Federal Police Legislation Amendment Act 2000	9, 2000	7 Mar 2000	Sch 2 (items 58–64) and Sch 3 (items 20, 32, 34, 35): 2 July 2000 (s 2(1) and gaz 2000, No S328)	Sch 3 (items 20, 32, 34, 35)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Interception) Legislation Amendment Act 2000	63, 2000	22 June 2000	Sch 1, 2 and Sch 3 (items 4–72): 22 June 2000 (s 2(1)) Sch 3 (items 2, 3): 2 July 2000 (s 2(2))	Sch 3 (item 72)
Criminal Code Amendment (Theft, Fraud, Bribery and Related Offences) Act 2000	137, 2000	24 Nov 2000	Sch 2 (items 399, 400, 418, 419): 24 May 2001 (s 2(3))	Sch 2 (items 418, 419)
Law and Justice Legislation Amendment (Application of Criminal Code) Act 2001	24, 2001	6 Apr 2001	s 4(1), (2) and Sch 47: 24 May 2001 (s 2(1)(a))	s 4(1) and (2)
Corporations (Repeals, Consequential and Transitionals) Act 2001	55, 2001	28 June 2001	s 4–14 and Sch 3 (items 513–515): 15 July 2001 (s 2(1), (3))	s 4–14
National Crime Authority Legislation Amendment Act 2001	135, 2001	1 Oct 2001	Sch 1–7 and 9–12: 12 Oct 2001 (<i>see Gazette</i> 2001, No. S428) Sch 8: 13 Oct 2001 (<i>see</i> <i>Gazette</i> 2001, No. S428) Remainder: Royal Assent	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Cybercrime Act 2001	161, 2001	1 Oct 2001	21 Dec 2001 (<i>see Gazette</i> 2001, No. S529)	—
as amended by				
Crimes Legislation Amendment (Telecommunications Offences and Other Measures) Act (No. 2) 2004	127, 2004	31 Aug 2004	(<i>see</i> 127, 2004 below)	—
Royal Commissions and Other Legislation Amendment Act 2001	166, 2001	1 Oct 2001	1 Oct 2001	—
International Criminal Court (Consequential Amendments) Act 2002	42, 2002	27 June 2002	Schedules 1–7: 26 Sept 2002 (<i>see</i> s. 2(1) and <i>Gazette</i> 2002, No. GN38) Remainder: 28 June 2002	—
Telecommunications Interception Legislation Amendment Act 2002	67, 2002	5 July 2002	Schedule 1 (items 23, 29, 33, 37, 39): 22 June 2000 Remainder: Royal Assent	Sch 2 (item 46)
Proceeds of Crime (Consequential Amendments and Transitional Provisions) Act 2002	86, 2002	11 Oct 2002	ss. 1–3: Royal Assent Remainder: 1 Jan 2003 (<i>see</i> s. 2(1) and <i>Gazette</i> 2002, No. GN44)	—
Australian Crime Commission Establishment Act 2002	125, 2002	10 Dec 2002	Sch 2 (items 190–224) and Sch 3 (item 17): 1 Jan 2003 (s 2(1) items 6, 10)	—

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Security Intelligence Organisation Legislation Amendment (Terrorism) Act 2003	77, 2003	22 July 2003	Schedule 1 (items 28, 29): 23 July 2003	Sch 1 (item 29)
Telecommunications Interception and Other Legislation Amendment Act 2003	113, 2003	12 Nov 2003	Schedule 1: 6 Feb 2004 (see <i>Gazette</i> 2004, No. S27) Remainder: Royal Assent	—
Telecommunications (Interception) Amendment Act 2004	55, 2004	27 Apr 2004	28 Apr 2004	—
Crimes Legislation Amendment (Telecommunications Offences and Other Measures) Act (No. 2) 2004	127, 2004	31 Aug 2004	Sch 1 (items 25–31): 1 Mar 2005 (s 2(1) item 2)	Sch 1 (items 30, 31)
as amended by				
Telecommunications (Interception) Amendment Act 2006	40, 2006	3 May 2006	Sch 1 (item 16): 13 June 2006 (s 2(1) item 2)	—
Telecommunications (Interception) Amendment (Stored Communications) Act 2004	148, 2004	14 Dec 2004	15 Dec 2004	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Crimes Legislation Amendment (Telecommunications Interception and Other Measures) Act 2005	95, 2005	6 July 2005	Sch 2 (items 1, 2, 9): 17 Dec 2005 (s 2(1) items 3, 8) Sch 2 (items 3, 8, 10–14A): 6 July 2005 (s 2(1) items 4, 7, 9) Sch 2 (items 4, 5): never commenced (s 2(1) items 5, 6) Sch 2 (item 15): 1 June 1980 (s 2(1) item 10)	—
Criminal Code Amendment (Trafficking in Persons Offences) Act 2005	96, 2005	6 July 2005	Schedules 1 and 2: 3 Aug 2005 Remainder: Royal Assent	—
Statute Law Revision Act 2005	100, 2005	6 July 2005	Schedule 1 (items 66–82): Royal Assent	—
Intelligence Services Legislation Amendment Act 2005	128, 2005	4 Nov 2005	Sch 1–8: 2 Dec 2005 Remainder: Royal Assent	—
Law and Justice Legislation Amendment (Serious Drug Offences and Other Measures) Act 2005	129, 2005	8 Nov 2005	Schedule 1 (items 70–76): 6 Dec 2005	Sch 1 (items 75, 76)
Telecommunications (Interception) Amendment (Stored Communications and Other Measures) Act 2005	152, 2005	14 Dec 2005	Schedule 1 (items 3–18): 1 Oct 2006 (<i>see</i> F2006L03104) Remainder: Royal Assent	—

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Interception) Amendment Act 2006	40, 2006	3 May 2006	Sch 1 (items 1–9, 25–145), Sch 2 and Sch 3: 13 June 2006 (s 2(1) item 2) Sch 4: 1 July 2006 (s 2(1) item 3) Sch 5: 3 Nov 2006 (s 2(1) item 4) Sch 6 (items 1, 3): 1 Oct 2006 (s 2(1) items 5, 7) Sch 6 (items 2, 4–7, 9, 10): 3 May 2006 (s 2(1) items 6, 8, 10) Sch 6 (item 8): 1 Feb 1994 (s 2(1) item 9)	Sch 3 (items 6, 10), Sch 4 (items 31–34) and Sch 5 (items 19, 25, 29, 34)
as amended by				
Statute Law Revision Act 2007	8, 2007	15 Mar 2007	Sch 2 (item 15): 3 Nov 2006 (s 2(1) item 40)	—
Telecommunications (Interception and Access) Amendment Act 2007	177, 2007	28 Sept 2007	Sch 2 (item 1): 3 Nov 2006 (s 2(1) item 3)	—
Law Enforcement Integrity Commissioner (Consequential Amendments) Act 2006	86, 2006	30 June 2006	Sch 1 (items 76–85, 88–92): 30 Dec 2006 (s 2(1) items 2, 5) Sch 1 (items 86, 93–95): never commenced (s 2(1) item 3, 6) Sch 1 (items 87): 1 July 2006 (s 2(1) item 4) Sch 1 (item 96): 13 June 2006 (s 2(1) item 7)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Law and Justice Legislation Amendment (Marking of Plastic Explosives) Act 2007	3, 2007	19 Feb 2007	Schedules 1–3: 25 Aug 2007 Remainder: Royal Assent	—
Telecommunications (Interception and Access) Amendment Act 2007	177, 2007	28 Sept 2007	Sch 1 (items 1–12, 55–68): 1 Nov 2007 (s 2(1) item 2) Sch 2 (items 2–26): 29 Sept 2007 (s 2(1) item 4)	Sch 1 (items 57–68) and Sch 2 (items 22–26)
Telecommunications (Interception and Access) Amendment Act 2008	23, 2008	26 May 2008	Schedule 1 (items 1–19): 27 May 2008 Schedule 1 (items 20–25, 35, 37, 39A): 1 July 2008 (<i>see</i> F2008L02096) Schedule 1 (items 43A, 46A): 1 July 2008 Remainder: Royal Assent	—
Telecommunications Interception Legislation Amendment Act 2008	95, 2008	3 Oct 2008	Sch 2 (items 1–11, 13, 21, 25–27): 4 Oct 2008 (s 2(1) items 3, 5, 7, 10) Sch 2 (items 12, 14–20, 22): 5 Dec 2008 (s 2(1) items 4, 6, 8) Sch 2 (items 23, 24): 3 Oct 2008 (s 2(1) item 9)	Sch 2 (items 25–27)
Telecommunications Interception Legislation Amendment Act (No. 1) 2009	32, 2009	22 May 2009	Schedule 1: 18 June 2009 (<i>see</i> s. 2(1)) Schedule 2 (items 2–4): 23 May 2009	Sch 2 (item 4)
Trade Practices Amendment (Cartel Conduct and Other Measures) Act 2009	59, 2009	26 June 2009	Schedule 1 (item 2): 24 July 2009	—

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Interception and Access) Amendment Act 2010	2, 2010	12 Feb 2010	13 Feb 2010	Sch. 2 (items 14– 17)
Crimes Legislation Amendment (Serious and Organised Crime) Act 2010	3, 2010	19 Feb 2010	Schedule 4 (items 14–16, 16A, 17, 18, 18A–18H, 18J): Royal Assent	Sch 4 (items 18, 18J)
Crimes Legislation Amendment (Serious and Organised Crime) Act (No. 2) 2010	4, 2010	19 Feb 2010	Schedule 4 (item 4) and Schedule 7 (items 25, 29): 20 Feb 2010	Sch 7 (item 29)
Statute Law Revision Act 2010	8, 2010	1 Mar 2010	Schedule 1 (items 48– 52) and Schedule 5 (item 123): Royal Assent	—
Crimes Legislation Amendment (Sexual Offences Against Children) Act 2010	42, 2010	14 Apr 2010	Schedule 1 (items 75– 78): 15 Apr 2010	Sch. 1 (item 78)
Trade Practices Amendment (Australian Consumer Law) Act (No. 1) 2010	44, 2010	14 Apr 2010	Schedule 4 (item 2): 1 July 2010	—
Anti-People Smuggling and Other Measures Act 2010	50, 2010	31 May 2010	Schedule 1 (items 17, 18) and Schedule 3: 1 June 2010	—
Freedom of Information Amendment (Reform) Act 2010	51, 2010	31 May 2010	Sch 5 (item 76) and Sch 7: 1 Nov 2010 (s 2(1) item 7)	Sch 7
Trade Practices Amendment (Australian Consumer Law) Act (No. 2) 2010	103, 2010	13 July 2010	Schedule 6 (items 1, 140): 1 Jan 2011	—

Telecommunications (Interception and Access) Act 1979

309

Compilation No. 133

Compilation date: 04/06/2026

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Corporations Amendment (No. 1) Act 2010	131, 2010	24 Nov 2010	Schedule 1 (item 21): 13 Dec 2010 (<i>see</i> F2010L03188)	—
Crimes Legislation Amendment Act 2011	2, 2011	2 Mar 2011	Schedule 1 (items 5–8): Royal Assent	Sch. 1 (items 7, 8)
Law and Justice Legislation Amendment (Identity Crimes and Other Measures) Act 2011	3, 2011	2 Mar 2011	Schedule 2 (item 28): 3 Mar 2011	—
Telecommunications Interception and Intelligence Services Legislation Amendment Act 2011	4, 2011	22 Mar 2011	Schedules 1–5, Schedule 6 (items 28, 29) and Schedule 7: 23 Mar 2011	Sch 1 (items 28, 29), Sch 2 (item 9), Sch 3 (item 9), Sch 4 (item 4), Sch 5 (item 37) and Sch 6 (item 29)
Acts Interpretation Amendment Act 2011	46, 2011	27 June 2011	Schedule 2 (item 1140) and Schedule 3 (items 10, 11): 27 Dec 2011	Sch 3 (items 10, 11)
Extradition and Mutual Assistance in Criminal Matters Legislation Amendment Act 2012	7, 2012	20 Mar 2012	Sch 3 (items 42–49): 20 Sept 2012 (s 2(1) item 6)	Sch 3 (item 49)
Telecommunications Interception and Other Legislation Amendment (State Bodies) Act 2012	74, 2012	27 June 2012	Sch 1 (items 4–25), Sch 2 and 3: 10 Feb 2013 (s 2(1) items 2, 9, 10) Sch 4: 20 Dec 2012 (s 2(1) item 11)	Sch 3 (item 13)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Cybercrime Legislation Amendment Act 2012	120, 2012	12 Sept 2012	Sch 1 (items 2–5, 8–34), Sch 2 (items 5–24, 32–53), Sch 4 and Sch 5: 10 Oct 2012 (s 2(1) items 2, 4)	Sch 1 (item 34), Sch 2 (items 24, 51–53), Sch 4 (item 4) and Sch 5 (item 4)
Law Enforcement Integrity Legislation Amendment Act 2012	194, 2012	12 Dec 2012	Sch 1 (items 79–90, 91(3)–(6)): 13 Dec 2012 (s 2(1) item 4)	Sch 1 (item 91(3)–(6))
Crimes Legislation Amendment (Slavery, Slavery-like Conditions and People Trafficking) Act 2013	6, 2013	7 Mar 2013	Sch 2 (item 15) and Sch 3: 8 Mar 2013 (s 2)	Sch 3
Federal Circuit Court of Australia (Consequential Amendments) Act 2013	13, 2013	14 Mar 2013	Sch 1 (items 512–514): 12 Apr 2013 (s 2(1) item 2)	Sch 1 (item 514)
Crimes Legislation Amendment (Law Enforcement Integrity, Vulnerable Witness Protection and Other Measures) Act 2013	74, 2013	28 June 2013	Sch 6 (items 5–8): 29 June 2013 (s 2(1) item 7)	—
Statute Law Revision Act 2013	103, 2013	29 June 2013	Sch 1 (items 65–68): 29 June 2013 (s 2(1) item 2)	—
National Security Legislation Amendment Act (No. 1) 2014	108, 2014	2 Oct 2014	Sch 1 (items 57–87) and Sch 2 (items 48–50): 30 Oct 2014 (s 2(1) item 2)	Sch 1 (items 78–87) and Sch 2 (item 50)
Counter-Terrorism Legislation Amendment (Foreign Fighters) Act 2014	116, 2014	3 Nov 2014	Sch 1 (items 138, 139): 1 Dec 2014 (s 2(1) item 2)	—

Telecommunications (Interception and Access) Act 1979

311

Compilation No. 133

Compilation date: 04/06/2026

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications (Interception and Access) Amendment (Data Retention) Act 2015	39, 2015	13 April 2015	Sch 1 (items 1, 5–7), Sch 2 and Sch 3: 13 Oct 2015 (s 2(1) items 2, 4) Sch 1 (items 8–12): 13 Apr 2015 (s 2(1) items 1, 3)	Sch 1 (items 7–12), Sch 2 (items 48–51) and Sch 3 (items 8–10)
Customs and Other Legislation Amendment (Australian Border Force) Act 2015	41, 2015	20 May 2015	Sch 5 (items 162–170), Sch 6 (items 188, 189) and Sch 9: 1 July 2015 (s 2(1) items 2, 7) Sch 8 (items 10–13): 13 Oct 2015 (s 2(1) item 6)	Sch 6 (item 189) and Sch 9
as amended by Australian Border Force Amendment (Protected Information) Act 2017	115, 2017	30 Oct 2017	Sch 1 (item 26): 1 July 2015 (s 2(1) item 2)	—
Tribunals Amalgamation Act 2015	60, 2015	26 May 2015	Sch 8 (items 51, 52) and Sch 9: 1 July 2015 (s 2(1) items 19, 22)	Sch 9
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015	126, 2015	10 Sept 2015	Sch 1 (items 626, 627): 5 Mar 2016 (s 2(1) item 2)	—
Statute Law Revision Act (No. 2) 2015	145, 2015	12 Nov 2015	Sch 3 (item 38): 10 Dec 2015 (s 2(1) item 7)	—
Crimes Legislation Amendment (Powers, Offences and Other Measures) Act 2015	153, 2015	26 Nov 2015	Sch 15 (items 34–51, 53): 27 Nov 2015 (s 2(1) items 3, 5) Sch 15 (item 52): never commenced (s 2(1) item 4)	—

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Territories Legislation Amendment Act 2016	33, 2016	23 Mar 2016	Sch 5 (item 93): 1 July 2016 (s 2(1) item 7)	—
Counter-Terrorism Legislation Amendment Act (No. 1) 2016 as amended by	82, 2016	29 Nov 2016	Sch 9: 30 Nov 2016 (s 2(1) item 2)	Sch 9 (items 59, 60)
Criminal Code Amendment (High Risk Terrorist Offenders) Act 2016	95, 2016	7 Dec 2016	Sch 2 (items 16, 17): never commenced (s 2(1) item 5)	—
Law Enforcement Legislation Amendment (State Bodies and Other Measures) Act 2016	86, 2016	30 Nov 2016	Sch 1 (items 1, 56–58): 1 Dec 2016 (s 2(1) items 2, 4) Sch 1 (items 2–36, 54, 55): 1 July 2017 (s 2(1) item 3)	Sch 1 (items 1, 29–36, 54–58)
Criminal Code Amendment (High Risk Terrorist Offenders) Act 2016	95, 2016	7 Dec 2016	Sch 2 (items 2–11, 18– 23): 7 June 2017 (s 2(1) items 3, 6, 7) Sch 2 (items 12–15): never commenced (s 2(1) item 4)	—
Criminal Code Amendment (Protecting Minors Online) Act 2017	50, 2017	22 June 2017	Sch 2 (item 3): 23 June 2017 (s 2(1) item 1)	—
Statute Update (Winter 2017) Act 2017	93, 2017	23 Aug 2017	Sch 1 (items 19, 20): 20 Sept 2017 (s 2(1) item 2)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications and Other Legislation Amendment Act 2017	111, 2017	18 Sept 2017	Sch 1 (items 30, 31, 35): 18 Sept 2018 (s 2(1) item 2)	Sch 1 (item 35)
as amended by				
Home Affairs and Integrity Agencies Legislation Amendment Act 2018	31, 2018	9 May 2018	Sch 2 (item 283): 18 Sept 2018 (s 2(1) item 6) Sch 2 (item 284): 11 May 2018 (s 2(1) item 7)	Sch 2 (item 284)
Home Affairs and Integrity Agencies Legislation Amendment Act 2018	31, 2018	9 May 2018	Sch 2 (items 224–239, 284): 11 May 2018 (s 2(1) items 3, 7) Sch 2 (items 242–249): 22 Nov 2018 (s 2(1) item 4)	Sch 2 (item 284)
Crimes Legislation Amendment (International Crime Cooperation and Other Measures) Act 2018	34, 2018	22 May 2018	Sch 1 (items 7–11, 30–70, 75–79): 22 Nov 2018 (s 2(1) item 2) Sch 6 (items 20–22, 31, 32): 23 May 2018 (s 2(1) item 8)	Sch 1 (items 11, 60, 70, 79) and Sch 6 (items 31, 32)
Investigation and Prosecution Measures Act 2018	37, 2018	22 May 2018	Sch 1 (items 1–10, 16–18): 22 May 2018 (s 2(1) item 2)	Sch 1 (items 1, 6–10, 16–18)
National Security Legislation Amendment (Espionage and Foreign Interference) Act 2018	67, 2018	29 June 2018	Sch 4 (items 1, 2): 30 June 2018 (s 2(1) item 5) Sch 4 (item 3): 29 Dec 2018 (s 2(1) item 6)	—
Unexplained Wealth Legislation Amendment Act 2018	126, 2018	3 Oct 2018	Sch 6: 10 Dec 2018 (s 2(1) item 2)	Sch 6 (item 9)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications and Other Legislation Amendment (Assistance and Access) Act 2018	148, 2018	8 Dec 2018	Sch 1 (items 7C–7G) and Sch 2 (items 120–123, 123A, 123B, 123BA, 123C, 123D, 124, 124A, 125, 126, 126AA, 126A, 127–131, 131A, 132): 9 Dec 2018 (s 2(1) items 2, 4)	Sch 2 (item 132)
Combatting Child Sexual Exploitation Legislation Amendment Act 2019	72, 2019	20 Sept 2019	Sch 2 (item 9) and Sch 7 (items 42–48): 21 Sept 2019 (s 2(1) items 3, 4)	Sch 7 (items 45–48)
Australian Crime Commission Amendment (Special Operations and Special Investigations) Act 2019	114, 2019	10 Dec 2019	Sch 1 (items 63–68): 10 Dec 2019 (s 2(1) item 1)	Sch 1 (item 68)
Telecommunications (Interception and Access) Amendment (Assistance and Access Amendments Review) Act 2019	124, 2019	12 Dec 2019	Sch 1 (items 2–4): 13 Dec 2019 (s 2(1) item 1)	Sch 1 (item 4)
Financial Sector Reform (Hayne Royal Commission Response—Stronger Regulators (2019 Measures)) Act 2020	3, 2020	17 Feb 2020	Sch 2: 18 Feb 2020 (s 2(1) item 1)	Sch 2 (item 12)
Radiocommunications Legislation Amendment (Reform and Modernisation) Act 2020	151, 2020	17 Dec 2020	Sch 6 (items 37, 38, 41–49): 17 June 2021 (s 2(1) items 8, 10) Sch 6 (item 50): 18 Dec 2020 (s 2(1) item 11)	Sch 6 (items 41–50)

Telecommunications (Interception and Access) Act 1979

315

Compilation No. 133

Compilation date: 04/06/2026

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Online Safety (Transitional Provisions and Consequential Amendments) Act 2021	77, 2021	23 July 2021	Sch 2 (item 98): 23 Jan 2022 (s 2(1) item 3)	—
Telecommunications Legislation Amendment (International Production Orders) Act 2021	78, 2021	23 July 2021	Sch 1 (items 14, 15, 19–44, 47–49): 24 July 2021 (s 2(1) items 2, 4) Sch 1 (item 45): 1 Sept 2021 (s 2(1) item 3)	Sch 1 (items 44, 49)
Foreign Intelligence Legislation Amendment Act 2021	95, 2021	2 Sept 2021	Sch 1, Sch 2 (items 3–9) and Sch 3: 21 Dec 2021 (s 2(1) item 1)	Sch 1 (item 14), Sch 2 (item 9) and Sch 3 (item 7)
Surveillance Legislation Amendment (Identify and Disrupt) Act 2021	98, 2021	3 Sept 2021	Sch 1 (items 52–62), Sch 2 (items 112–122) and Sch 5 (items 7, 8): 4 Sept 2021 (s 2(1) items 2–4)	—
Counter-Terrorism Legislation Amendment (High Risk Terrorist Offenders) Act 2021	131, 2021	8 Dec 2021	Sch 1 (items 313–392, 394–397) and Sch 2: 9 Dec 2021 (s 2(1) items 2, 3)	—
National Security Legislation Amendment (Comprehensive Review and Other Measures No. 1) Act 2022	31, 2022	1 Apr 2022	Sch 13 (items 3–6): 2 Apr 2022 (s 2(1) item 8)	Sch 13 (item 6)
Australian Crime Commission Amendment (Special Operations and Special Investigations) Act 2022	80, 2022	9 Dec 2022	Sch 1 (items 42–44, 48): 10 Dec 2022 (s 2(1) item 1)	Sch 1 (items 44, 48)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
National Anti-Corruption Commission (Consequential and Transitional Provisions) Act 2022	89, 2022	12 Dec 2022	Sch 1 (items 206–260) and Sch 2 (items 1, 32– 35): 1 July 2023 (s 2(1) items 2, 3)	Sch 2 (items 1, 32–35)
Telecommunications (Interception and Access) Amendment Act 2023	51, 2023	10 Aug 2023	10 Aug 2023 (s 2(1) item 1)	Sch 1 (item 11)
National Security Legislation Amendment (Comprehensive Review and Other Measures No. 2) Act 2023	53, 2023	11 Aug 2023	Sch 1 (item 4): 12 Aug 2023 (s 2(1) item 1)	—
Crimes and Other Legislation Amendment (Omnibus) Act 2023	63, 2023	13 Sept 2023	Sch 8 and Sch 10 (items 9–30): 14 Sept 2023 (s 2(1) items 6, 8)	—
Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Inspector-General of Intelligence and Security and Other Legislation Amendment (Modernisation) Act 2023 (C2023A00073)	73, 2023	20 Sept 2023	sch 1 (items 205–222), sch 3 (item 2): 21 Sept 2023 (s 2(1) items 2, 5)	sch 3 (item 2)

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Statute Law Amendment (Prescribed Forms and Other Updates) Act 2023 (C2023A00074)	74, 2023	20 Sept 2023	sch 3 (items 15, 16): 18 Oct 2023 (s 2(1) item 3)	—
Migration and Other Legislation Amendment (Bridging Visas, Serious Offenders and Other Measures) Act 2023 (C2023A00110)	110, 2023	7 Dec 2023	sch 2 (items 83-133): 8 Dec 2023 (s 2(1) item 1)	sch 2 (items 131-133)
National Security Legislation Amendment (Comprehensive Review and Other Measures No. 3) Act 2024 (C2024A00024)	24, 2024	21 May 2024	sch 3 (items 18, 19): 22 May 2024 (s 2(1) item 7)	—
Administrative Review Tribunal (Consequential and Transitional Provisions No. 2) Act 2024 (C2024A00039)	39, 2024	31 May 2024	sch 2 (items 164-243): 14 Oct 2024 (s 2(1) item 2)	—
Crimes and Other Legislation Amendment (Omnibus No. 1) Act 2024 (C2024A00093)	93, 2024	24 Oct 2024	sch 4 (items 58-161, 170-175), sch 5: 25 Oct 2024 (s 2(1) item 5)	sch 4 (items 170-175), sch 5 (items 194-196)
Security of Critical Infrastructure and Other Legislation Amendment (Enhanced Response and Prevention) Act 2024 (C2024A00100)	100, 2024	29 Nov 2024	sch 5 (items 58, 59, 69): 4 Apr 2025 (s 2(1) items 3, 7)	sch 5 (item 69)

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Telecommunications and Other Legislation Amendment Act 2025 (C2025A00053)	53, 2025	4 Nov 2025	sch 1 (items 4, 5), sch 2-4: 5 Nov 2025 (s 2(1) item 1)	sch 1 (item 5), sch 3 (item 11)
Criminal Code Amendment (State Sponsors of Terrorism) Act 2025 (C2025A00060)	60, 2025	6 Nov 2025	sch 2 (items 16-20), sch 3 (items 70, 71): 8 Nov 2025 (s 2(1) item 2)	—
Strengthening Oversight of the National Intelligence Community Act 2025 (C2025A00075)	75, 2025	4 Dec 2025	sch 1 (items 327-368), sch 5 (item 4): 4 June 2026 (s 2(1) items 2, 4)	sch 5 (item 4)
Combatting Antisemitism, Hate and Extremism (Firearms and Customs Laws) Act 2026 (C2026A00001)	1, 2026	21 Jan 2026	sch 2 (items 100-121): 22 Jan 2026 (s 2(1) item 3)	—
Combatting Antisemitism, Hate and Extremism (Criminal and Migration Laws) Act 2026 (C2026A00002)	2, 2026	21 Jan 2026	sch 1 (item 18): 22 Jan 2026 (s 2(1) item 1)	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Title.....	am No 63, 1985; No 102, 1986 (as am by No 28, 1991); No 40, 2006; No 78, 2021
Chapter 1	
Part I heading.....	rep No 40, 2006
Chapter 1 heading.....	ad No 40, 2006
Part 1-1	
Part 1-1 heading.....	ad No 40, 2006
s 1.....	am No 40, 2006
s 2.....	am No 161, 1999
s 3.....	rep No 89, 1987
s 4.....	rs No 145, 2015
s 4A.....	ad No 24, 2001
s 4B.....	ad No 33, 2016
	<u>(1) exp (s 4B(2))</u>
Part 1-2	
Part IA heading.....	ad No 89, 1987
	rep No 40, 2006
Part 1-2 heading.....	ad No 40, 2006
s 5.....	am No 181, 1979; No 102, 1986; No 89, 1987; No 120, 1987; No 121, 1988; No 63, 1989; No 11, 1990; No 28, 1991; No 99, 1991; No 103, 1993; No 170, 1994; No 141, 1995; No 59, 1997; No 160, 1997; No 89, 1999; No 146, 1999; No 151, 1999; No 161, 1999; No 9, 2000; No 63, 2000; No 55, 2001; No 135, 2001; No 166, 2001; No 67, 2002; No 125, 2002; No 113, 2003; No 55, 2004; No 127, 2004; No 95, 2005; No 100, 2005; No 129, 2005; No 152, 2005; No 40, 2006; No 86, 2006; No 177, 2007; No 95, 2008; No 32, 2009; No 2, 2010; No 3, 2010; No 8, 2010; No 50, 2010; No 2, 2011; No 4, 2011; No 74, 2012; No 120, 2012; No 194, 2012; No 74, 2013; No 103, 2013; No 108, 2014; No 39, 2015; No 41, 2015; No 153, 2015; No 82, 2016; No 86, 2016; No 95, 2016; No 31, 2018; No 34, 2018; No 37, 2018; No 126, 2018; No 148, 2018

Endnote 4—Amendment history

Provision affected	How affected
	ed C106
	am No 114, 2019; No 3, 2020; No 78, 2021; No 95, 2021; No 98, 2021; No 131, 2021; No 80, 2022; No 89, 2022; No 63, 2023; No 74, 2023; No 110, 2023; No 24, 2024; No 39, 2024; No 93, 2024; No 53, 2025; No 60, 2025; No 1, 2026
s 5AA	ad No 166, 2001
s 5AB	ad No 177, 2007
	am No 120, 2012
s 5AC	ad No 95, 2008
	am No 32, 2009; No 74, 2012; No 86, 2016; No 37, 2018; No 89, 2022; No 63, 2023; No 93, 2024
s 5AD	ad No 95, 2008
	am No 108, 2014
s 5AE	ad No 95, 2008
s 5A	ad No 89, 1987
	am No 103, 1993; No 78, 2021
s 5B	ad No 89, 1987
	am No 5, 1988; No 11, 1990; No 170, 1994; No 19, 1995; No 160, 1997; No 63, 2000; No 166, 2001; No 42, 2002; No 67, 2002; No 113, 2003; No 100, 2005; No 152, 2005; No 40, 2006; No 177, 2007; No 2, 2010; No 3, 2010; No 4, 2010; No 74, 2012; No 194, 2012; No 153, 2015; No 82, 2016; No 86, 2016; No 95, 2016; No 126, 2018; No 131, 2021; No 89, 2022; No 63, 2023; No 110, 2023; No 93, 2024; No 1, 2026
s 5C	ad No 89, 1987
	am No 40, 2006; No 39, 2015
s 5D	ad No 141, 1995

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 89, 1999; No 137, 2000; No 161, 2001; No 67, 2002; No 86, 2002; No 113, 2003; No 55, 2004; No 127, 2004; No 96, 2005; No 129, 2005; No 152, 2005; No 40, 2006; No 86, 2006; No 3, 2007; No 177, 2007; No 59, 2009; No 3, 2010; No 4, 2010; No 42, 2010; No 44, 2010; No 50, 2010; No 103, 2010; No 131, 2010; No 3, 2011; No 6, 2013; No 116, 2014; No 50, 2017; No 93, 2017; No 34, 2018; No 67, 2018; No 72, 2019; No 114, 2019; No 3, 2020; No 131, 2021; No 80, 2022; No 74, 2023; No 60, 2025; No 2, 2026
	ed C132
s 5E	ad No 40, 2006
s 5EA	ad No 120, 2012
	rep No 34, 2018
s 5F	ad No 40, 2006
	am No 177, 2007; No 23, 2008; No 2, 2010; No 78, 2021
s 5G	ad No 40, 2006
	am No 177, 2007; No 23, 2008; No 2, 2010; No 78, 2021
s 5H	ad No 40, 2006
s 6	am No 89, 1987; No 121, 1988; No 63, 1989; No 103, 1993; No 67, 2002; No 55, 2004; No 95, 2005; No 40, 2006; No 126, 2015; No 151, 2020; No 78, 2021
s 6AAA	ad No 2, 2010
s 6AA	ad No 40, 2006
s 6A	ad No 89, 1987
	am No 11, 1990; No 28, 1991; No 103, 1993; No 170, 1994; No 160, 1997; No 151, 1999; No 63, 2000; No 67, 2002; No 125, 2002; No 113, 2003; No 100, 2005; No 152, 2005; No 86, 2006; No 74, 2012; No 153, 2015; No 86, 2016; No 89, 2022; No 63, 2023; No 93, 2024
s 6B	ad No 89, 1987
s 6C	ad No 89, 1987
s 6D	ad No 89, 1987
	am No 120, 1987; No 65, 1988; No 31, 2018; No 78, 2021; No 89, 2022
s 6DA	ad No 160, 1997

Endnote 4—Amendment history

Provision affected	How affected
	am No 55, 2004; No 40, 2006; No 60, 2015; No 31, 2018; No 78, 2021; No 89, 2022; No 39, 2024
s 6DB	ad No 40, 2006
	am No 13, 2013; No 60, 2015; No 31, 2018; No 78, 2021; No 39, 2024
s 6DC	ad No 39, 2015
	am No 31, 2018; No 39, 2024
s 6E	ad No 89, 1987
	am No 120, 1987; No 66, 1988; No 103, 1993; No 148, 2004; No 152, 2005; No 40, 2006; No 2, 2010; No 78, 2021; No 53, 2025
s 6EA	ad No 141, 1995
	am No 40, 2006
s 6EAA	ad No 120, 2012
s 6EB.....	ad No 40, 2006
s 6F	ad No 89, 1987
s 6G.....	ad No 89, 1987
	am No 152, 2005
s 6H.....	ad No 89, 1987
	am No 160, 1997; No 63, 2000; No 67, 2002; No 40, 2006; No 120, 2012; No 82, 2016; No 131, 2021; No 110, 2023; No 39, 2024
s 6J	ad No 89, 1987
s 6K.....	ad No 89, 1987
	am No 160, 1997; Nos 67 and 86, 2002; Nos 95 and 129, 2005
s 6L	ad No 89, 1987
	am No 11, 1990; No 28, 1991; No 103, 1993; No 170, 1994; No 160, 1997; No 151, 1999; No 63, 2000; No 67, 2002; No 86, 2002; No 125, 2002; No 113, 2003; No 100, 2005; No 152, 2005; No 40, 2006; No 86, 2006; No 3, 2010; No 74, 2012; No 153, 2015; No 86, 2016; No 126, 2018; No 89, 2022; No 63, 2023; No 93, 2024
s 6M.....	ad No 89, 1987
s 6N.....	ad No 103, 1993
	am No 9, 2000

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 6P	ad No 63, 2000 am No 78, 2021
s 6Q	ad No 40, 2006
s 6R	ad No 177, 2007 am No 39, 2015; No 93, 2024; No 53, 2025
s 6S	ad No 194, 2012 am No 41, 2015; No 89, 2022
s 6T	ad No 82, 2016 rs No 131, 2021
s 6U	ad No 82, 2016 rs No 131, 2021
s 6UA	ad No 110, 2023
s 6UB	ad No 110, 2023
s 6V	ad No 53, 2023
Chapter 2	
Part II heading	am No 103, 1993 rep No 40, 2006
Chapter 2 heading	ad No 40, 2006
Part 2-1	
Part 2-1 heading	ad No 40, 2006
s 7	am No 181, 1979; No 114, 1983; No 63, 1985; No 102, 1986; No 89, 1987; No 121, 1988; No 63, 1989; No 28, 1991; No 103, 1993; No 141, 1995; No 43, 1996; No 160, 1997; No 161, 1999; No 127, 2004; No 148, 2004; No 152, 2005; No 40, 2006; No 177, 2007; No 2, 2010; No 108, 2014; No 82, 2016; No 148, 2018; No 78, 2021; No 98, 2021; No 131, 2021; No 110, 2023; No 39, 2024
s 7A	ad No 116, 1983 am No 6, 1984 rep No 89, 1987
s 7B	ad No 116, 1984 am No 8, 1985 rep No 89, 1987

Endnote 4—Amendment history

Provision affected	How affected
s 7BA	ad No 8, 1985 am No 63, 1985 rep No 89, 1987
s 7C	ad No 116, 1984 rep No 89, 1987
s 8.....	am No 181, 1979; No 89, 1987; No 65, 1988; No 121, 1988; No 99, 1991 rep No 103, 1993
Part IIA	ad No 120, 1987 rep No 103, 1993
s 8A, 8B	ad No 120, 1987 rep No 103, 1993
s 8C	ad No 120, 1987 am No 120, 1987 rep No 103, 1993
s 8D–8H	ad No 120, 1987 rep No 103, 1993
s 8J	ad No 120, 1987 am No 120, 1987 rep No 103, 1993
Part 2-2	
Part III heading	am No 103, 1993 rs No 161, 1999 rep No 40, 2006
Part 2-2 heading	ad No 40, 2006
s 9.....	am No 121, 1988; No 63, 1989; No 43, 1996; No 161, 1999; No 63, 2000; No 40, 2006; No 31, 2018
s 9A.....	ad No 63, 2000 am No 40, 2006; No 177, 2007; No 23, 2008; No 31, 2018
s 9B	ad No 63, 2000 am No 40, 2006; No 31, 2018

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 10.....	am No 43, 1996; No 161, 1999; No 63, 2000; No 128, 2005; No 40, 2006; No 31, 2018
s 11.....	am No 89, 1987; No 121, 1988; No 63, 1989; No 99, 1991 rep No 103, 1993
s 11A.....	ad No 102, 1986 am No 89, 1987; No 121, 1988; No 63, 1989; No 99, 1991; No 103, 1993; No 161, 1999; No 63, 2000; No 50, 2010; No 31, 2018; No 95, 2021
s 11B.....	ad No 63, 2000 am No 40, 2006; No 23, 2008; No 50, 2010; No 31, 2018; No 95, 2021
s 11C.....	ad No 63, 2000 am No 50, 2010; No 31, 2018; No 95, 2021
s 11D.....	ad No 63, 2000 am No 127, 2004; No 31, 2018; No 95, 2021
s 12.....	am No 102, 1986; No 43, 1996; No 161, 1999; No 63, 2000; No 40, 2006; No 108, 2014; No 31, 2022
s 13.....	am No 102, 1986; No 89, 1987; No 103, 1993; No 43, 1996; No 63, 2000; No 40, 2006; No 31, 2018
s 14.....	rs No 102, 1986 am No 89, 1987; No 103, 1993; No 161, 1999; No 63, 2000; No 40, 2006; No 95, 2021
s 15.....	am No 102, 1986; No 89, 1987; No 121, 1988; No 63, 1989 (as am by No 11, 1991); No 99, 1991; No 103, 1993; No 43, 1996; No 161, 1999; No 63, 2000; No 55, 2004; No 40, 2006; No 4, 2011; No 31, 2018; No 95, 2021
s 16.....	am No 102, 1986 rep No 89, 1987 ad No 63, 2000 am No 40, 2006; No 23, 2008; No 4, 2011
s 17.....	am No 102, 1986; No 89, 1987; No 28, 1991; No 103, 1993; No 161, 1999; No 63, 2000; No 40, 2006; No 31, 2018
s 18.....	ad No 103, 1993

Endnote 4—Amendment history

Provision affected	How affected
	am No 161, 1999; No 55, 2001; No 2, 2010; No 108, 2014 ed C93
Part IV heading.....	am No 181, 1979; No 89, 1987 rep No 103, 1993
Part IV.....	rep No 103, 1993
s 18, 19.....	rep No 89, 1987
s 20.....	am No 181, 1979 rep No 89, 1987
s 20A, 20B	ad No 89, 1987 am No 121, 1988; No 99, 1991 rep No 103, 1993
s 21.....	am No 181, 1979; No 89, 1987; No 121, 1988; No 63, 1989; No 99, 1991 rep No 103, 1993
s 22.....	am No 181, 1979 rep No 89, 1987
s 23.....	am No 181, 1979 rs No 89, 1987 rep No 103, 1993
s 24.....	am No 181, 1979 rep No 89, 1987
s 25.....	am No 181, 1979; No 89, 1987; No 63, 1989; No 99, 1991 rep No 103, 1993
s 25A.....	ad No 63, 1985 rep No 89, 1987
s 26.....	rep No 89, 1987
s 27.....	am No 181, 1979 rep No 89, 1987
s 28.....	rep No 89, 1987
Part 2-3	
Part V heading	am No 121, 1988

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rs No 67, 2002
	rep No 40, 2006
Part 2-3 heading.....	ad No 40, 2006
Part V	ad No 63, 1985
s 29.....	ad No 63, 1985
	rep No 89, 1987
s 30.....	ad No 63, 1985
	am No 89, 1987; No 121, 1988; No 63, 1989
Part 2-4	
Part 2-4	ad No 177, 2007
s 31.....	ad No 63, 1985
	rep No 89, 1987
	ad No 177, 2007
	am No 31, 2018; No 148, 2018; No 53, 2025
s 31A.....	ad No 177, 2007
	am No 31, 2018; No 148, 2018; No 53, 2025
s 31AA.....	ad No 148, 2018
s 31AB	ad No 53, 2025
s 31B	ad No 177, 2007
s 31C	ad No 177, 2007
	am No 53, 2025
s 31D.....	ad No 177, 2007
	am No 31, 2018
s 31E	ad No 148, 2018
Part 2-5	
Part VI heading.....	rs No 67, 2002
	rep No 40, 2006
Part 2-5 heading.....	ad No 40, 2006
Part VI.....	ad No 89, 1987
Division 1	rep No 40, 2006
s 32.....	ad No 89, 1987

Endnote 4—Amendment history

Provision affected	How affected
	rep No 40, 2006
s 33.....	ad No 89, 1987
	rs No 103, 1993
	am No 67, 2002
	rep No 40, 2006
Division 2	
s 34.....	ad No 89, 1987
	am No 3, 1995; No 152, 2005; No 82, 2016; No 131, 2021; No 110, 2023
s 35.....	ad No 89, 1987
	am No 121, 1988; No 63, 1989; No 11, 1990; No 28, 1991; No 63, 2000; No 135, 2001; No 125, 2002; No 40, 2006; No 23, 2008; No 32, 2009; Nos 2 and 8, 2010; No 74, 2012; No 82, 2016
s 36.....	ad No 89, 1987
	am No 99, 1988
	rep No 152, 2005
	ad No 23, 2008
s 37.....	ad No 89, 1987
s 38.....	ad No 89, 1987
s 38A.....	ad No 82, 2016
	am No 131, 2021
	ed C114
s 38B.....	ad No 110, 2023
Division 3	
s 39.....	ad No 89, 1987
	am No 11, 1990; No 28, 1991; No 103, 1993; No 160, 1997; No 151, 1999; No 63, 2000; No 67, 2002; No 125, 2002; No 113, 2003; No 100, 2005; No 152, 2005; No 86, 2006; No 95, 2008; No 74, 2012; No 103, 2013; No 153, 2015; No 86, 2016; No 89, 2022; No 63, 2023; No 39, 2024; No 93, 2024
s 40, 41.....	ad No 89, 1987
s 42.....	ad No 89, 1987

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 63, 2000; No 40, 2006; No 23, 2008
s 43.....	ad No 89, 1987
	am No 160, 1997; No 39, 2024
s 44.....	ad No 89, 1987 (as am by No 11, 1991)
	am No 160, 1997; No 39, 2024
s 44A.....	ad No 74, 2012
	am No 82, 2016; No 131, 2021; No 63, 2023; No 110, 2023; No 39, 2024
s 45.....	ad No 89, 1987
	am No 160, 1997; No 63, 2000
	rep No 40, 2006
	ad No 32, 2009
	am No 74, 2012; No 82, 2016; No 131, 2021; No 63, 2023; No 110, 2023; No 39, 2024
s 45A.....	ad No 63, 2000
	rep No 40, 2006
	ad No 32, 2009
	rs No 74, 2012
Division 4	
s 46.....	ad No 89, 1987
	am No 160, 1997; No 63, 2000; No 40, 2006; No 32, 2009; No 74, 2012; No 82, 2016; No 131, 2021; No 110, 2023; No 39, 2024; No 60, 2025
s 46A.....	ad No 63, 2000
	am No 40, 2006; No 23, 2008; No 32, 2009; No 74, 2012; No 82, 2016; No 131, 2021; No 110, 2023; No 39, 2024; No 60, 2025
s 47.....	ad No 89, 1987
	am No 121, 1988
	rs No 63, 1989
	am No 103, 1993; Nos 9 and 63, 2000; No 67, 2002; No 40, 2006
	rs No 40, 2006
	am No 4, 2011

Endnote 4—Amendment history

Provision affected	How affected
s 48.....	ad No 89, 1987 am No 121, 1988; No 63, 1989; No 28, 1991; No 160, 1997; No 63, 2000; No 67, 2002; No 40, 2006; No 82, 2016; No 131, 2021; No 110, 2023; No 39, 2024
s 49.....	ad No 89, 1987 am No 160, 1997; No 63, 2000; No 67, 2002; No 40, 2006; No 82, 2016; No 131, 2021; No 110, 2023; No 39, 2024
s 50.....	ad No 89, 1987 am No 11, 1990; No 160, 1997; No 39, 2024
s 51.....	ad No 89, 1987 am No 160, 1997; No 39, 2024
s 52.....	ad No 89, 1987 am No 103, 1993; No 160, 1997; No 63, 2000; No 40, 2006; No 23, 2008; No 4, 2011; No 39, 2024
s 53.....	ad No 89, 1987 am No 103, 1993; No 160, 1997; No 63, 2000; No 40, 2006 rep No 23, 2008
s 54.....	ad No 89, 1987 rs No 103, 1993 am No 63, 2000; No 67, 2002; No 40, 2006 rs No 40, 2006
s 55.....	ad No 89, 1987 am No 11, 1990 rs No 103, 1993 am No 160, 1997; No 63, 2000; No 55, 2004; No 40, 2006; No 4, 2011; No 108, 2014
s 56.....	ad No 89, 1987 am No 103, 1993; No 63, 2000 rep No 40, 2006
s 57.....	ad No 89, 1987 am No 103, 1993; No 63, 2000; No 40, 2006; No 23, 2008; No 4, 2011; No 82, 2016; No 131, 2021; No 110, 2023

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 58.....	ad No 89, 1987 am No 63, 2000; No 67, 2002; No 40, 2006; No 4, 2011
s 59.....	ad No 89, 1987 am No 40, 2006; No 4, 2011
s 59A.....	ad No 23, 2008
s 59B.....	ad No 82, 2016 rs No 131, 2021 am No 75, 2025
s 59C.....	ad No 110, 2023 am No 75, 2025
s 60.....	ad No 89, 1987 rs No 63, 1989 am No 28, 1991; No 103, 1993; No 63, 2000; No 67, 2002; No 55, 2004; No 40, 2006; No 23, 2008; No 4, 2011
s 61.....	ad No 89, 1987 am No 121, 1988; No 63, 1989; No 103, 1993; No 63, 2000; No 55, 2001; No 67, 2002; No 40, 2006; No 177, 2007; No 4, 2011
s 61A.....	ad No 66, 1988 am No 103, 1993
Part 2-6	
Part VII heading.....	rep No 40, 2006
Part 2-6 heading.....	ad No 40, 2006
Part VII.....	ad No 89, 1987
s 62.....	ad No 89, 1987
s 63.....	ad No 89, 1987 am No 121, 1988; No 63, 1989 (as am by No 11, 1991); No 141, 1995; No 40, 2006; No 82, 2016
s 63AA.....	ad No 141, 1995 am No 40, 2006
s 63AB.....	ad No 148, 2018 am No 95, 2021; No 98, 2021; No 89, 2022; No 73, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 63AC	ad No 148, 2018 am No 95, 2021; No 98, 2021
s 63AD	ad No 98, 2021
s 63AE	ad No 98, 2021 am No 53, 2025
s 63A	ad No 120, 1987 am No 103, 1993
s 63B	ad No 63, 1989 am No 141, 1995; No 40, 2006; No 148, 2018
s 63C–63E	ad No 2, 2010
s 64	ad No 89, 1987 am No 141, 1995; No 161, 1999; No 63, 2000; No 40, 2006; No 4, 2011; No 108, 2014; No 39, 2015; No 148, 2018; No 73, 2023
s 64A	ad No 73, 2023
s 65	ad No 89, 1987 am No 141, 1995; No 161, 1999; No 63, 2000; No 77, 2003; No 40, 2006; No 4, 2011; No 31, 2018; No 148, 2018; No 95, 2021; No 51, 2023
s 65A	ad No 120, 1987 am Nos 66 and 121, 1988; No 63, 1989 rs No 103, 1993 am No 141, 1995; No 63, 2000; No 40, 2006 rs No 82, 2016 am No 148, 2018; No 131, 2021; No 110, 2023
s 66	ad No 89, 1987 am No 4, 2011
s 67	ad No 89, 1987 am No 141, 1995; No 160, 1997; No 63, 2000; No 166, 2001; No 40, 2006; No 4, 2011; No 82, 2016; No 148, 2018; No 3, 2020; No 98, 2021; No 131, 2021; No 89, 2022; No 110, 2023; No 1, 2026
s 68	ad No 89, 1987

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 170, 1994; No 141, 1995; No 160, 1997; No 151, 1999; No 63, 2000; No 166, 2001; No 67, 2002; No 113, 2003; No 100, 2005; No 152, 2005; No 40, 2006; No 86, 2006; No 3, 2010; No 2, 2011; No 7, 2012; No 74, 2012; No 194, 2012; No 41, 2015; No 153, 2015; No 86, 2016; No 31, 2018; No 34, 2018; No 37, 2018; No 126, 2018; No 148, 2018; No 3, 2020; No 98, 2021; No 89, 2022; No 63, 2023; No 93, 2024; No 1, 2026
s 68A.....	ad No 7, 2012
	am No 31, 2018
	rs No 34, 2018
s 69.....	ad No 89, 1987
s 70.....	ad No 89, 1987
	am No 40, 2006
s 71.....	ad No 89, 1987
	am No 135, 2001; No 125, 2002; No 86, 2006; No 31, 2018; No 89, 2022
s 72.....	ad No 89, 1987
	am No 120, 1987; No 63, 1989; No 2, 2010
s 73.....	ad No 89, 1987
	am No 120, 1987; No 63, 1989; No 28, 1991; No 2, 2010; No 73, 2023; No 1, 2026
s 74.....	ad No 89, 1987
	am No 141, 1995; No 63, 2000; No 40, 2006; No 148, 2018; No 98, 2021
s 75.....	ad No 89, 1987
	am No 63, 2000; No 148, 2018; No 98, 2021
s 75A.....	ad No 63, 2000
s 76.....	ad No 89, 1987
	am No 141, 1995; No 40, 2006
s 76A.....	ad No 141, 1995
	am No 40, 2006
s 77.....	ad No 89, 1987

Endnote 4—Amendment history

Provision affected	How affected
	am No 120, 1987; No 103, 1993; No 141, 1995; No 63, 2000; No 40, 2006; No 148, 2018; No 98, 2021
s 78.....	ad No 89, 1987
	am No 40, 2006
s 79.....	ad No 89, 1987
	am No 103, 1993; No 141, 1995; No 40, 2006; No 2, 2010; No 82, 2016
s 79AA.....	ad No 82, 2016
	am No 131, 2021
s 79AB.....	ad No 110, 2023
s 79A.....	ad No 2, 2010
Part 2-7	
Part VIII heading.....	rep No 40, 2006
Part 2-7 heading.....	ad No 40, 2006
	rs No 40, 2006
Part VIII.....	ad No 89, 1987
s 80.....	ad No 89, 1987
	am No 65, 1988; No 103, 1993; No 63, 2000; No 135, 2001; No 125, 2002; No 40, 2006
	rs No 40, 2006
	am No 23, 2008; No 8, 2010; No 82, 2016
s 81.....	ad No 89, 1987
	am No 65, 1988; No 28, 1991; No 103, 1993; No 160, 1997; No 63, 2000; No 135, 2001; No 125, 2002; No 40, 2006
	rs No 40, 2006
	am No 2, 2010; No 4, 2011; No 82, 2016
	ed C92
s 81AA.....	ad No 4, 2011
s 81A.....	ad No 103, 1993
	am No 141, 1995; No 160, 1997; No 63, 2000; No 67, 2002; No 40, 2006; No 82, 2016; No 131, 2021; No 110, 2023; No 39, 2024
s 81B.....	ad No 103, 1993

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 141, 1995; No 40, 2006
s 81C	ad No 141, 1995
	am No 160, 1997; No 63, 2000; No 67, 2002; No 40, 2006; No 82, 2016; No 131, 2021; No 110, 2023; No 39, 2024
s 81D	ad No 141, 1995
	am No 40, 2006
s 81E	ad No 141, 1995
	am No 40, 2006
s 82	ad No 89, 1987
	am No 103, 1993; No 141, 1995
	rep No 40, 2006
s 83	ad No 89, 1987
	am No 82, 2016; No 148, 2018; No 131, 2021; No 110, 2023; No 75, 2025
s 84	ad No 89, 1987
	am No 95, 2005; No 40, 2006; No 82, 2016; No 148, 2018; No 75, 2025
s 85	ad No 89, 1987
	rs No 82, 2016
	am No 110, 2023
s 85A	ad No 82, 2016
	am No 131, 2021
s 85B	ad No 110, 2023
s 86	ad No 89, 1987
	am No 40, 2006
s 87	ad No 89, 1987
	am No 39, 2015
s 88	ad No 89, 1987
s 89	ad No 89, 1987
s 90	ad No 89, 1987
s 91	ad No 89, 1987

Endnote 4—Amendment history

Provision affected	How affected
s 92.....	ad No 89, 1987 am No 40, 2006
s 92A.....	ad No 103, 1993 am No 75, 2025
Part 2-8	
Part IX heading.....	am No 103, 1993 rep No 40, 2006
Part 2-8 heading.....	ad No 40, 2006
Part IX.....	ad No 89, 1987
Division 1	
s 93.....	ad No 89, 1987 am No 63, 1989; No 40, 2006
s 94.....	ad No 89, 1987 am No 28, 1991; No 103, 1993; No 141, 1995; No 63, 2000; No 40, 2006; No 23, 2008; No 7, 2012
s 94A.....	ad No 160, 1997 am No 40, 2006; No 39, 2024
s 94B.....	ad No 63, 2000
s 95.....	ad No 89, 1987 am No 166, 2001
s 96.....	ad No 89, 1987 am No 103, 1993
s 97.....	ad No 89, 1987 am No 121, 1988; No 63, 1989; No 103, 1993; No 63, 2000; No 40, 2006; No 95, 2008
s 98.....	rep No 103, 1993
Division 2	
s 99.....	ad No 89, 1987 am No 40, 2006
s 100.....	ad No 89, 1987 am No 103, 1993; No 95, 2005; No 40, 2006; No 23, 2008

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 101.....	ad No 89, 1987 am No 103, 1993; No 40, 2006
s 102.....	ad No 89, 1987 am No 141, 1995; No 166, 2001; No 40, 2006
s 102A.....	ad No 103, 1993
s 102B.....	ad No 7, 2012 rs No 34, 2018
s 103.....	ad No 89, 1987 rs No 103, 1993 am No 141, 1995; No 160, 1997; No 63, 2000; No 95, 2005; No 40, 2006; No 4, 2011; No 82, 2016; No 39, 2024
s 103A.....	ad No 160, 1997 rep No 39, 2024
s 103B.....	ad No 82, 2016 am No 131, 2021; No 110, 2023
Division 3	
s 104.....	ad No 89, 1987 am No 103, 1993; No 40, 2006
Part 2-9	
Part X heading	rep No 40, 2006
Part 2-9 heading.....	ad No 40, 2006
Part X.....	ad No 89, 1987
s 105.....	ad No 89, 1987 am No 103, 1993; No 120, 2012; No 31, 2018
s 106.....	ad No 89, 1987 am No 103, 1993; No 24, 2001
s 107.....	ad No 89, 1987 am No 103, 1993; No 24, 2001; No 40, 2006
Part 2-10	
Part XA heading	rep No 40, 2006
Part 2-10 heading.....	ad No 40, 2006

Endnote 4—Amendment history

Provision affected	How affected
Part XA	ad No 141, 1995
s 107A–107F	ad No 141, 1995
Chapter 3	
Chapter 3 heading	rs No 120, 2012
Chapter 3	ad No 40, 2006
Part 3-1A	
Part 3-1A	ad No 120, 2012
Division 1	
s 107G	ad No 120, 2012 am No 39, 2015; No 34, 2018; No 75, 2025
Division 2	
s 107H	ad No 120, 2012
s 107J	ad No 120, 2012 am No 39, 2015
s 107K	ad No 120, 2012
s 107L	ad No 120, 2012 am No 39, 2015
s 107M	ad No 120, 2012 am No 39, 2015
Division 3	
s 107N	ad No 120, 2012
s 107P	ad No 120, 2012 am No 31, 2018 rs No 34, 2018
s 107Q	ad No 120, 2012 am No 31, 2018; No 34, 2018
s 107R	ad No 120, 2012 am No 31, 2018; No 34, 2018
s 107S	ad No 120, 2012
Division 4	
s 107T	ad No 120, 2012

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 107U.....	ad No 120, 2012
s 107V.....	ad No 120, 2012
s 107W.....	ad No 120, 2012
Part 3-1	
s 108.....	ad No 40, 2006 am No 120, 2012; No 108, 2014; No 148, 2018; No 78, 2021; No 98, 2021 ed C113 am No 53, 2025
Part 3-2	
s 109.....	ad No 40, 2006
Part 3-3	
Part 3-3 heading.....	rs No 39, 2015
Division 1	
s 110.....	ad No 40, 2006 am No 39, 2015
s 110A.....	ad No 39, 2015 am No 41, 2015; No 153, 2015; No 86, 2016; No 89, 2022; No 63, 2023; No 93, 2024
s 110B.....	ad No 41, 2015
s 111.....	ad No 40, 2006 am No 39, 2015
s 112.....	ad No 40, 2006
s 113.....	ad No 40, 2006
s 114.....	ad No 40, 2006
s 115.....	ad No 40, 2006
Division 2	
s 116.....	ad No 40, 2006 am No 4, 2011; No 120, 2012; No 39, 2015; No 34, 2018
s 117.....	ad No 40, 2006
s 118.....	ad No 40, 2006

Endnote 4—Amendment history

Provision affected	How affected
	am No 120, 2012
s 119.....	ad No 40, 2006
Division 3	
s 120.....	ad No 40, 2006
	am No 39, 2015
s 121.....	ad No 40, 2006
	am No 4, 2011
s 122.....	ad No 40, 2006
	am No 39, 2015
s 123.....	ad No 40, 2006
	am No 95, 2008; No 4, 2011; No 39, 2015
s 124.....	ad No 40, 2006
	am No 4, 2011
Division 4	
s 125.....	ad No 40, 2006
s 126.....	ad No 40, 2006
	am No 4, 2011
s 127.....	ad No 40, 2006
	am No 4, 2011; No 39, 2015
s 128.....	ad No 40, 2006
	am No 39, 2015
s 129.....	ad No 40, 2006
	am No 2, 2010
s 130.....	ad No 40, 2006
	am No 39, 2015
	ed C93
s 131.....	ad No 40, 2006
	am No 39, 2015
s 132.....	ad No 40, 2006

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Part 3-4	
Division 1	
Division 1 heading.....	rs No 120, 2012
s 133.....	ad No 40, 2006
	am No 120, 2012; No 82, 2016
Division 2	
s 134.....	ad No 40, 2006
	rs No 120, 2012
	am No 39, 2015
s 135.....	ad No 40, 2006
	am No 120, 2012; No 39, 2015
s 136.....	ad No 40, 2006
	am No 120, 2012; No 108, 2014
s 137.....	ad No 40, 2006
	am No 4, 2011; No 120, 2012; No 31, 2018; No 95, 2021; No 51, 2023
s 138.....	ad No 40, 2006
	am No 120, 2012; No 39, 2015
s 139.....	ad No 40, 2006
	am No 177, 2007; No 7, 2012; No 120, 2012; No 194, 2012; No 39, 2015; No 82, 2016; No 95, 2016; No 34, 2018; No 131, 2021; No 1, 2026
s 139AA.....	ad No 73, 2023
s 139A.....	ad No 194, 2012
	am No 82, 2016; No 95, 2016; No 131, 2021
s 139B.....	ad No 82, 2016
	am No 95, 2016
	rs No 131, 2021
	am No 110, 2023
s 139C.....	ad No 95, 2016
	am No 95, 2016

Endnote 4—Amendment history

Provision affected	How affected
	rep No 131, 2021
s 140.....	ad No 40, 2006
	am No 86, 2006; No 31, 2018; No 89, 2022
s 141.....	ad No 40, 2006
s 142.....	ad No 40, 2006
	am No 194, 2012; No 82, 2016; No 95, 2016; No 131, 2021; No 73, 2023; No 1, 2026
s 142A.....	ad No 120, 2012
	am No 31, 2018
	rs No 34, 2018
s 143.....	ad No 40, 2006
s 144.....	ad No 40, 2006
s 145.....	ad No 40, 2006
s 146.....	ad No 40, 2006
	am No 120, 2012
Division 3	
s 147–149.....	ad No 40, 2006
Division 4	
s 150.....	ad No 40, 2006
	am No 194, 2012; No 39, 2015; No 82, 2016; No 95, 2016; No 131, 2021
Part 3-5	
Part 3-5 heading.....	rs No 120, 2012; No 39, 2015
Division 1	
Division 1 heading.....	rs No 120, 2012; No 39, 2015
Division 1	rs No 39, 2015
s 150A.....	ad No 120, 2012
	rep No 39, 2015
s 151.....	ad No 40, 2006
	rs No 39, 2015
	am No 34, 2018; No 75, 2025

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 2	
Division 2 heading.....	rs No 120, 2012 rep No 39, 2015
Division 2	rep No 39, 2015
s 152.....	ad No 40, 2006 am No 120, 2012 rep No 39, 2015
s 153.....	ad No 40, 2006 am No 120, 2012 rep No 39, 2015
s 154.....	ad No 40, 2006 rep No 39, 2015
s 155.....	ad No 40, 2006 rep No 39, 2015
s 156.....	ad No 40, 2006 rep No 39, 2015
s 157.....	ad No 40, 2006 rep No 39, 2015
s 158.....	ad No 40, 2006 rep No 39, 2015
Division 3	
Division 3	ad No 120, 2012
s 158A.....	ad No 120, 2012
Part 3-6	
Division 1	
s 159.....	ad No 40, 2006 am No 7, 2012; No 39, 2015
s 160.....	ad No 40, 2006 am No 39, 2015
Division 2	
s 161.....	ad No 40, 2006

Endnote 4—Amendment history

Provision affected	How affected
s 161A.....	ad No 120, 2012 am No 39, 2015
s 162.....	ad No 40, 2006 am No 120, 2012; No 39, 2015; No 34, 2018
s 163.....	ad No 40, 2006 am No 39, 2015
s 163A.....	am No 7, 2012 rs No 34, 2018
Division 3	
s 164.....	ad No 40, 2006
Part 3-7	
s 165.....	ad No 40, 2006
s 166.....	ad No 40, 2006
s 167.....	ad No 40, 2006
s 168.....	ad No 40, 2006
s 169.....	ad No 40, 2006
s 170.....	ad No 40, 2006
Chapter 4	
Chapter 4.....	ad No 177, 2007
Part 4-1	
Division 1	
s 171.....	ad No 177, 2007 am No 120, 2012
Division 2	
s 172.....	ad No 177, 2007 am No 120, 2012
s 173.....	ad No 177, 2007
Division 3	
s 174.....	ad No 177, 2007 am No 108, 2014
s 175.....	ad No 177, 2007

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 108, 2014
s 176.....	ad No 177, 2007
	am No 108, 2014; No 39, 2015; No 31, 2018
Division 4	
s 176A.....	ad No 39, 2015
	am No 41, 2015
s 177.....	ad No 177, 2007
s 178.....	ad No 177, 2007
	am No 1, 2026
s 178A.....	ad No 4, 2011
s 179.....	ad No 177, 2007
s 180.....	ad No 177, 2007
	am No 120, 2012; No 39, 2015; No 1, 2026
Division 4A	
Division 4A.....	ad No 120, 2012
Subdivision A	
s 180A.....	ad No 120, 2012
	am No 34, 2018
s 180B.....	ad No 120, 2012
	am No 31, 2018; No 34, 2018
Subdivision B	
s 180C.....	ad No 120, 2012
	am No 34, 2018
s 180D.....	ad No 120, 2012
	am No 95, 2016; No 131, 2021; No 110, 2023
Subdivision C	
Subdivision C heading.....	rs No 34, 2018
s 180E.....	ad No 120, 2012
	am No 31, 2018; No 34, 2018
Division 4B	
Division 4B.....	ad No 120, 2012

Endnote 4—Amendment history

Provision affected	How affected
s 180F	ad No 120, 2012 am No 39, 2015
Division 4C	
Division 4C.....	ad No 39, 2015
Subdivision A	
s 180G.....	ad No 39, 2015
s 180H.....	ad No 39, 2015
Subdivision B	
s 180J	ad No 39, 2015 am No 31, 2018
s 180K.....	ad No 39, 2015 am No 31, 2018
s 180L	ad No 39, 2015 am No 31, 2018
s 180M	ad No 39, 2015 am No 31, 2018
s 180N.....	ad No 39, 2015 am No 31, 2018
s 180P	ad No 39, 2015 am No 31, 2018
Subdivision C	
s 180Q.....	ad No 39, 2015
s 180R.....	ad No 39, 2015
s 180S	ad No 39, 2015
s 180T	ad No 39, 2015
s 180U.....	ad No 39, 2015
s 180V	ad No 39, 2015
s 180W	ad No 39, 2015
Subdivision D	
s 180X.....	ad No 39, 2015 am No 31, 2018

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 5	
s 181.....	ad No 177, 2007 am No 120, 2012
Division 6	
Division 6 heading.....	rs No 120, 2012
s 181A.....	ad No 120, 2012 am No 39, 2015; No 73, 2023; No 1, 2026
s 181B.....	ad No 120, 2012 am No 39, 2015; No 95, 2016; No 131, 2021; No 73, 2023; No 110, 2023; No 1, 2026
s 182.....	ad No 177, 2007 am No 4, 2011; No 120, 2012; No 39, 2015; No 95, 2016; No 131, 2021; No 73, 2023; No 110, 2023; No 1, 2026
s 182A.....	ad No 39, 2015
s 182B.....	ad No 39, 2015 am No 95, 2016; No 131, 2021; No 73, 2023; No 110, 2023; No 1, 2026
Part 4-2	
s 183.....	ad No 177, 2007 am No 51, 2010; No 120, 2012; No 93, 2024
s 184.....	ad No 177, 2007 am No 120, 2012; No 108, 2014
s 185.....	ad No 177, 2007 am No 120, 2012; No 39, 2015
s 185A.....	ad No 2, 2010
s 185B.....	ad No 2, 2010 am No 108, 2014 ed C93
s 185C.....	ad No 2, 2010
s 185D.....	ad No 39, 2015 am No 31, 2018; No 75, 2025

Endnote 4—Amendment history

Provision affected	How affected
s 185E	ad No 39, 2015
s 186.....	ad No 177, 2007
	am No 4, 2011; No 120, 2012; No 39, 2015
s 186A.....	ad No 39, 2015
	am No 75, 2025
Chapter 4A	
Chapter 4A.....	ad No 39, 2015
s 186B.....	ad No 39, 2015
	am No 148, 2018; No 75, 2025
s 186C.....	ad No 39, 2015
s 186D.....	ad No 39, 2015
s 186E	ad No 39, 2015
s 186F	ad No 39, 2015
	am No 75, 2025
s 186G.....	ad No 39, 2015
s 186H.....	ad No 39, 2015
s 186J	ad No 39, 2015
Chapter 5	
Chapter 5 heading.....	rs No 4, 2011
Chapter 5.....	ad No 177, 2007
Part 5-1	
s 187.....	ad No 177, 2007
Part 5-1A	
Part 5-1A.....	ad No 39, 2015
Division 1	
s 187A.....	ad No 39, 2015
	am No 77, 2021
s 187AA.....	ad No 39, 2015
s 187B.....	ad No 39, 2015
	am No 93, 2024
s 187BA	ad No 39, 2015

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 187C	ad No 39, 2015
Division 2	
s 187D	ad No 39, 2015
s 187E	ad No 39, 2015
	am No 93, 2024
s 187F	ad No 39, 2015
	am No 93, 2024
s 187G	ad No 39, 2015
	am No 93, 2024
s 187H	ad No 39, 2015
	am No 93, 2024
s 187J	ad No 39, 2015
	am No 93, 2024
Division 3	
s 187K	ad No 39, 2015
	am No 93, 2024
s 187KA	ad No 39, 2015
	am No 93, 2024
Division 4	
s 187KB	ad No 39, 2015
s 187L	ad No 39, 2015
	am No 93, 2024
s 187LA	ad No 39, 2015
s 187M	ad No 39, 2015
s 187N	ad No 39, 2015
	am No 148, 2018; No 124, 2019
s 187P	ad No 39, 2015
Part 5-2	
s 188	ad No 177, 2007
	am No 93, 2024

Endnote 4—Amendment history

Provision affected	How affected
Part 5-3	
Division 1	
s 189–191.....	ad No 177, 2007
Division 2	
s 192.....	ad No 177, 2007 am No 93, 2024
s 193.....	ad No 177, 2007
Part 5-4	
s 194.....	ad No 177, 2007 rep No 4, 2011
s 195.....	ad No 177, 2007
s 196.....	ad No 177, 2007 am No 93, 2024
s 197.....	ad No 177, 2007 am No 4, 2011; No 93, 2024
s 198.....	ad No 177, 2007 am No 93, 2024
s 199.....	ad No 177, 2007 am No 93, 2024
s 200.....	ad No 177, 2007
s 201.....	ad No 177, 2007 am No 93, 2024
s 202.....	ad No 177, 2007 am No 93, 2024
Part 5-4A	
Part 5-4A.....	ad No 4, 2011
s 202A.....	ad No 4, 2011 am No 111, 2017; No 93, 2024; No 100, 2024
s 202B.....	ad No 4, 2011 am No 111, 2017; No 93, 2024; No 100, 2024
s 202C.....	ad No 4, 2011

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 93, 2024
Part 5-5	
s 203.....	ad No 177, 2007
	am No 46, 2011; No 93, 2024
s 204, 205.....	ad No 177, 2007
Part 5-6	
Division 1	
s 206.....	ad No 177, 2007
Division 2	
s 207.....	ad No 177, 2007
Division 3	
s 208.....	ad No 177, 2007
s 209.....	ad No 177, 2007
s 210.....	ad No 177, 2007
s 211.....	ad No 177, 2007
Chapter 6	
Part XI heading.....	rep No 40, 2006
Chapter 5 heading.....	ad No 40, 2006
	rep No 177, 2007
Chapter 6 heading.....	ad No 177, 2007
	rs No 82, 2016
Part XI.....	ad No 89, 1987
Part 6-1	
Part 5-1 heading.....	ad No 40, 2006
	rep No 177, 2007
Part 6-1 heading.....	ad No 177, 2007
	rs No 82, 2016
s 298.....	ad No 82, 2016
s 299.....	ad No 82, 2016
s 299A.....	ad No 78, 2021

Endnote 4—Amendment history

Provision affected	How affected
s 108.....	ad No 89, 1987
renum s 300	No 40, 2006
Schedule 1	
Schedule 1.....	ad No 78, 2021
Part 1	
cl 1	ad No 78, 2021
	am No 131, 2021
cl 2	ad No 78, 2021
	ed C111
	am No 131, 2021; No 89, 2022; No 39, 2024
cl 3	ad No 78, 2021
cl 3A	ad No 78, 2021
cl 3B.....	ad No 78, 2021
cl 3C.....	ad No 78, 2021
cl 4	ad No 78, 2021
cl 5	ad No 78, 2021
cl 6	ad No 78, 2021
cl 7	ad No 78, 2021
cl 8	ad No 78, 2021
cl 9	ad No 78, 2021
cl 10	ad No 78, 2021
cl 10A	ad No 78, 2021
cl 11	ad No 78, 2021
cl 12	ad No 78, 2021
cl 13	ad No 78, 2021
cl 14	ad No 78, 2021
	am No 89, 2022
cl 15	ad No 78, 2021
	am No 89, 2022; No 39, 2024
cl 16	ad No 78, 2021
	am No 39, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
cl 17	ad No 78, 2021 am No 39, 2024
cl 17A	ad No 78, 2021
cl 18	ad No 78, 2021
cl 19	ad No 78, 2021
cl 20	ad No 78, 2021
Part 2	
Division 1	
cl 21	ad No 78, 2021
Division 2	
Subdivision A	
cl 22	ad No 78, 2021 am No 89, 2022; No 63, 2023; No 39, 2024; No 93, 2024
cl 23	ad No 78, 2021
cl 24	ad No 78, 2021
cl 25	ad No 78, 2021
cl 26	ad No 78, 2021 am No 39, 2024
cl 27	ad No 78, 2021 am No 39, 2024
cl 28	ad No 78, 2021 am No 39, 2024
cl 29	ad No 78, 2021 am No 39, 2024
Subdivision B	
cl 30	ad No 78, 2021 am No 39, 2024; No 53, 2025
cl 31	ad No 78, 2021 am No 39, 2024
cl 32	ad No 78, 2021

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
Subdivision A	
cl 33	ad No 78, 2021
cl 34	ad No 78, 2021
cl 35	ad No 78, 2021
cl 36	ad No 78, 2021
cl 37	ad No 78, 2021
cl 38	ad No 78, 2021
Subdivision B	
cl 39	ad No 78, 2021
cl 40	ad No 78, 2021
cl 41	ad No 78, 2021
Division 4	
Subdivision A	
cl 42	ad No 78, 2021
cl 43	ad No 78, 2021
cl 44	ad No 78, 2021
cl 45	ad No 78, 2021
cl 46	ad No 78, 2021
cl 47	ad No 78, 2021
Subdivision B	
cl 48	ad No 78, 2021
cl 49	ad No 78, 2021
cl 50	ad No 78, 2021
Part 3	
Part 3 heading	am No 131, 2021
Division 1	
cl 51	ad No 78, 2021
	am No 131, 2021; No 75, 2025
Division 2	
Division 2 heading.....	am No 131, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision A	
cl 52	ad No 78, 2021 am No 131, 2021; No 89, 2022; No 39, 2024
cl 53	ad No 78, 2021 am No 131, 2021
cl 54	ad No 78, 2021 am No 131, 2021
cl 55	ad No 78, 2021 am No 131, 2021
cl 56	ad No 78, 2021 am No 131, 2021; No 39, 2024
cl 57	ad No 78, 2021 am No 39, 2024
cl 58	ad No 78, 2021 am No 131, 2021; No 63, 2023; No 39, 2024
cl 59	ad No 78, 2021 am No 131, 2021; No 63, 2023; No 39, 2024
Subdivision B	
cl 60	ad No 78, 2021 am No 131, 2021; No 39, 2024; No 53, 2025; No 60, 2025
cl 61	ad No 78, 2021 am No 131, 2021; No 39, 2024
cl 62	ad No 78, 2021
Division 3	
Division 3 heading.....	am No 131, 2021
Subdivision A	
cl 63	ad No 78, 2021 am No 131, 2021
cl 64	ad No 78, 2021 am No 131, 2021
cl 65	ad No 78, 2021

Endnote 4—Amendment history

Provision affected	How affected
	am No 131, 2021
cl 66	ad No 78, 2021
cl 67	ad No 78, 2021
	am No 131, 2021
cl 68	ad No 78, 2021
Subdivision B	
cl 69	ad No 78, 2021
	am No 131, 2021
cl 70	ad No 78, 2021
	am No 131, 2021
cl 71	ad No 78, 2021
Division 4	
Division 4 heading.....	am No 131, 2021
Subdivision A	
cl 72	ad No 78, 2021
	am No 131, 2021
cl 73	ad No 78, 2021
	am No 131, 2021
cl 74	ad No 78, 2021
	am No 131, 2021
cl 75	ad No 78, 2021
cl 76	ad No 78, 2021
	am No 131, 2021
cl 77	ad No 78, 2021
Subdivision B	
cl 78	ad No 78, 2021
	am No 131, 2021
cl 79	ad No 78, 2021
	am No 131, 2021
cl 80	ad No 78, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 5	
Division 5 heading.....	am No 131, 2021 rs No 75, 2025
cl 81	ad No 78, 2021 am No 131, 2021; No 75, 2025
Part 4	
Division 1	
cl 82	ad No 78, 2021
Division 2	
Subdivision A	
cl 83	ad No 78, 2021 am No 39, 2024; No 53, 2025
cl 84	ad No 78, 2021
cl 85	ad No 78, 2021
cl 86	ad No 78, 2021
cl 87	ad No 78, 2021 am No 39, 2024
cl 88	ad No 78, 2021 am No 39, 2024
Subdivision B	
cl 89	ad No 78, 2021 am No 39, 2024; No 53, 2025
cl 90	ad No 78, 2021 am No 39, 2024
cl 91	ad No 78, 2021
Division 3	
Subdivision A	
cl 92	ad No 78, 2021 am No 39, 2024
cl 93	ad No 78, 2021
cl 94	ad No 78, 2021

Endnote 4—Amendment history

Provision affected	How affected
cl 95	ad No 78, 2021
cl 96	ad No 78, 2021
	am No 39, 2024
cl 97	ad No 78, 2021
	am No 39, 2024
Subdivision B	
cl 98	ad No 78, 2021
	am No 39, 2024
cl 99	ad No 78, 2021
	am No 39, 2024
cl 100	ad No 78, 2021
Division 4	
Subdivision A	
cl 101	ad No 78, 2021
	am No 39, 2024
cl 102	ad No 78, 2021
cl 103	ad No 78, 2021
cl 104	ad No 78, 2021
cl 105	ad No 78, 2021
	am No 39, 2024
cl 106	ad No 78, 2021
	am No 39, 2024
Subdivision B	
cl 107	ad No 78, 2021
	am No 39, 2024
cl 108	ad No 78, 2021
	am No 39, 2024
cl 109	ad No 78, 2021
Part 5	
cl 110	ad No 78, 2021
cl 111	ad No 78, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
cl 112	ad No 78, 2021
Part 6	
cl 113	ad No 78, 2021
cl 114	ad No 78, 2021
	am No 131, 2021
cl 115	ad No 78, 2021
cl 116	ad No 78, 2021
cl 117	ad No 78, 2021
cl 118	ad No 78, 2021
cl 119	ad No 78, 2021
Part 7	
cl 120	ad No 78, 2021
cl 121	ad No 78, 2021
cl 122	ad No 78, 2021
Part 8	
cl 123	ad No 78, 2021
cl 124	ad No 78, 2021
cl 125	ad No 78, 2021
cl 126	ad No 78, 2021
	am No 78, 2021; No 93, 2024
Part 9	
Division 1	
cl 127	ad No 78, 2021
Division 2	
cl 128	ad No 78, 2021
cl 129	ad No 78, 2021
cl 130	ad No 78, 2021
cl 131	ad No 78, 2021
cl 132	ad No 78, 2021
	am No 131, 2021

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
cl 133	ad No 78, 2021
	am No 75, 2025
cl 134	ad No 78, 2021
	am No 75, 2025
cl 135	ad No 78, 2021
cl 136	ad No 78, 2021
cl 137	ad No 78, 2021
cl 138	ad No 78, 2021
Division 4	
cl 139	ad No 78, 2021
	am No 131, 2021
Division 5	
cl 140	ad No 78, 2021
Part 10	
cl 141	ad No 78, 2021
	am No 75, 2025
cl 142	ad No 78, 2021
	am No 75, 2025
cl 143	ad No 78, 2021
cl 144	ad No 78, 2021
cl 145	ad No 78, 2021
cl 146	ad No 78, 2021
cl 147	ad No 78, 2021
	am No 75, 2025
cl 148	ad No 78, 2021
cl 149	ad No 78, 2021
cl 150	ad No 78, 2021
Part 11	
cl 151	ad No 78, 2021
cl 152	ad No 78, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
cl 153	ad No 78, 2021 am No 131, 2021; No 89, 2022
cl 154	ad No 78, 2021
cl 155	ad No 78, 2021
cl 156	ad No 78, 2021
cl 157	ad No 78, 2021 am No 89, 2022; No 63, 2023; No 93, 2024 ed C128
cl 158	ad No 78, 2021
cl 159	ad No 78, 2021
Part 12	
cl 160	ad No 78, 2021
cl 161	ad No 78, 2021
cl 162	ad No 78, 2021
cl 163	ad No 78, 2021 am No 131, 2021
cl 164	ad No 78, 2021 am No 131, 2021
cl 165	ad No 78, 2021 am No 131, 2021
cl 166	ad No 78, 2021 am No 131, 2021
Part 13	
cl 167	ad No 78, 2021
cl 168	ad No 78, 2021
cl 169	ad No 78, 2021
Part 14	
cl 170	ad No 78, 2021
cl 171	ad No 78, 2021
cl 172	ad No 78, 2021
cl 173	ad No 78, 2021

Endnote 4—Amendment history

Provision affected	How affected
	am No 39, 2024
cl 174	ad No 78, 2021
cl 175	ad No 78, 2021
cl 176	ad No 78, 2021
cl 177	ad No 78, 2021
	am No 131, 2021
cl 178	ad No 78, 2021
cl 179	ad No 78, 2021
cl 180	ad No 78, 2021
cl 181	ad No 78, 2021
cl 182	ad No 78, 2021
cl 183	ad No 78, 2021
cl 184	ad No 78, 2021